

McCloud Lateral Project

Environmental Resource Report 1

General Project Description

Docket No. CP26-___-000

Volume I - Public

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ABBREVIATIONS AND ACRONYMS

ATWS	additional temporary workspace
CFR	Code of Federal Regulations
CWA	Clean Water Act
EI	environmental inspector
EPEC	El Paso Electric Company
EPNG	El Paso Natural Gas Company, L.L.C.
FERC	Federal Energy Regulatory Commission
FERC Plan	Commission Upland Erosion Control, Revegetation, and Maintenance Plan
FERC Procedures	Commission Wetland and Waterbody Construction and Mitigation Procedures
HUC	Hydrologic Unit Code
McCloud Lateral	new approximate 5.8 mile, 16-inch outside diameter pipeline lateral
McCloud Meter Station	new delivery meter station
NEPA	National Environmental Policy Act
NRCS	Natural Resources Conservation Service
NSA	noise sensitive area
NWP	Nationwide Permit
PAR	permanent access road
Project	McCloud Lateral Project
ROW	right-of-way
RRC	Railroad Commission of Texas
SHPO	State Historic Preservation Office
SWPPP	Stormwater Pollution Prevention Plan
TCEQ	Texas Commission on Environmental Quality
THC	Texas Historical Commission
TPWD	Texas Parks and Wildlife Department
TWS	temporary workspace
TXDOT	Texas Department of Transportation
USACE	U.S. Army Corps of Engineers
USDOT	U.S. Department of Transportation
USFWS	U.S. Fish and Wildlife Service

INFORMATION	DOCUMENT SECTION
Minimum Filing Requirements for Environmental Reports – Title 18 CFR Section 380, Appendix A	
1. Provide a detailed description and location map of the project facilities – Title 18 Code of Federal Regulations (CFR) part (§) 380.12 (c)(1)	Section 1.1
2. Describe any non-jurisdictional facilities that would be built in association with the project – 18 CFR § 380.12 (c)(2)	N/A, Section 1.10
3. Provide current original U.S. Geological Survey 7.5-minute-series topographic maps with mileposts showing the project facilities – 18 CFR § 380.12 (c)(3)	Appendix 1A
4. Provide aerial images or photographs or alignment sheets based on these sources with mileposts showing the project facilities – 18 CFR § 380.12 (c)(3)	Appendix 1B
5. Provide plot/site plans of compressor stations showing the locations of the nearest noise sensitive areas within 1 mile – 18 CFR § 380.12 (c)(3,4)	N/A
6. Describe construction and restoration methods – 18 CFR § 380.12 (c)(6)	Section 1.5
7. Identify the permits required for construction across surface waters – 18 CFR § 380.12 (c)(9)	Section 1.8
8. Provide the names and address of all affected landowners and certify that all affected landowners will be notified as required in § 157.6(d) – 18 CFR § 380.12 (c)(10)	Appendix 1D
Full Filing Requirements for Environmental Reports – Title 18 CFR Section 380.12 (c)	
This report is required for all applications. It will describe facilities associated with the project, special construction and operation procedures, construction timetables, future plans for related construction, compliance with regulations and codes, and permits that must be obtained. Resource Report 1 must:	
1. Describe and provide location maps of all jurisdictional facilities, including all aboveground facilities associated with the project (such as: meter stations, pig launchers/receivers, valves), to be constructed, modified, abandoned, replaced, or removed, including related construction and operational support activities and areas such as maintenance bases, staging areas, communications towers, power lines, and new access roads (roads to be built or modified). As relevant, the report must describe the length and diameter of the pipeline, the types of aboveground facilities that would be installed, and associated land requirements. It must also identify other companies that must construct jurisdictional facilities related to the project, where the facilities would be located, and where they are in the Commission's approval process.	Section 1.1, Appendix 1A
2. Identify and describe all non-jurisdictional facilities, including auxiliary facilities, that will be built in association with the project, including facilities to be built by other companies. (i) Provide the following information: A. A brief description of each facility, including as appropriate: Ownership, land requirements, gas consumption, megawatt size, construction status, and an update of the latest status of federal, state, and local permits/approvals; B. The length and diameter of any interconnecting pipeline; C. Current 1:24,000/1:25,000 scale topographic maps showing the location of the facilities; D. Correspondence with the appropriate State Historic Preservation Officer (SHPO) or duly authorized Tribal Historic Preservation Officer (THPO) for tribal lands regarding whether properties eligible for listing on the National Register of Historic Places (NRHP) would be affected; E. Correspondence with the U.S. Fish and Wildlife Service (and National Marine Fisheries Service, if appropriate) regarding potential impacts of the proposed facility on federally listed threatened and endangered species; and F. For facilities within a designated coastal zone management area, a consistency determination or evidence that the owner has requested a consistency determination from the state's coastal zone management program. (ii) Address each of the following factors and indicate which ones, if any, appear to indicate the need for the Commission to do an environmental review of project-related nonjurisdictional facilities. A. Whether or not the regulated activity comprises “merely a link” in a corridor type project (*e.g.*, a transportation or utility transmission project).	N/A

INFORMATION	DOCUMENT SECTION
B. Whether there are aspects of the non-jurisdictional facility in the immediate vicinity of the regulated activity which uniquely determine the location and configuration of the regulated activity. C. The extent to which the entire project will be within the Commission's jurisdiction. D. The extent of cumulative federal control and responsibility.	
3. Provide the following maps and photos: (i) Current, original United States Geological Survey (USGS) 7.5-minute series topographic maps or maps of equivalent detail, covering at least a 0.5-mile-wide corridor centered on the pipeline, with integer mileposts identified, showing the location of rights-of-way, new access roads, other linear construction areas, compressor stations, and pipe storage areas. Show nonlinear construction areas on maps at a scale of 1:3,600 or larger keyed graphically and by milepost to the right-of-way maps. (ii) Original aerial images or photographs or photo-based alignment sheets based on these sources, not more than 1 year old (unless older ones accurately depict current land use and development) and with a scale of 1:6,000 or larger, showing the proposed pipeline route and location of major aboveground facilities, covering at least a 0.5-mile-wide corridor, and including mileposts. Older images/photographs/alignment sheets should be modified to show any residences not depicted in the original. Alternative formats (*e.g.*, blue-line prints of acceptable resolution) need prior approval by the environmental staff of the Office of Energy Projects. (iii) In addition to the copy required under §157.6(a)(2) of this chapter, applicant should send two additional copies of topographic maps and aerial images/photographs directly to the environmental staff of the Office of Energy Projects.	Appendix 1A, Appendix 1B
4. When new or additional compression is proposed, include large scale (1:3,600 or greater) plot plans of each compressor station. The plot plan should reference a readily identifiable point(s) on the USGS maps required in paragraph (c)(3) of this section. The maps and plot plans must identify the location of the nearest noise-sensitive areas (schools, hospitals, or residences) within 1 mile of the compressor station, existing and proposed compressor and auxiliary buildings, access roads, and the limits of areas that would be permanently disturbed.	N/A
5. Provide the following: (i) Identify facilities to be abandoned, and state how they would be abandoned, how the site would be restored, who would own the site or right-of-way after abandonment, and who would be responsible for any facilities abandoned in place. (ii) When the right-of-way or the easement would be abandoned, identify whether landowners were given the opportunity to request that the facilities on their property, including foundations and below ground components, be removed. Identify any landowners whose preferences the company does not intend to honor, and the reasons therefore.	N/A
6. Describe and identify by milepost, proposed construction and restoration methods to be used in areas of rugged topography, residential areas, active croplands, sites where the pipeline would be located parallel to and under roads, and sites where explosives are likely to be used.	N/A
7. Unless provided in response to Resource Report 5, describe estimated workforce requirements, including the number of pipeline construction spreads, average workforce requirements for each construction spread and meter or compressor station, estimated duration of construction from initial clearing to final restoration, and number of personnel to be hired to operate the proposed project.	Section 1.5.1,
8. Describe reasonably foreseeable plans for future expansion of facilities, including additional land requirements and the compatibility of those plans with the current proposal.	Section 1.7
9. Describe all authorizations required to complete the proposed action and the status of applications for such authorizations. Identify environmental mitigation requirements specified in any permit or proposed in any permit application to the extent not specified elsewhere in this section.	Section 1.8
10. Provide the names and mailing addresses of all affected landowners specified in §157.6(d) and certify that all affected landowners will be notified as required in §157.6(d).	Appendix 1D
Information Often Missing and Resulting in Data Requests	
• Describe all authorizations required to complete the proposed action and the status of applications for such authorizations, including actual or anticipated submittal and receipt dates.	Section 1.8

INFORMATION	DOCUMENT SECTION
• Provide plot/site plans of all aboveground facilities that are not completely within the right-of-way.	Appendix 1B
• Provide detailed typical construction right-of-way cross-section diagrams for each proposed right- of-way configuration showing information such as widths and relative locations of existing rights- of-way, new permanent rights-of-way, and temporary construction rights-of-way. Clearly identify any overlap of existing rights-of-way for projects involving collocation. Identify by pipeline facility and milepost where each right-of-way configuration would apply.	Appendix 1B
• Summarize the total acreage of land affected by construction and operation of the project.	Table 1.4-1
• Describe the cathodic protection system; include associated land requirements as appropriate.	N/A
• Describe construction and restoration methods for offshore facilities as well as onshore facilities.	N/A
• For proposed abandonments, describe how the right-of-way would be restored, who would own the site or right-of-way after abandonment, who would be responsible for facilities that would be abandoned in place, and whether landowners were given the opportunity to request removal.	N/A
• If Resource Report 5 – Socioeconomics is not provided, provide the start and end dates of construction, the anticipated number of pipeline spreads that would be used, and the estimated workforce per spread.	Section 1.5
• If the project includes construction in the federal offshore area, include in the discussion of required authorizations and clearances the status of consultations with the Bureau of Ocean Energy Management, Regulation and Enforcement. File with the Bureau of Ocean Energy Management, Regulation and Enforcement for right-of-way grants at the same time or before filing your application with the Commission.	N/A
• For project involving the import or export of natural gas/liquefied natural gas and construction of liquefied natural gas facilities, include in the discussion of required authorizations and clearances the status of consultations and authorizations required from the U.S. Department of Energy, U.S. Coast Guard, and the Federal Aviation Administration, as applicable.	N/A
• Send two (2) additional copies of topographic maps and aerial images/photographs directly to the environmental staff of the Office of Energy Projects.	
• Provide an electronic copy of the landowner list directly to Commission environmental staff. Check with Commission staff for required format.	

1.0 RESOURCE REPORT 1 – GENERAL PROJECT DESCRIPTION

Resource Report 1 describes El Paso Natural Gas Company, L.L.C.'s (EPNG) proposed McCloud Lateral Project (Project) and summarizes the purpose, need, and land requirements for the Project.

1.1 PROJECT OVERVIEW

EPNG is seeking authorization from the Federal Energy Regulatory Commission (FERC) under the Prior Notice procedures of the FERC's blanket certificate regulations (Sections 157.205, 157.208, 157.210 and 157.211 of the FERC's regulations, 18 Code of Federal Regulations [CFR], §§ 157.205, 157.208, 157.210 and 157.211 [2025]), for approval of the Project, located in El Paso County, Texas.[1]

The proposed Project involves the construction of a new approximate 5.8 mile, 16-inch outside diameter pipeline lateral (McCloud Lateral) that will originate upstream of EPNG's existing El Paso Compressor Station on its South Mainline System and move north-east ending at a new delivery meter station (McCloud Meter Station) near the planned McCloud Generation facility in El Paso County, Texas (see Figure 1.1-1) with related appurtenances, as described in more detail below and depicted in figures and maps provided in Appendices 1A and 1B.

EPNG anticipates starting construction on the Project during the fourth quarter of 2026, after receipt of all federal, state and local authorizations, and permits. Depending on the actual construction start date, the Project's in-service date is expected to be as early as January 1, 2027.

In compliance with Section 157.208(c)(9) of the FERC regulations, 18 CFR § 157.208(c)(9) (2025), a concise analysis of relevant issues outlined in Section 380.12 of the FERC regulations, 18 CFR § 380.12 (2025), Environmental Reports for Natural Gas Act applications, is provided to describe activities associated with the Project. As documented within the subsequent sections of this Project's Environmental Report, no significant impacts to resources are anticipated.

In accordance with Section 380.12(o), 18 CFR § 380.12(o) (2025), Resource Report 13 (Engineering and Design Material) is not provided since the Project does not involve construction of new liquefied natural gas facilities.

[1] With the exception of a 120-foot permanent access road segment located in Otero County, New Mexico, EPNG's Project facilities are situated in El Paso County, Texas.

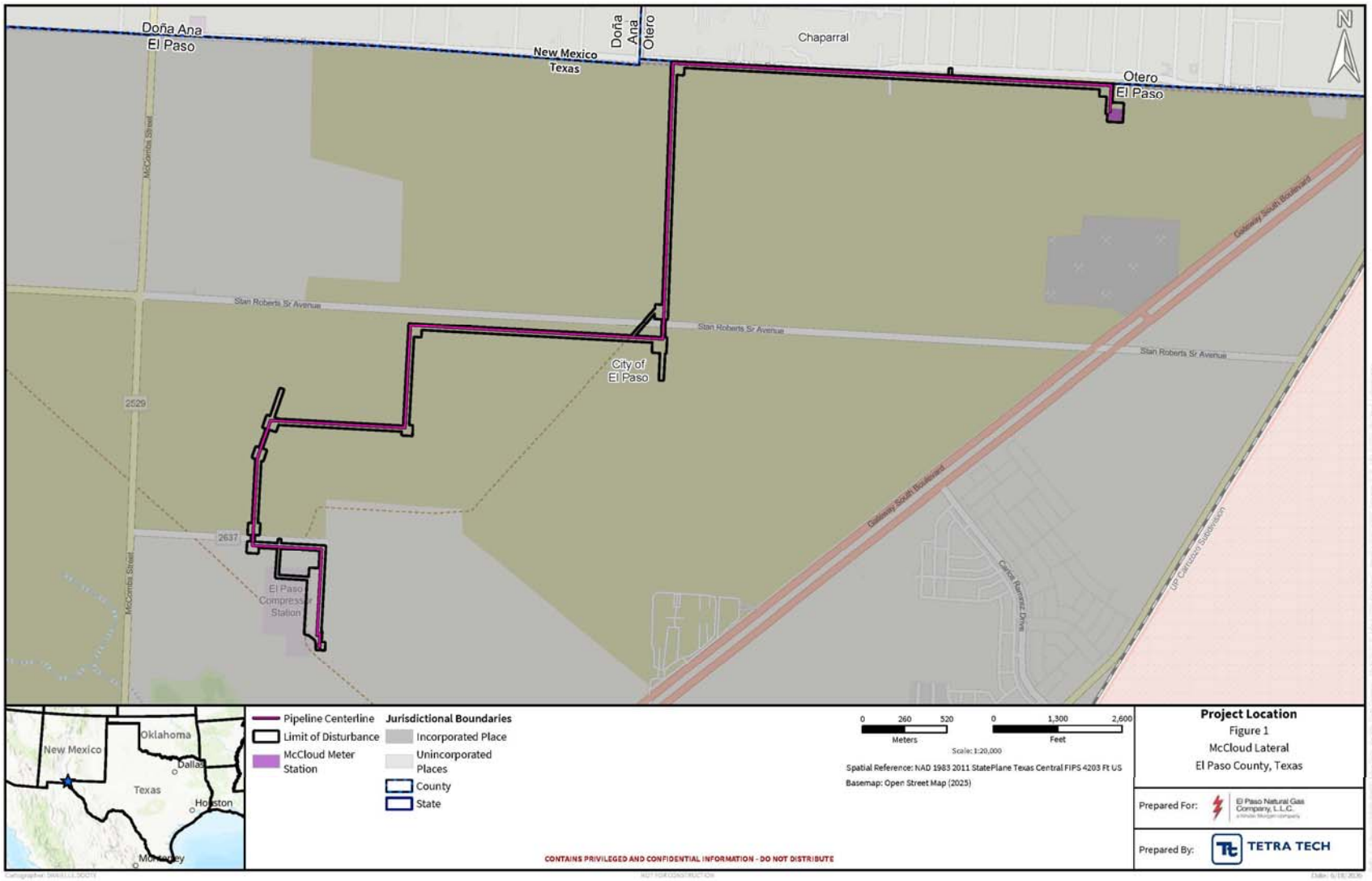


Figure 1.1-1. Project Overview Map.

1.2 PURPOSE AND NEED

The purpose of the Project is to meet demand for natural gas transportation service to a new delivery point in El Paso County, Texas. Specifically, the Project is being proposed in response to the results of an open season posted between March 16, 2026, to March 30, 2026 wherein EPNG solicited bids for 167,000 dekatherms /day of firm transportation service on a new lateral pipeline off of EPNG's South Mainline System that would commence upstream of the El Paso Compressor Station, and ending at a new delivery meter station. At the conclusion of the open season, EPNG awarded the capacity in the open season to El Paso Electric Company (EPEC). Natural gas transported along the Project facilities would be delivered to a new natural gas-fired power plant being constructed for EPEC. Based on the results of the open season, EPNG made the decision to move forward with its Project.

Additional discussion regarding the purpose and need for the Project is provided in the application text of this prior notice authorization request.

1.3 LOCATION AND DESCRIPTION OF FACILITIES

The Project commences immediately upstream of EPNG's existing El Paso Compressor Station on its South Mainline System. The El Paso Compressor Station is located in the northern outskirts of the City of El Paso, approximately two miles south of the New Mexico border and approximately 1.7 miles west of State Highway 54, in El Paso County, Texas. EPNG proposes to construct the new lateral in a northeast direction, ending at a new delivery meter station near the planned McCloud Generation facility. Access to and along the proposed Project will be via four existing privately-owned permanent access roads (PARs). PAR-1 is located entirely within the existing El Paso Compressor Station. PAR-2 will be a new access road extending approximately 65 feet north from County Road 2637 and will be located entirely within the proposed permanent ROW for the Project. PAR-3 and PAR-4 are existing dirt roads extending from Stan Roberts Drive, and PAR-5 is an existing graveled driveway from State Line Drive currently being used to access ongoing construction of a data center.

The Project consists of the following facilities:

- Installation of approximately 5.8 miles of new 16-inch outside diameter natural gas lateral pipeline that will include two hot taps that will tie-in the lateral line to the existing 26-inch Line No. 1100 and the existing 30-inch Line 1103;

- Construction of the new McCloud Meter Station to be comprised of two 8-inch ultrasonic meters, one 4-inch ultrasonic meter, one 1.5-inch Coriolis meter and related appurtenances to be located in a 278-foot by 250-foot fenced site at the northeastern terminus of the Project; and

- Installation of Section 2.55(a) auxiliary facilities, including:

    - two new pig launcher/receiver stations – one at each end of the new pipeline lateral.

Routing of the pipeline was developed through consultation with affected landowners and to avoid impacts to sensitive biological or cultural resources.[2] The new pipeline lateral will be installed

[2] Pursuant to 18 CFR § 157.206(b)(6)(i), EPNG affirms that no nuclear power plant, either operating or under construction, or for which a construction permit has been filed with the Nuclear Regulatory Commission, is located within two miles of the Project or project construction activities.

approximately three to eight feet below ground surface. The two new hot taps will be installed on Line No. 1100 and the adjacent Line No. 1103 to tie-in the new lateral line and allow for greater operational flexibility.

A Project location map with components identified is provided above as Figure 1.1-1. Additionally, topographic maps of the Project area are provided in Appendix 1A and aerial photo-based construction drawings of the Project area are being provided in Appendix 1B.

1.4 LAND REQUIREMENTS

EPNG will install the 16-inch natural gas pipeline lateral within a proposed 75-foot-wide corridor that will include 30 feet of permanent easement and 45 feet of temporary workspace (TWS). Construction impacts will be confined to the 75-foot-wide corridor and additional TWS (ATWS) locations that are located at points of inflection and at roadway crossings. ATWS locations are also proposed within the footprint of the existing El Paso Compressor Station and adjacent to the proposed McCloud Meter Station to provide the construction contractor with additional space for parking and staging of equipment. A total of 71.63 acres of land will be utilized during construction and includes permanent pipeline right-of-way (ROW), TWS and ATWS for construction, and new facilities (i.e., pig launcher/receivers, hot taps, and the new McCloud Meter Station). Four existing PARs and one new PAR will be utilized during construction and account for approximately 1.88 acres of land. All impacted lands are owned by the City of El Paso, El Paso Electric, or the data center being serviced by the Project. . The land use designations within the Project site consist of primarily shrub/scrub areas with developed areas present to a lesser degree. Land requirements for the Project are summarized in Table 1.4-1 and are discussed in further detail below.

The detailed topographic map in Appendix 1A and the aerial photo-based construction drawings in Appendix 1B illustrate the workspace layouts for the Project.

Table 1.4-1.
Land Required for the McCloud Lateral Project

Facility Component	Temporary/ Construction (acres)	Permanent/Operation (acres) [a]
McCloud Lateral Permanent Right-of-Way	21.24	21.24
McCloud Meter Station	1.47	1.47
McCloud Lateral Temporary Workspace (TWS)	31.43	0
McCloud Lateral Additional TWS	14.52	0
McCloud Lateral Pig Launcher/Receiver Yard	1.09	1.09[b]
Access Roads	1.88	1.88[c]
TOTAL	**71.63**	**25.68**

[a] Includes areas to remain in use after construction (i.e., permanent pipeline ROW easement, access roads and McCloud Mater Station).
[b] Includes 0.98 acres within the existing El Paso Compressor Station, and 0.11 acres immediately adjacent to the McCloud Meter Station.
[c] Four of the access roads are currently established existing access roads that EPNG will continue to use to access the McCloud Lateral and associated facilities. PAR-2 is entirely located within the proposed permanent ROW; as such acreage is accounted for under permanent ROW acreage.

Existing land cover in the Project area is primarily scrub/shrub and developed land associated with the existing El Paso Compressor Station and Stan Roberts Road. Additional information regarding impacts to existing land uses is provided in Table 8.1-1 in Resource Report 8.

A field survey for biological resources in the Project area was conducted in April 2026, and no wetlands were identified within the ROW, TWS, ATWS, pig launcher areas, or access road route alterations. Two ephemeral washes were recorded in the Project area. Resource Report 2 provides more information on water-related information. A cultural resources survey was also conducted in April 2026, and no historical resources were identified within proposed construction workspaces. Resource Report 4 provides more information on cultural resources.

EPNG has sited and sized the workspaces for the Project to avoid or minimize impacts to wetlands/waterbodies, protected species, and cultural resources. After construction, all temporary workspaces will be restored in accordance with the FERC Upland Erosion Control, Revegetation, and Maintenance Plan (FERC Plan) (FERC 2013a) and the FERC Wetland and Waterbody Construction and Mitigation Procedures (FERC Procedures) (FERC 2013b) found in Appendix 1C.

To gain access to the Project areas, EPNG will use County Road 2637, Stan Roberts Sr. Avenue, State Line Drive, and the following four existing access roads:

- PAR-1 – 0.50-mile (2,620 feet) existing access road off County Road 2637, which provides access to and through the existing El Paso Compressor Station to the start of the McCloud Lateral;

- PAR-2 – 0.01-mile (65 feet) new access road extending north from County Road 2637, entirely within EPNG's proposed permanent ROW.

- PAR-3 – 0.07-mile (365 feet) existing access road extending southwest from Stan Roberts Sr. Avenue;

- PAR-4 – 0.06-mile (320 feet) existing access road extending northeast from Stan Roberts Sr. Avenue; and

- PAR-5 – 0.03-mile (150-feet) existing access road extending south from State Line Road. Approximately 120 feet of the access road is located in New Mexico with the remaining 30 feet located in Texas.

The existing public roads can accommodate construction traffic without modification or improvement, and based on the current use of the four existing access roads, EPNG is proposing no modifications to any of the existing PARs. PAR 2 will be graded and graveled to provide future access to the permanent ROW.

1.5 CONSTRUCTION PROCEDURES

EPNG will design, construct, test, operate and maintain all Project facilities to conform with applicable regulations, including U.S. Department of Transportation (USDOT) regulations in 49 CFR 192, Transportation of Natural and Other Gas by Pipeline: Minimum Federal Safety Standards, and Commission regulations in 18 CFR § 380.15: Siting and Maintenance Requirements. In addition, unless otherwise authorized through a modification granted by FERC, EPNG will comply with the FERC Plan and the FERC Procedures which are provided in the Environmental Construction Plan (see Appendix 1C).

In addition to the FERC Plan and the FERC Procedures, EPNG has developed, or will be developing, Project–specific plans which are also included in Appendix 1C:

- Stormwater Pollution Prevention Plan (SWPPP) (to be developed in advance of construction)
- Spill Prevention, Control and Countermeasure Plan
- Noxious Weed Control Plan
- Unanticipated Discovery Plan for Cultural Resources and Human Remains
- Dust Control Plan

1.5.1 Schedule and Workforce

Following receipt of all necessary regulatory approvals, construction of the Project is anticipated to begin during the fourth quarter of 2026. The Project is planned to be placed in-service as early as January 1, 2027.

The total construction workforce will vary depending on the phase of construction. EPNG anticipates that approximately 65-85 workers will be required during peak construction of the new Project facilities with an average construction workforce estimated at 45-50 workers. EPNG plans to use experienced contractors for the Project. Due to the specialized nature of pipeline construction, EPNG does not believe that local contractors will be an option; however, the selected contractor may be able to use the local labor pool as laborers and for other construction support roles. No new permanent staff, beyond those already working for EPNG, will be required upon completion of the Project activities.

EPNG plans to conduct construction activities between 7:00 a.m. and 7:00 p.m. (local time), Monday through Saturday, with occasional work on Sundays on an as-needed basis due to “make-up” days caused by inclement weather or other construction delays. Other limited activities that require continuous work, such as hydrostatic testing activities, including dewatering and drying, may be performed on Sundays and during nighttime hours (7:00 p.m. to 7:00 a.m.).

1.5.2 Training, Inspection, and Environmental Compliance

EPNG is committed to conducting its work on the Project in a way that avoids adverse impacts on human health and the environment. EPNG will incorporate environmental requirements into its construction documents, conduct environmental training, employ at least one environmental inspector (EI), and provide routine monitoring during construction, clean up, and restoration, if applicable.

EPNG has adopted the FERC Plan and the FERC Procedures (FERC 2013a; 2013b) and has not identified any need for modifications to the FERC Plan or the FERC Procedures. Consistent with FERC guidelines, environmental training will be given to EPNG’s personnel and to contractor personnel whose activities may impact the environment during Project construction. The level of training to be provided will be commensurate with the type of duties required of the personnel. All construction personnel will be given the appropriate level of environmental training. The training will be provided prior to the start of construction and throughout the construction process, as needed. The training program will cover, as applicable, the FERC Plan and the FERC Procedures, job-specific permit conditions, company policies, cultural resources procedures, safety, threatened and endangered species restrictions, EPNG’s Project-specific plans, and any other

pertinent information related to the Project. All construction personnel are expected to play an important role in maintaining strict compliance with all permit conditions to protect the environment during construction.

In accordance with the FERC Plan, one EI will be assigned to the Project during active construction and restoration. The EI will have stop-work authority and the authority to order corrective action where activities violate the conditions of the FERC Prior Notice approval, other federal and state permits, or landowner requirements. The EI will report directly to the Chief Inspector, who will oversee inspection of all aspects of construction. The EI will have peer status with all other activity inspectors. The EI will provide interpretation of federal and state environmental permit conditions, requirements, and regulations to ensure compliance by the construction contractors. EPNG's Project Permitting Specialist and Project Manager will review daily reports generated by the EI. Agency notifications required by permit conditions will be made by EPNG's Project Permitting Specialist. The EI will complete field reports for agency notification and submission to FERC. The Project Permitting Specialist and EPNG's Project Manager will review all agency notifications.

EPNG's engineering and construction department is responsible for completion of the Project in compliance with regulatory and non-regulatory requirements and agreements. Any issues of non-compliance with mitigation measures or other regulatory requirements that cannot be resolved in the field will be addressed by EPNG's Project Manager and Project Permitting Specialist. EPNG's operations department will be responsible for long-term Project maintenance and regulatory compliance. Project-specific plans, listed above in Section 1.5, will be part of the construction contract documents for contractors to abide by.

1.5.3 General Construction Procedures

The Project will be constructed and maintained in compliance with federal regulations and guidelines and in accordance with the specific requirements of applicable federal and state approvals. The construction and restoration methods and procedures in the FERC Plan and the FERC Procedures will be followed, as applicable.

The Project will involve conventional construction techniques that follow a set of sequential operations, as described in the following sections. Final restoration of the TWS will occur after successful completion of the Project and will be completed per the FERC Plan and the FERC Procedures. The entire process is coordinated in such a manner as to limit the total time a tract of land is exposed to erosional processes after disturbance.

1.5.3.1 Surveying and Staking

The initial step in the preparation of the approved work areas for the Project is the preconstruction survey. A crew will survey and stake the outside limits of the approved work areas, access roads, and known underground facilities. Existing utility lines (e.g., cables, conduits, and pipelines) will be located and marked with flags, stakes, or other devices to prevent accidental damage during construction. Sensitive resources will be located and marked, if applicable.

1.5.3.2 Site Preparation, Clearing, and Grading

Following the installation of the staking and flagging, any adjacent pipelines will be potholed with story poles installed to mark their location, as necessary. Foreign utilities will be marked through the applicable One Call system. The approved work areas will be cleared of vegetation. Non-

woody vegetation may be mowed and left in place to limit soil erosion. Clearing of shrubby desert brush will be required for the Project.

1.5.3.3 Erosion and Sedimentation Control

Prior to ground-disturbing activities, erosion and sediment control devices will be installed along the TWS in accordance with the Project's SWPPP, which will be developed prior to Project Construction. The SWPPP will incorporate requirements from the FERC Plan and the FERC Procedures, as well as any site-specific erosion control information.

The SWPPP describes general measures that will be implemented during Project activities to limit the potential for erosion during construction. These measures include the following:

- Limiting the quantity and duration of soil exposure;
- Implementing dust mitigation measures;
- Reducing the velocity of runoff water and redirecting runoff, as appropriate;
- Installing and maintaining erosion and sediment control measures during construction; and
- Establishing vegetation following final grading in non-agricultural areas.

1.5.3.4 Construction of Aboveground Facilities

EPNG will construct five new above ground facilities as part of the Project. At the southern terminus of the McCloud Lateral, and within the footprint of the El Paso Compressor Station, EPNG will install two hot taps and a new pig launcher facility to allow inspection of the new lateral. At the northern terminus of the McCloud Lateral, EPNG will construct the McCloud Meter Station, as well as terminal pig receiver facility.

1.5.3.5 Pipe Assembly and Welding

The Project will require welding of the new pipeline during installation. All welder qualifications and welding procedures will be in accordance with American Petroleum Institute Standards.

1.5.3.6 Padding and Backfilling

Backfilling of the excavations associated with the pig launcher/receiver foundations and pipeline trench would be required. EPNG would import clean fill, if necessary, to restore the surface contours after the removal of the foundations and installation of below ground pipe. EPNG will require its contractor to use proven compaction methods to minimize settling. During backfilling, special care will be taken to minimize erosion, restore the contour of the ground to match the adjacent area, and restore surface drainage patterns as close to preconstruction conditions as practicable.

1.5.3.7 Pressure Testing

New facility piping will be pressure tested in accordance with EPNG's requirements to ensure its integrity for the intended service and operating pressures. During hydrostatic testing, water will be pumped from the water source into the test facilities, and test pressure will be obtained by adding water to the test section with a high-pressure pump. At the completion of the hydrostatic

test, the pressure will be removed from the pipe, and water will be released using forced air and discharged on-site or collected for disposal at an approved facility. Information regarding hydrostatic test water is provided in Resource Report 2, Section 2.2.4.

1.5.3.8 Cleanup and Restoration

Upon completion of the activities associated with the Project, EPNG will conduct cleanup and restoration activities. TWS and ATWS disturbed during construction will be graded and seeded, and remaining trash and debris will be properly disposed of in compliance with applicable regulations. Permanent erosion control measures will be installed in accordance with the Project SWPPP, the FERC Plan, and the FERC Procedures. Restored ROW will be revegetated in compliance with seed, fertilizer, and soil additive recommendations obtained from the Natural Resources Conservation Service (NRCS) or as requested by the landowner.

1.5.3.9 Access Roads

As noted in Section 1.4 above, the Project will include the use of four existing and one new access roads, totaling approximately 0.67 miles in length. Based on the current use of access roads PAR-1, PAR-3, PAR-4, and PAR-5, EPNG is not proposing any modifications to any of the PARs. PAR-2 will be a new access road constructed specifically for this Project, extending 65 feet north of County Road 2637. No additional temporary access roads will be required. The other, existing public roads are in a condition that can accommodate construction traffic without modification or improvement.

1.5.3.10 Wetlands/Waterbodies

Based on the biological field survey completed in April 2025, no wetlands and two ephemeral washes were identified within the Project area. Erosion control measures will be installed in accordance with the Project SWPPP, the FERC Plan, and the FERC Procedures. Waterbodies are further discussed in Resource Report 2.

1.6 OPERATION AND MAINTENANCE PROCEDURES

EPNG will maintain the Project in compliance with USDOT regulations provided in 49 CFR Part 192, the FERC maintenance requirements from Section 380.15, 18 CFR § 380.15 (2026), and maintenance requirements in the FERC Plan (FERC 2013a). All Project facilities will be marked and identified in accordance with applicable regulations. EPNG will also participate in the local One Call system. These standards are in compliance with the National Pipeline Safety Act of 1968, as amended.

Operational activity will be limited primarily to inspection of the facilities. Periodic aerial and ground inspections by pipeline personnel will identify:

- Conditions of the vegetative cover and erosion control measures.
- Unauthorized encroachment on the site, such as buildings and other substantial structures.
- Other conditions that could present a safety hazard or require preventative maintenance or repairs.

EPNG will maintain vegetation in an herbaceous state within the permanent pipeline easement. Resource Report 3, Section 3.2.4 discusses potential Project impacts on vegetation.

Pipeline and facility markers will be installed as required. Markers can help prevent encroachment and excavation-related damage to pipelines. Excavators will contact the One Call center in advance of any excavation to locate the marked underground pipelines.

1.7 PAST, PRESENT, AND REASONABLY FORESEEABLE FUTURE PROJECTS

EPNG does not have any plans to complete other projects at this location, aside from the proposed Project. EPNG has consulted with El Paso County and notes several other projects that are either on-going, or will occur in similar timeframes to the construction of the McCloud Lateral.

These include:

- Borderlands Expressway, which is currently under construction by the Texas Department of Transportation's El Paso District to complete a route around the northeast site of the City of El Paso suitable for truck and other through traffic, diverting traffic from the city center. The Borderland Expressway intersects with the proposed McCloud Lateral approximately 0.31 miles north of County Road 2637. EPNG has designed pipeline installation specifically to accommodate the intersection with the Borderlands Expressway.

- AI Data Center, currently being constructed on approximately 950 acres of land north of Stan Roberts Sr. Avenue. The proposed lateral is sited along the data center boundary from Stan Roberts Sr. Avenue to the new proposed McCloud Meter Station location.

- El Paso Electric McCloud Generation Facility, a 366-megawatt natural gas generation facility to be located adjacent to the data center. As noted above, the power generation facility will be served by EPNG's McCloud Delivery Point.

1.8 PERMITS AND APPROVALS

Table 1.8-1 includes a list of federal, and state environmental permits, approvals and consultations required for the Project. EPNG will also be responsible for compliance with applicable local requirements for the Project. All construction contractor(s) engaged by EPNG will be required to observe and comply with all applicable federal, state, and local laws, ordinances, and regulations. Contractors will also be required to comply with the Minimum Federal Safety Standards adopted by the USDOT Pipeline and Hazardous Materials Safety Administration under the Natural Gas Pipeline Safety Act of 1968, as amended, Occupational Safety and Health Administration guidelines, and EPNG's internal standards.

Copies of agency correspondence associated with the Project are provided in Appendix 1E.

Table 1.8-1.
Federal, State and Local Permits, Approvals, and Consultations Required for the Project

Agency	Permits/Coordination	Status
Federal		
Federal Energy Regulatory Commission (FERC)	Natural Gas Act, National Environmental Policy Act, 18 CFR Section 157.208, FERC Prior Notice	Prior Notice application submitted July 30, 2026.
U.S. Army Corps of Engineers (USACE)	Clean Water Act (CWA), Section 404 (Nationwide Permit [NWP] 12)	No jurisdictional features were delineated within the Project area.
U.S Fish and Wildlife Service (USFWS)	Consultation under Section 7 of the Endangered Species Act	All determinations are "no effect" for the Project. Per email received from the USFWS on July 14, 2026, the USFWS does not provide concurrence correspondence for no effect determinations.
U.S. Department of Agriculture Natural Resources Conservation Service (NRCS)	Seed mix and noxious weed control recommendations	Recommendations received June, 2026
State		
New Mexico State Historic Preservation Office (SHPO)	Section 106, National Historic Preservation Act	Agency consultation letter and survey report submitted May 08, 2026. Response from New Mexico SHPO – Concurrence of No Historic Properties Affected received June 04, 2026.
Texas Historical Commission (THC), SHPO	Section 106, National Historic Preservation Act/Antiquities Code of Texas Coordination	Agency consultation letter and survey report submitted May 07, 2026. Response from THC – Concurrence of No Historic Properties Affected received June 04, 2026.
Texas Commission on Environmental Quality (TCEQ)	CWA, Section 401 State Water Quality Certification	No jurisdictional features were delineated within the Project area.
Texas Parks and Wildlife Department (TPWD)	State-listed Threatened and Endangered Species	Species occurrence list was obtained April 2026. Letter requesting comment submitted July15, 2026.
TCEQ	CWA, National Pollutant Discharge Elimination System Application for a Permit to Discharge of Hydrostatic Test Water to Land Surface	Will be obtained at least 30 days prior to discharge
Native American Tribes		
Apache Tribe of Oklahoma; Comanche Nation of Oklahoma; Fort Sill Apache Tribe of Oklahoma; Mescalero Apache Tribe of New Mexico; Tonkawa Tribe of Indians of Oklahoma; White Mountain Apache Tribe of the Fort Apche Reservation; Wichita and Affiliated Tribes of Oklahoma; Ysleta Del Sur Pueblo of Texas	Project Notification and Comments	Letters sent June 23, 2026. No response received as of July 30, 2026 (submittal date of Prior Notice application).

1.9 AFFECTED LANDOWNERS AND STAKEHOLDERS

Pursuant to Section 157.203(d)(2) of FERC regulations, 18 CFR § 157.203(d)(2) (2025), EPNG will make a good faith effort to notify, in writing, all affected landowners within three business days that a docket number is assigned to the Prior Notice request. Affected landowners are defined in Section 157.6(d)(2) of FERC regulations and include landowners whose property is crossed or used by the Project; abuts either side of a ROW or facility owned in fee by EPNG or another utility; contains a residence within 50 feet of property to be used by the Project; or is within 0.5 mile of a proposed compressor unit. A list of the landowners affected by the Project is provided as Appendix 1D (marked as **"CUI//PRIV - Contains Privileged Information – Do Not Release"** in Volume II). EPNG has identified three affected landowners,

Stakeholders include the affected landowners as well as elected officials, regulatory agencies, non-governmental organizations, and other parties that may be affected by the Project.

1.10 NON-JURISDICTIONAL FACILITIES

There are no non-jurisdictional facilities associated with this Project.

1.11 INFORMATION ON OTHER ACTIVITIES IN THE VICINITY OF THE PROPOSED PROJECT

As noted in a recent FERC order pursuant to Docket No. CP25-528-000[3], the Commission noted in paragraph 25 of that order, that the National Environmental Policy Act (NEPA) contains no reference to cumulative effects and that in the Commission's view, identifying a distinct and separate category of cumulative effects has proved to ultimately disserve NEPA's goal of supporting environmentally informed decision making without imposing undue procedural burdens. Rather, the Commission identified that NEPA requires an analysis of the reasonably foreseeable effects of "the project at hand," not effects of separate projects. More specifically, the "the effects of a project occur against an environmental backdrop that may itself be shaped by other activities; for that reason, information on other activities in the vicinity of a proposed project can help the Commission contextualize and understand how that project will affect the environment."[4] Consequently, EPNG is providing information on other activities in the vicinity of the proposed Project, reflecting the "cumulative effects resulting from existing or reasonably foreseeable projects." 18 CFR § 380.12(b)(3).

EPNG identified past, present, or reasonably foreseeable future projects from a review of topographic and aerial photo-based maps and internet research, including a review of the FERC eLibrary of proposed and approved actions from 2023-2026, the TCEQ New Source Review Air Permits received between 2023 and 2026, and the Texas Department of Transportation's (TxDOT) Project Tracker of construction activities currently underway or on schedule to begin soon (FERC 2026, TCEQ 2026, TxDOT 2026). The resource-specific geographic scopes used for the information on other activities in the area are defined in Table 1.11-1. Table 1.11-2 summarizes recently completed, current and proposed projects identified within the vicinity of the Project site. EPNG determined through its analysis of other activities in the area that the Project, combined with the projects included in the analysis, is not expected to result in material cumulative impacts to the resources discussed below.

[3] *See* Eastern Gas Transmission and Storage, Inc., 195 FERC – 61,218 (2026).

[4] Eastern Gas Transmission and Storage, Inc., 195 FERC – 61,218 (2026).

Table 1.11-1.
Resource-Specific Geographic Scope for New Project Facilities

Resource	Geographic Scope Boundary	Geographic Scope Rationale
Soils and Geology	Construction workspaces	Geologic conditions and potential resources occur within site-specific locales and are generally not affected by activities occurring outside or adjacent to the designated work area. Cumulative impacts would only occur if other geographically overlapping or abutting projects were constructed at the same time as the proposed Project.
Groundwater, Vegetation, Wildlife	Hydrologic Unit Code (HUC) 12 Watershed (30500032106 and 130401000101	Watersheds are well-defined, published natural boundaries for surface water flow, and commonly contribute to the recharge of groundwater resources. Vegetation and wildlife possess an interconnected relationship to water resources. Thus, contributions towards cumulative impacts on groundwater, wetlands, vegetation, and wildlife were assessed within the West Tularosa Valley HUC-12 watershed and the Rattlesnake Tanks HUC-12 watershed.
Land Use	One mile from Project workspaces	Project impact on general land uses will be restricted to the construction workspaces; therefore, the geographic scope for land use is a one-mile buffer from the Project work areas.
Visual	0.5 mile	The geographic scope used for assessing contributions to viewsheds is based on topography and screening by structures and trees.
Noise - Construction	Other facilities that would impact a noise sensitive area (NSA), up to 0.25 mile	The geographic scope for assessing potential cumulative impacts on noise was determined to be areas within the immediate proximity of the construction activities (0.25 mile) and that are within the same temporal scope (active construction period as the Project).
Noise - Operations	Other facilities that would impact an NSA, up to one mile	The geographic scope for assessing potential cumulative impacts on noise at the NSAs up to one mile if other projects would also affect these same NSAs.
Socioeconomics	El Paso County	Impacts related to construction activities would potentially affect income and employment at the county level.
Air Quality - Construction	0.25 mile during construction	Due to the limited amount of emissions generated by construction equipment, the geographic scope used to assess potential cumulative impacts to air quality from construction activities was set at 0.25 mile.
Air Quality - Operations	50 kilometers (approximately 31.1 miles) during operation	N/A – No impacts anticipated

Table 1.11-2.
Other Activities in the Vicinity of the Proposed Project

Company	Project Name	Description	Size (miles or acres)	Anticipated Construction Date/Project Status	Distance from the Project (miles)	Reference/ FERC Docket No. (if applicable)	Geographic Scope
Texas Department of Transportation	TxDOT Borderland Expressway (formerly Northeast Parkway)	The purpose of the proposed project is to address regional system linkage and system capacity by providing an alternate route to I-10. The proposed Borderland Expressway would complete a route around the northeast side of El Paso suitable for truck and other through traffic, diverting traffic from the city center.	10.8 miles	ongoing	Intersects the Project	N/A	Soils, Geology and Land Use: Slightly less than 1 acre of Project workspace overlaps. EPNG is installing the McCloud Lateral via bored crossing in consideration of construction of the highway project. No significant cumulative impacts are anticipated due to the small overlap. EPNG impacts are temporary. Air Quality: Some short-term impacts may occur during construction; however, no significant impacts anticipated. Therefore, no cumulative impacts are anticipated.

Table 1.11-2.
Other Activities in the Vicinity of the Proposed Project

Company	Project Name	Description	Size (miles or acres)	Anticipated Construction Date/Project Status	Distance from the Project (miles)	Reference/ FERC Docket No. (if applicable)	Geographic Scope
Wurldwide, LLC	Data Center	AI Data Center	Approximately 950 acres	Construction ongoing	Approximately 2.75 miles of the Project (north of Stan Roberts Sr. Ave.) is sited immediately adjacent to the data center.		Soils, Geology and Land Use: There is no overlap Project workspace. EPNG is installing this Project to directly support the data center. No significant cumulative impacts are anticipated due construction of the pipeline. EPNG impacts are temporary. Air Quality: Some short-term impacts may occur during construction; however, no significant impacts anticipated. Therefore, no cumulative impacts are anticipated. Socioeconomics Activities occurred within the same county and adjacent to the proposed project. EPNG's Project is anticipated to be completed within 3-4 months compared to a longer construction timeline of the data center.

Table 1.11-2.
Other Activities in the Vicinity of the Proposed Project

Company	Project Name	Description	Size (miles or acres)	Anticipated Construction Date/Project Status	Distance from the Project (miles)	Reference/ FERC Docket No. (if applicable)	Geographic Scope
El Paso Electric	McCloud Generation Station	366 MW electric generating station purpose built to support the data center.	31 acres	2027	Adjacent to the proposed McCloud Meter Station		Soils, Geology and Land Use: There is no overlap Project workspace. Both projects are proposed to directly support the data center. No significant cumulative impacts are anticipated due to construction of the pipeline and associated facilities. The minimal impacts associated with the Project's above ground facilities are approximately 1.5 acres. Air Quality: Some short-term impacts may occur during construction; however, EPNG's Project will not result in a significant contribution to operational impacts. Therefore, no cumulative impacts resulting from the McCloud Meter Station are anticipated.

1.11.1 Geology and Soils

Project construction is expected to have a temporary but direct impact on near-surface geology and soils. Clearing and grading associated with Project construction and any other projects could accelerate the soil erosion process. Minimization of soil impacts during construction will be accomplished by implementing measures outlined in the FERC Plan and the FERC Procedures. Should hazardous materials or contaminated soils and/or sediments be encountered during Project construction, they will be disposed of at fully licensed and permitted disposal facilities in accordance with applicable state and federal laws and regulations. As a result, the cumulative impacts resulting from the construction of the Project on geological resources, soils, and sediments are expected to be temporary and minor.

1.11.2 Wetland and Waterbody Resources

Based on the biological field survey completed in April 2026, only two ephemeral streams were identified within the Project area. Erosion control measures will be installed in accordance with the Project SWPPP, and the FERC Plan and the FERC Procedures for waterbody resources. Therefore, cumulative impacts on aquatic resources will not occur and cumulative impacts are not expected.

1.11.3 Vegetation and Wildlife

When projects are constructed at or near the same time, the combination of construction activities could have a cumulative impact on vegetation and wildlife in the immediate area. Clearing and grading and other construction activities associated with the projects could result in the removal of various vegetative cover types, alteration of wildlife habitat, and displacement of wildlife.

The total amount of vegetation that may be affected by this Project is relatively minor compared to the overarching size of the other proposed projects and compared to the abundance of similar vegetation cover types and wildlife habitats surrounding the Project area. As part of this Project's permit conditions, mitigation measures will be implemented to minimize the potential for erosion, revegetate disturbed areas, increase the stabilization of site conditions, and control the spread of noxious weeds. Therefore, the degree and duration of the cumulative impacts on vegetation and terrestrial wildlife resulting from this project will be minimized.

1.11.4 Land Use and Visual Resources

The Project is in a highly urbanized area north of El Paso that is undergoing significant development. Construction and operation of the Project will result in no impacts to active agricultural land, forested land/woodland or open water. In general, impacts resulting from construction of the Project will be primarily short-term and limited to the construction period. Cumulative impacts on land use and visual resources are not expected as the direct impacts from the Project will be localized and limited primarily to the period of construction.

Given that the Project will result in minimal permanent impacts to land use, the Project's contributions to cumulative impacts on land use and visual resources are expected to be minor and temporary.

1.11.5 Socioeconomics

Project construction would have a negligible impact on the population of El Paso County. Construction will overlap or be adjacent to other much larger projects in El Paso County. Based on the limited scope of the Project and the short construction schedule, impacts on employment and incomes in the county are not expected. Based on the limited workforce required for the Project, any cumulative impacts would be negligible.

1.11.6 Air Quality and Noise

Project construction is expected to result in temporary, negligible to minor, localized increases in emissions of pollutants due to fugitive dust and operation of construction equipment. EPNG will minimize construction emissions by following standard best management practices that include keeping equipment maintained, limiting idling by operating equipment on an as-needed basis, watering exposed soil surfaces, and implementing erosion controls. Noise associated with construction activities will be temporary and intermittent, depending on the specific activities conducted at any given time during construction. Although multiple projects are or may be active simultaneously, those projects would be required to implement similar mitigation measures in accordance with applicable permits. Based on the short-term and temporary nature of construction-related activities, EPNG's commitment to construct primarily during daytime hours, and the likelihood that similar measures would be implemented for other projects in the area, impacts from the Project are not expected to significantly contribute to cumulative impacts on air quality or noise levels during construction.

As further discussed in Resource Report 9, operational emissions of air pollutants are expected to be limited to localized fugitive releases from valves and piping components. These fugitive releases are not expected to affect local or regional air quality. The Project is not expected to contribute significantly to overlapping noise impacts with past, present, or reasonably foreseeable future projects. Therefore, impacts from the Project are not expected to significantly contribute to cumulative impacts on air quality or noise levels during operations.

Given the limited scope of the proposed Project, EPNG's measures to avoid and minimize environmental impacts, the Project is not expected to contribute significantly to any cumulative impacts.

1.12 REFERENCES

Federal Energy Regulatory Commission (FERC). 2013a. Office of Energy Projects. Upland Erosion Control, Revegetation, and Maintenance Plan. Available at: chrome-extension://efaidnbmnnnibpcajpcglclefindmkaj/https://www.ferc.gov/sites/default/files/2020-04/upland-erosion-control-revegetation-maintenance-plan.pdf. Accessed April 2026.

_____. 2013b. Office of Energy Projects. Wetland and Waterbody Construction and Mitigation Procedures. Available at: chrome-extension://efaidnbmnnnibpcajpcglclefindmkaj/https://www.ferc.gov/sites/default/files/2020-04/wetland-waterbody-construction-mitigation-procedures.pdf. Accessed April 2026.

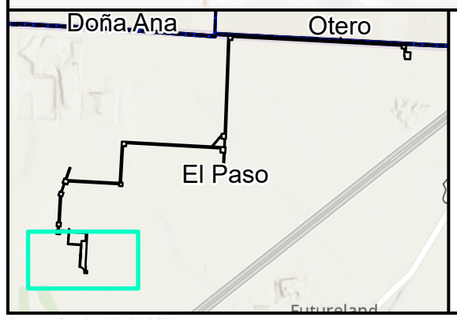
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Appendix 1A

Topographic Maps

CALIFORNIA PIPELINE RD

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- Pipeline Centerline
- Limit of Disturbance

Temporary Workspace
- Additional Temporary Workspace
- Temporary Workspace

Permanent Workspace
- Permanent Access Road
- Launcher/Reciever ROW
- Lateral Permanent Easement

0 50 100 Meters

0 260 520 Feet

Scale: 1:4,000

Spatial Reference: NAD 1983 2011 StatePlane Texas Central FIPS 4203 Ft

Basemap: ESRI, USGS Topographic (2026)

SHEET 1 OF 9

Topographic Mapping of Project Facilities

Figure 1A-1

McCloud Lateral

El Paso County, Texas

Prepared For: El Paso Natural Gas Company, L.L.C. a Kinder Morgan company

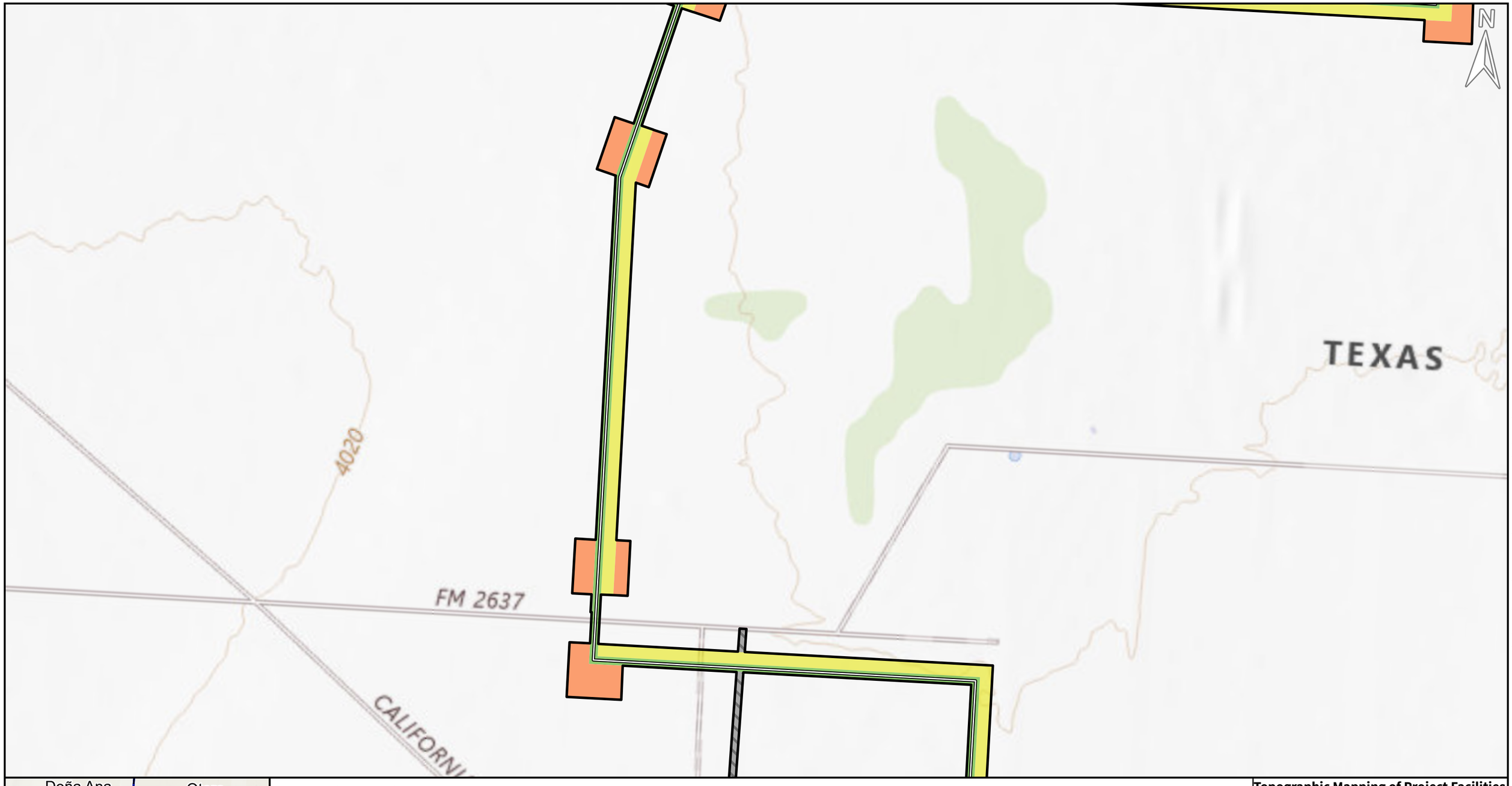
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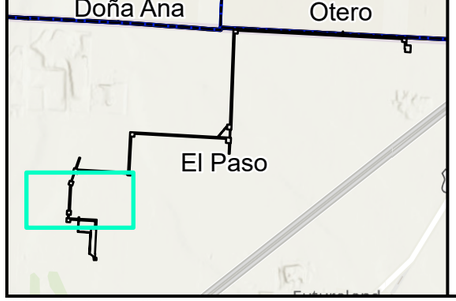
Cartographer: DANIELLE.DOOTY

NOT FOR CONSTRUCTION

Date: 7/2/2026

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- Pipeline Centerline
- Limit of Disturbance

Temporary Workspace
- Additional Temporary Workspace
- Temporary Workspace

Permanent Workspace
- Permanent Access Road
- Lateral Permanent Easement

0 50 100 Meters

0 260 520 Feet

Scale: 1:4,000

Spatial Reference: NAD 1983 2011 StatePlane Texas Central FIPS 4203 Ft

Basemap: ESRI, USGS Topographic (2026)

SHEET 2 OF 9

Topographic Mapping of Project Facilities

Figure 1A-1

McCloud Lateral

El Paso County, Texas

Prepared For: El Paso Natural Gas Company, L.L.C. a Kinder Morgan company

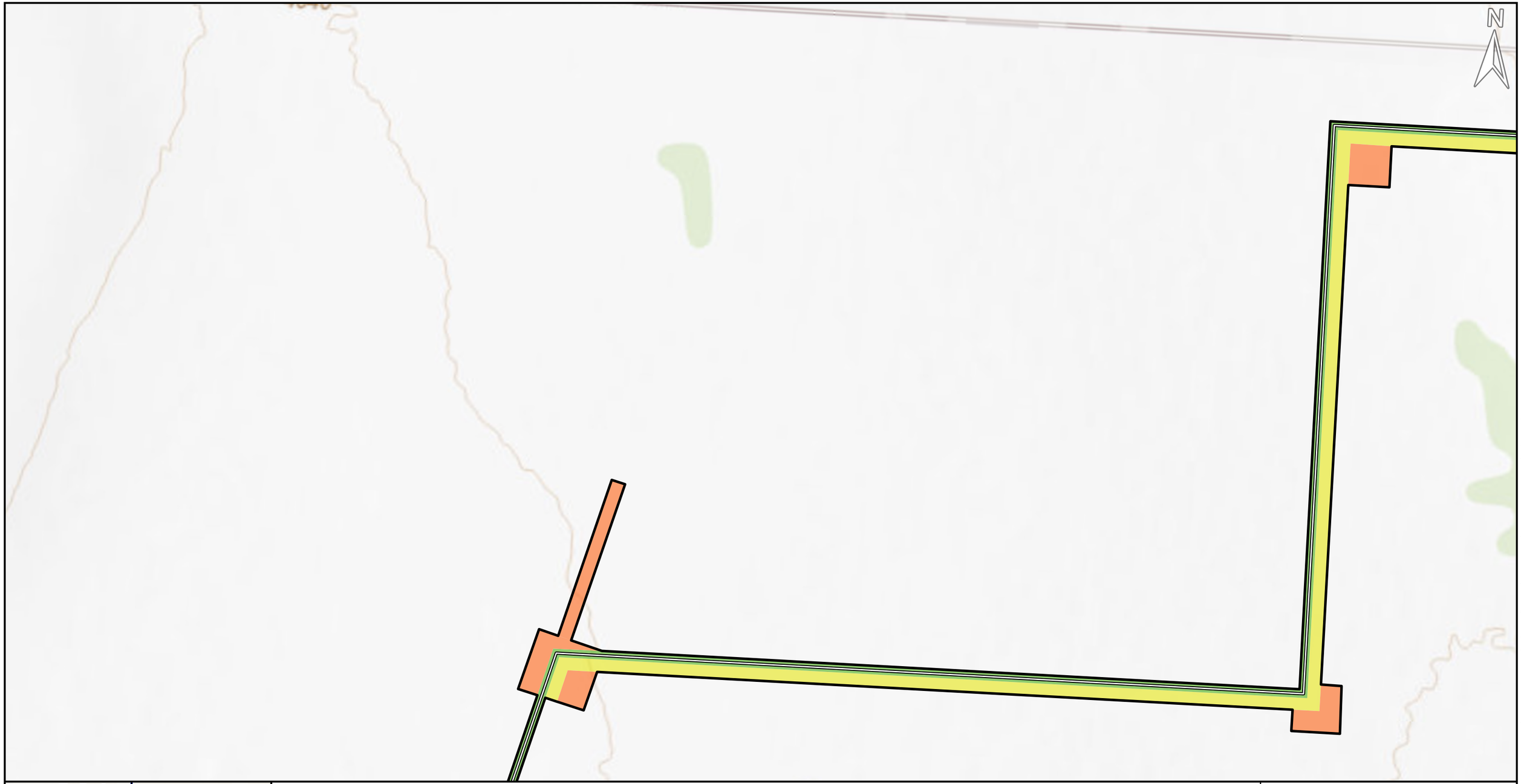
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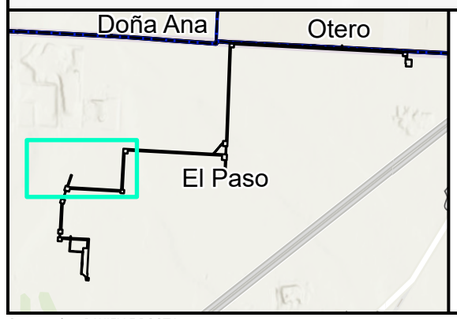
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Date: 7/2/2026

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Pipeline Centerline

Limit of Disturbance

Temporary Workspace

Additional Temporary Workspace

Temporary Workspace

Permanent Workspace

Lateral Permanent Easement

0 50 100
Meters

0 260 520
Feet

Scale: 1:4,000

Spatial Reference: NAD 1983 2011 StatePlane Texas Central FIPS 4203 Ft

Basemap: ESRI, USGS Topographic (2026)

SHEET 3 OF 9

Topographic Mapping of Project Facilities

Figure 1A-1

McCloud Lateral

El Paso County, Texas

Prepared For: El Paso Natural Gas Company, L.L.C. a Kinder Morgan company

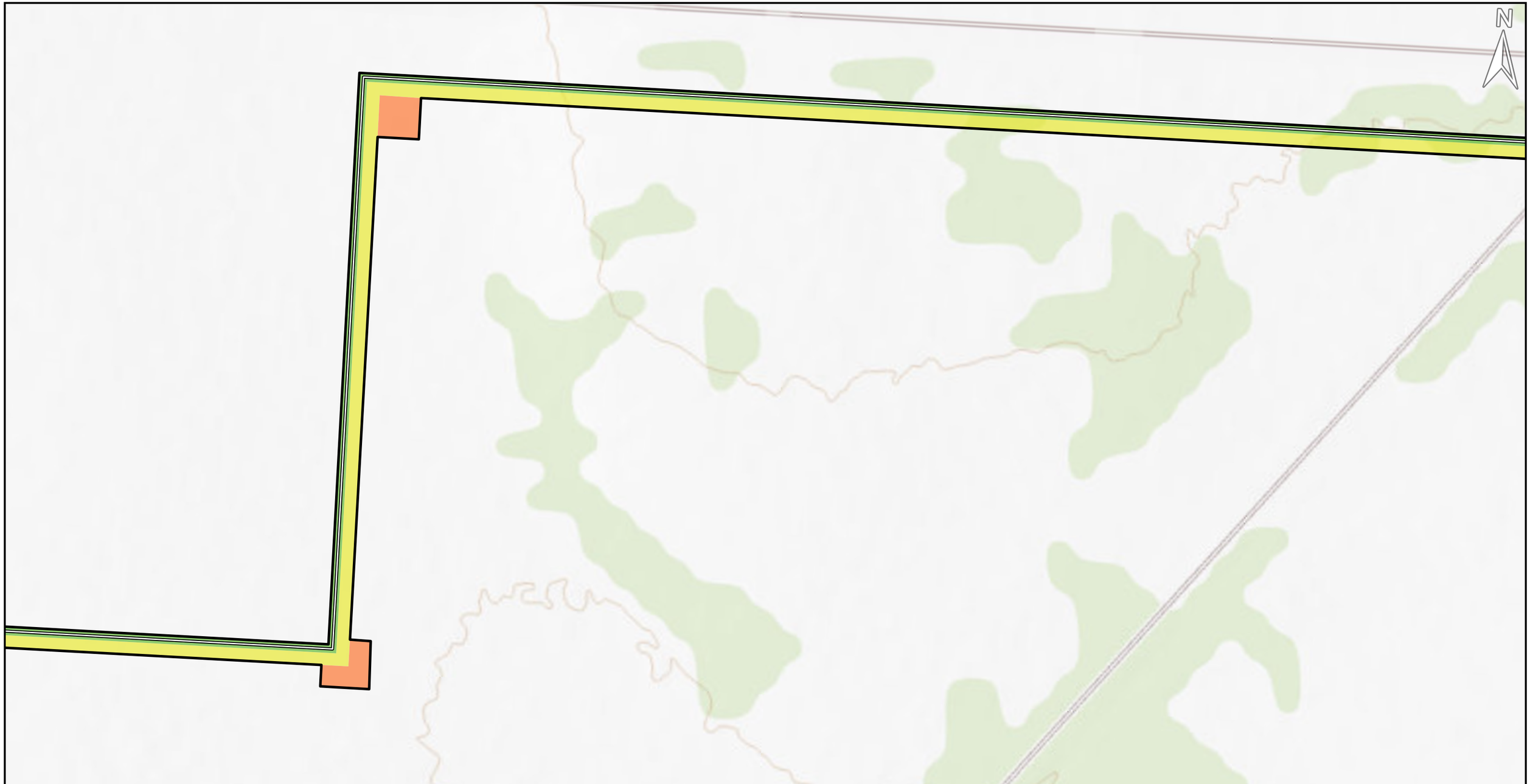
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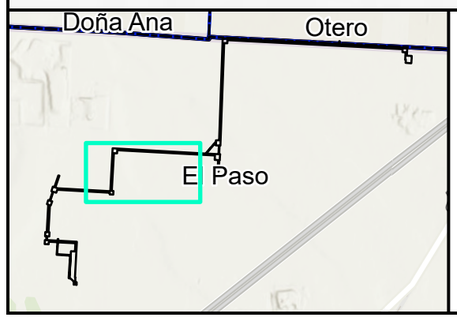
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NOT FOR CONSTRUCTION

Date: 7/2/2026

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Pipeline Centerline

Limit of Disturbance

Temporary Workspace

Additional Temporary Workspace

Temporary Workspace

Permanent Workspace

Lateral Permanent Easement

0 50 100
Meters

0 260 520
Feet

Scale: 1:4,000

Spatial Reference: NAD 1983 2011 StatePlane Texas Central FIPS 4203 Ft

Basemap: ESRI, USGS Topographic (2026)

SHEET 4 OF 9

Topographic Mapping of Project Facilities

Figure 1A-1

McCloud Lateral

El Paso County, Texas

Prepared For: El Paso Natural Gas Company, L.L.C. a Kinder Morgan company

Prepared By: TETRA TECH

Cartographer: DANIELLE.DOOTY

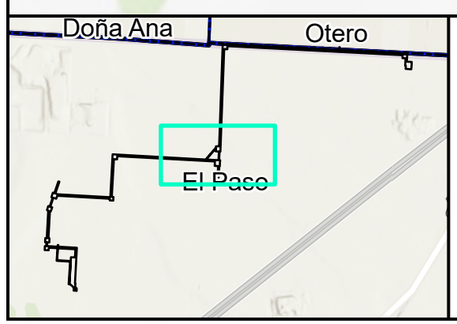
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STAN ROBERTS SR AVE



- Pipeline Centerline
- Limit of Disturbance

Temporary Workspace
- Additional Temporary Workspace
- Temporary Workspace

Permanent Workspace
- Permanent Access Road
- Lateral Permanent Easement

0 50 100
Meters

0 260 520
Feet

Scale: 1:4,000

Spatial Reference: NAD 1983 2011 StatePlane Texas Central FIPS 4203 Ft

Basemap: ESRI, USGS Topographic (2026)

SHEET 5 OF 9

Topographic Mapping of Project Facilities

Figure 1A-1

McCloud Lateral

El Paso County, Texas

Prepared For: El Paso Natural Gas Company, L.L.C. a Kinder Morgan company

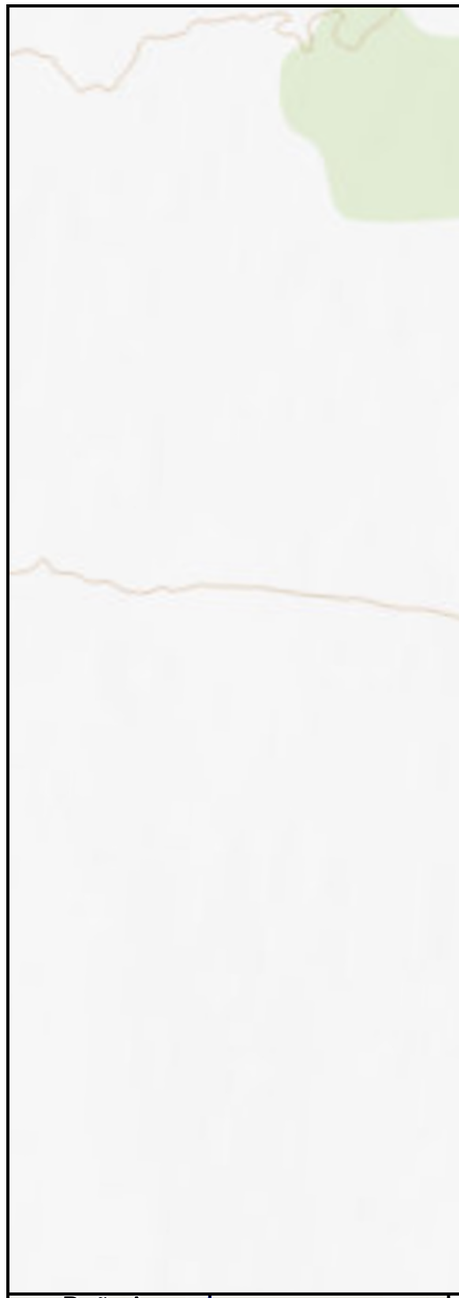
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Date: 7/2/2026

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Pipeline Centerline

Limit of Disturbance

Temporary Workspace

Temporary Workspace

Permanent Workspace

Lateral Permanent Easement

0 50 100
Meters

0 260 520
Feet

Scale: 1:4,000

Spatial Reference: NAD 1983 2011 StatePlane Texas Central FIPS 4203 Ft

Basemap: ESRI, USGS Topographic (2026)

SHEET 6 OF 9

Topographic Mapping of Project Facilities

Figure 1A-1

McCloud Lateral

El Paso County, Texas

Prepared For: El Paso Natural Gas Company, L.L.C. a Kinder Morgan company

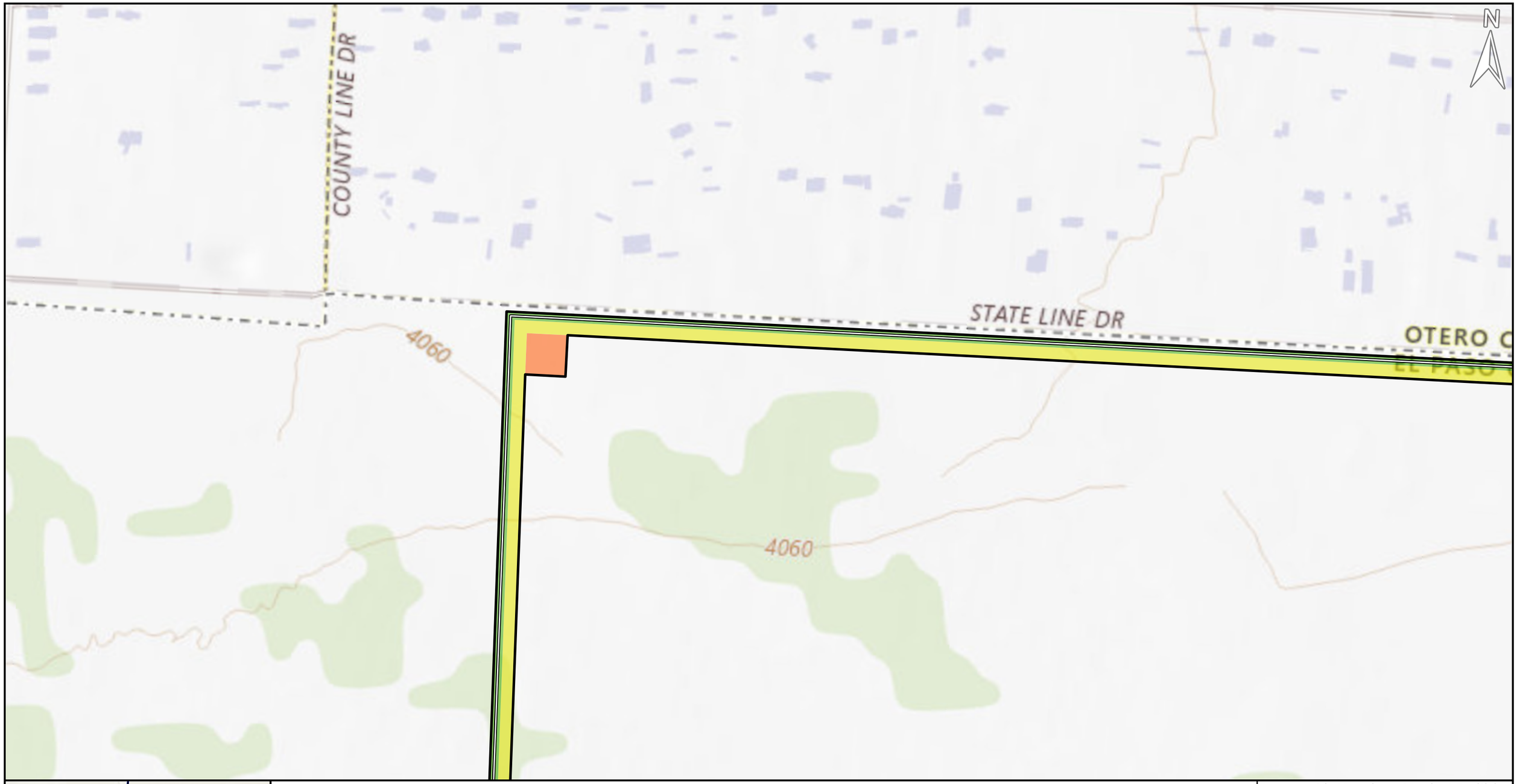
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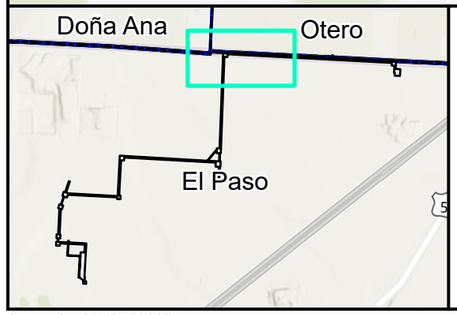
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NOT FOR CONSTRUCTION

Date: 7/2/2026

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Pipeline Centerline

Limit of Disturbance

Temporary Workspace

Additional Temporary Workspace

Temporary Workspace

Permanent Workspace

Lateral Permanent Easement

0 50 100 Meters

0 260 520 Feet

Scale: 1:4,000

Spatial Reference: NAD 1983 2011 StatePlane Texas Central FIPS 4203 Ft

Basemap: ESRI, USGS Topographic (2026)

SHEET 7 OF 9

Topographic Mapping of Project Facilities

Figure 1A-1

McCloud Lateral

El Paso County, Texas

Prepared For: El Paso Natural Gas Company, L.L.C. a Kinder Morgan company

Prepared By: TETRA TECH

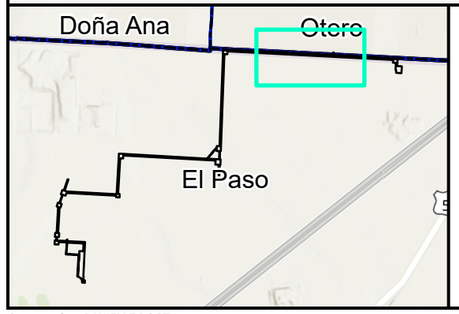
Cartographer: DANIELLE.DOOTY

NOT FOR CONSTRUCTION

Date: 7/2/2026

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Pipeline Centerline
Limit of Disturbance

Temporary Workspace

Temporary Workspace

Permanent Workspace

Permanent Access Road
Lateral Permanent Easement

0 50 100
Meters

0 260 520
Feet

Scale: 1:4,000

Spatial Reference: NAD 1983 2011 StatePlane Texas Central FIPS 4203 Ft

Basemap: ESRI, USGS Topographic (2026)

SHEET 8 OF 9

Topographic Mapping of Project Facilities

Figure 1A-1

McCloud Lateral

El Paso County, Texas

Prepared For: El Paso Natural Gas Company, L.L.C. a Kinder Morgan company

Prepared By: TETRA TECH

Cartographer: DANIELLE.DOOTY

NOT FOR CONSTRUCTION

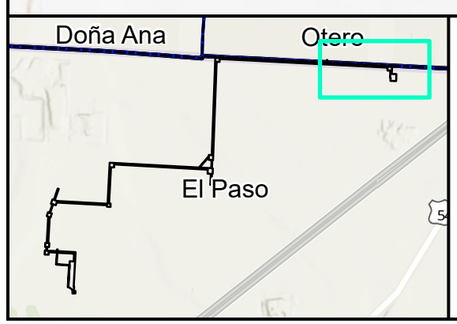
Date: 7/2/2026

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STATE LINE DR

OTERO COUNTY
EL PASO COUNTY

N



- Pipeline Centerline
- Limit of Disturbance

Temporary Workspace
- Additional Temporary Workspace
- Temporary Workspace

Permanent Workspace
- McCloud Meter Station
- Launcher/Reciever ROW
- Lateral Permanent Easement

0 50 100
Meters

0 260 520
Feet

Scale: 1:4,000

Spatial Reference: NAD 1983 2011 StatePlane Texas Central FIPS 4203 Ft

Basemap: ESRI, USGS Topographic (2026)

SHEET 9 OF 9

Topographic Mapping of Project Facilities

Figure 1A-1

McCloud Lateral

El Paso County, Texas

Prepared For: El Paso Natural Gas Company, L.L.C. a Kinder Morgan company

Prepared By: TETRA TECH

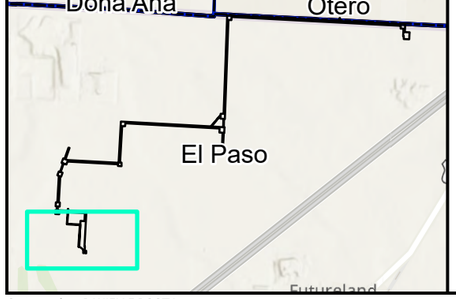
Cartographer: DANIELLE.DOOTY

NOT FOR CONSTRUCTION

Date: 7/2/2026

C:\Users\danielle.dooty\Tetra Tech, Inc\My Data Science - My Projects\2C_PHL\0795_McCloud_Lateral\GIS Files\ArcGIS Pro\McCloud_Lateral.aprx





Pipeline Centerline
Limit of Disturbance

Temporary Workspace
- Additional Temporary Workspace
- Temporary Workspace

Permanent Workspace
- Permanent Access Road
- Launcher/Reciever ROW
- Lateral Permanent Easement

0 50 100
Meters

0 260 520
Feet

Scale: 1:4,000

Spatial Reference: NAD 1983 2011 StatePlane Texas Central FIPS 4203 Ft

Basemap: ESRI, World Imagery (2025)

SHEET 1 OF 9

Aerial Mapping of Project Facilities

Figure 1A-2

McCloud Lateral

El Paso County, Texas

Prepared For: El Paso Natural Gas Company, L.L.C. a Kinder Morgan company

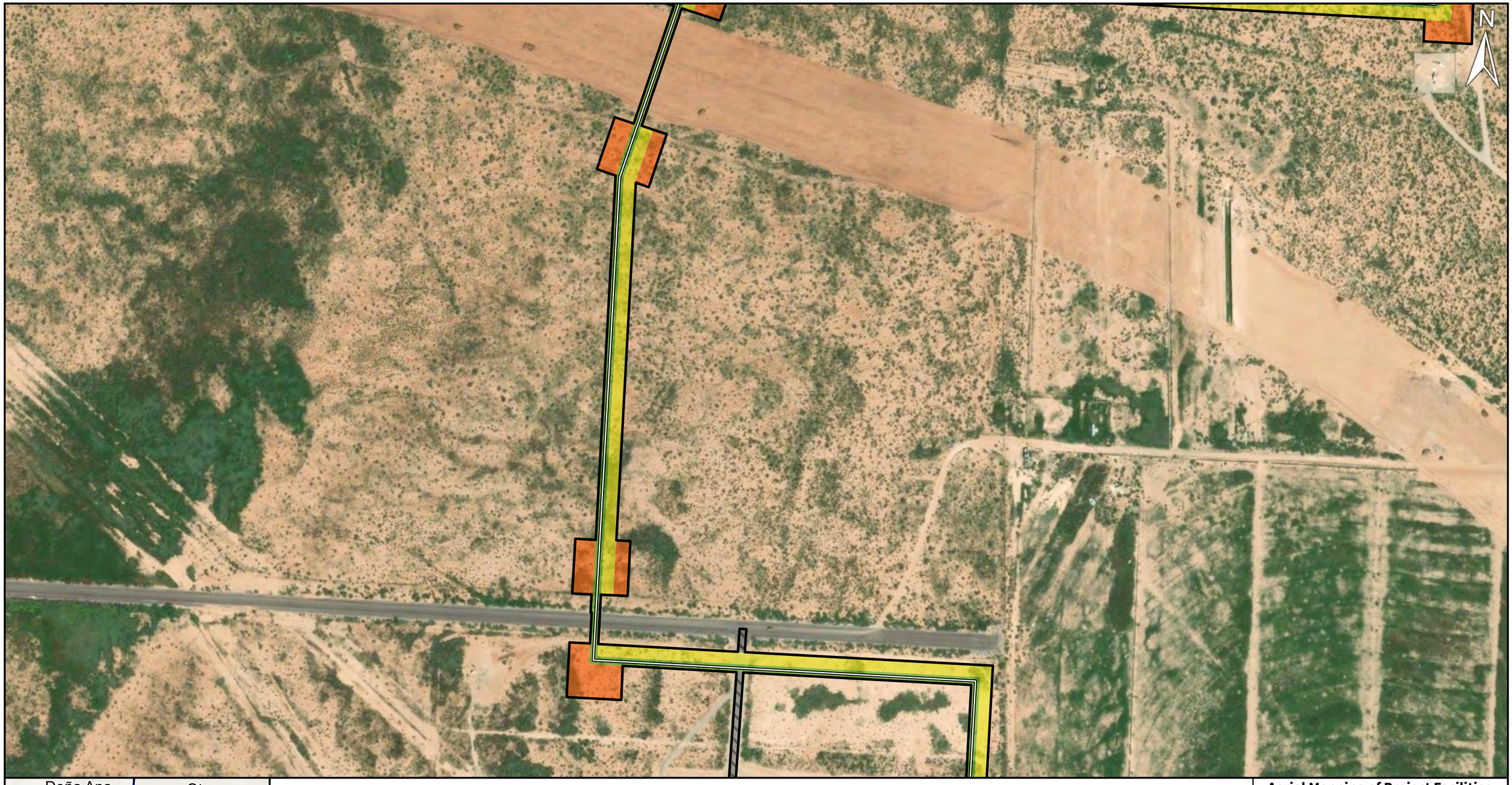
Prepared By: TETRA TECH

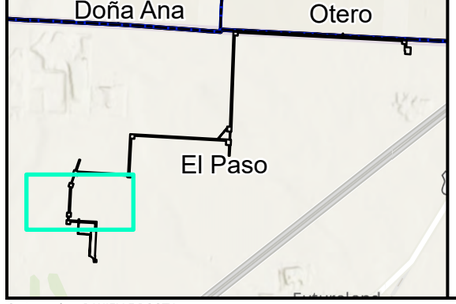
Cartographer: DANIELLE.DOOTY

NOT FOR CONSTRUCTION

Date: 7/2/2026

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Pipeline Centerline

Limit of Disturbance

Temporary Workspace

Additional Temporary Workspace

Temporary Workspace

Permanent Workspace

Permanent Access Road

Lateral Permanent Easement

0 50 100
Meters

0 260 520
Feet

Scale: 1:4,000

Spatial Reference: NAD 1983 2011 StatePlane Texas Central FIPS 4203 Ft

Basemap: ESRI, World Imagery (2025)

SHEET 2 OF 9

Aerial Mapping of Project Facilities

Figure 1A-2

McCloud Lateral

El Paso County, Texas

Prepared For: El Paso Natural Gas Company, L.L.C. a Kinder Morgan company

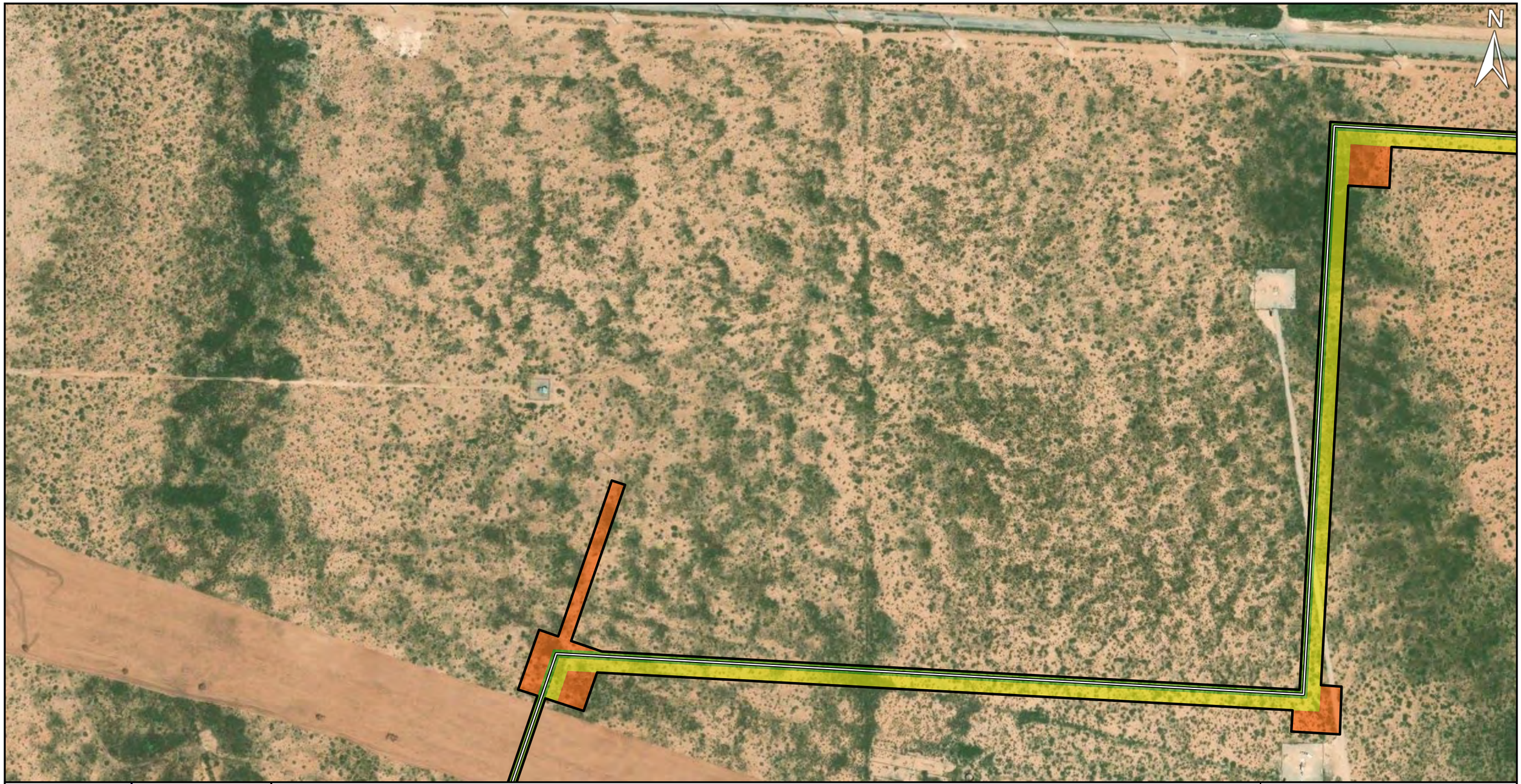
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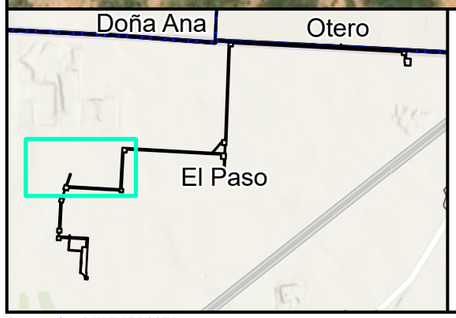
Cartographer: DANIELLE.DOOTY

NOT FOR CONSTRUCTION

Date: 7/2/2026

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Pipeline Centerline

Limit of Disturbance

Temporary Workspace

Additional Temporary Workspace

Temporary Workspace

Permanent Workspace

Lateral Permanent Easement

0 50 100
Meters

0 260 520
Feet

Scale: 1:4,000

Spatial Reference: NAD 1983 2011 StatePlane Texas Central FIPS 4203 Ft

Basemap: ESRI, World Imagery (2025)

SHEET 3 OF 9

Aerial Mapping of Project Facilities

Figure 1A-2

McCloud Lateral

El Paso County, Texas

Prepared For: El Paso Natural Gas Company, L.L.C. a Kinder Morgan company

Prepared By: TETRA TECH

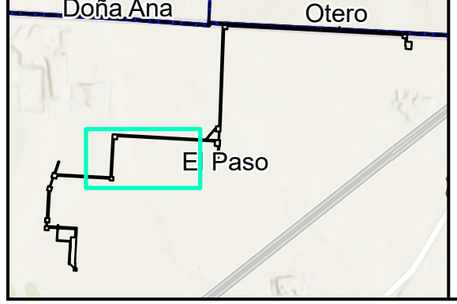
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Date: 7/2/2026

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Pipeline Centerline
Limit of Disturbance

Temporary Workspace
Additional Temporary Workspace
Temporary Workspace

Permanent Workspace
Lateral Permanent Easement

0 50 100 Meters
0 260 520 Feet

Scale: 1:4,000

Spatial Reference: NAD 1983 2011 StatePlane Texas Central FIPS 4203 Ft

Basemap: ESRI, World Imagery (2025)

SHEET 4 OF 9

Aerial Mapping of Project Facilities

Figure 1A-2

McCloud Lateral

El Paso County, Texas

Prepared For: El Paso Natural Gas Company, L.L.C. a Kinder Morgan company

Prepared By: TETRA TECH

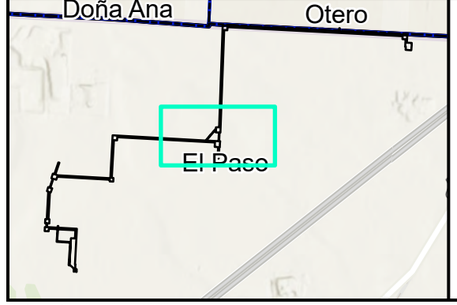
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NOT FOR CONSTRUCTION

Date: 7/2/2026

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Pipeline Centerline

Limit of Disturbance

Temporary Workspace

Additional Temporary Workspace

Temporary Workspace

Permanent Workspace

Permanent Access Road

Lateral Permanent Easement

0 50 100
Meters

0 260 520
Feet

Scale: 1:4,000

Spatial Reference: NAD 1983 2011 StatePlane Texas Central FIPS 4203 Ft

Basemap: ESRI, World Imagery (2025)

SHEET 5 OF 9

Aerial Mapping of Project Facilities

Figure 1A-2

McCloud Lateral

El Paso County, Texas

Prepared For: El Paso Natural Gas Company, L.L.C. a Kinder Morgan company

Prepared By: TETRA TECH

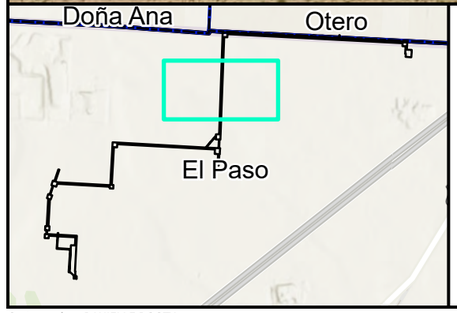
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NOT FOR CONSTRUCTION

Date: 7/2/2026

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Pipeline Centerline

Limit of Disturbance

Temporary Workspace

Temporary Workspace

Permanent Workspace

Lateral Permanent Easement

0 50 100 Meters

0 260 520 Feet

Scale: 1:4,000

Spatial Reference: NAD 1983 2011 StatePlane Texas Central FIPS 4203 Ft

Basemap: ESRI, World Imagery (2025)

SHEET 6 OF 9

Aerial Mapping of Project Facilities

Figure 1A-2

McCloud Lateral

El Paso County, Texas

Prepared For: El Paso Natural Gas Company, L.L.C. a Kinder Morgan company

Prepared By: TETRA TECH

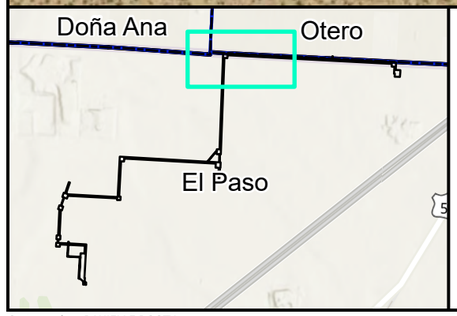
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NOT FOR CONSTRUCTION

Date: 7/2/2026

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Pipeline Centerline

Limit of Disturbance

Temporary Workspace

Additional Temporary Workspace

Temporary Workspace

Permanent Workspace

Lateral Permanent Easement

0 50 100
Meters

0 260 520
Feet

Scale: 1:4,000

Spatial Reference: NAD 1983 2011 StatePlane Texas Central FIPS 4203 Ft

Basemap: ESRI, World Imagery (2025)

SHEET 7 OF 9

Aerial Mapping of Project Facilities

Figure 1A-2

McCloud Lateral

El Paso County, Texas

Prepared For: El Paso Natural Gas Company, L.L.C. a Kinder Morgan company

Prepared By: TETRA TECH

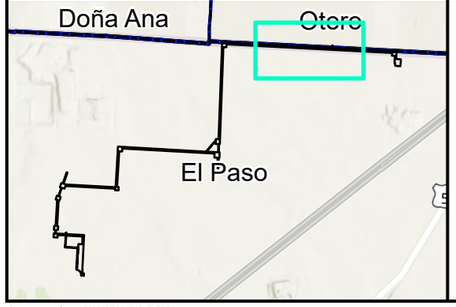
Cartographer: DANIELLE.DOOTY

NOT FOR CONSTRUCTION

Date: 7/2/2026

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Pipeline Centerline
Limit of Disturbance

Temporary Workspace
Temporary Workspace

Permanent Workspace
Permanent Access Road
Lateral Permanent Easement

0 50 100
Meters

0 260 520
Feet

Scale: 1:4,000

Spatial Reference: NAD 1983 2011 StatePlane Texas Central FIPS 4203 Ft

Basemap: ESRI, World Imagery (2025)

SHEET 8 OF 9

Aerial Mapping of Project Facilities
Figure 1A-2
McCloud Lateral
El Paso County, Texas

Prepared For: El Paso Natural Gas Company, L.L.C. a Kinder Morgan company

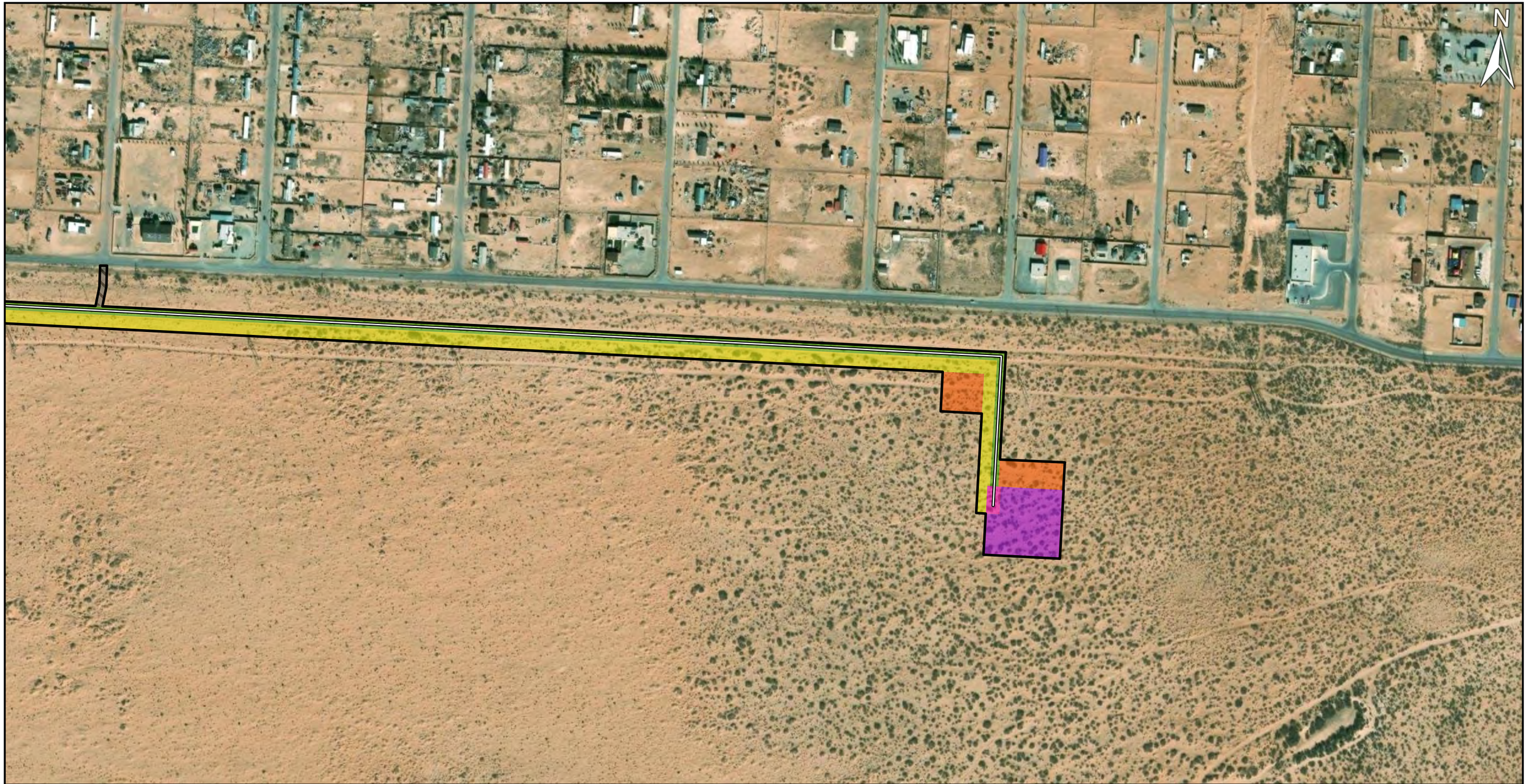
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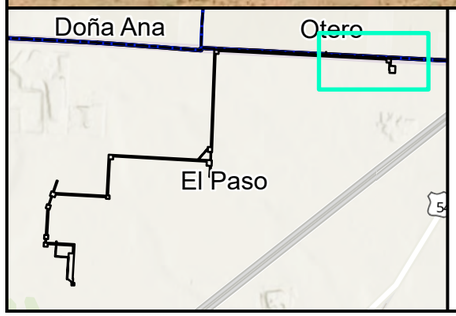
Cartographer: DANIELLE.DOOTY

NOT FOR CONSTRUCTION

Date: 7/2/2026

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Pipeline Centerline
Limit of Disturbance

Temporary Workspace
Additional Temporary Workspace
Temporary Workspace

Permanent Workspace
McCloud Meter Station
Launcher/Reciever ROW
Lateral Permanent Easement

0 50 100
Meters

0 260 520
Feet

Scale: 1:4,000

Spatial Reference: NAD 1983 2011 StatePlane Texas Central FIPS 4203 Ft

Basemap: ESRI, World Imagery (2025)

SHEET 9 OF 9

Aerial Mapping of Project Facilities

Figure 1A-2

McCloud Lateral

El Paso County, Texas

Prepared For: El Paso Natural Gas Company, L.L.C. a Kinder Morgan company

Prepared By: TETRA TECH

Cartographer: DANIELLE.DOOTY

NOT FOR CONSTRUCTION

Date: 7/2/2026

Path: C:\Users\danielle.dooty\Tetra Tech, Inc\My Data Science - NM PCP\125-NM\03-PROJECTS\McCloud Lateral\GIS\MXD\McCloud_Lateral.aprx

Appendix 1B1

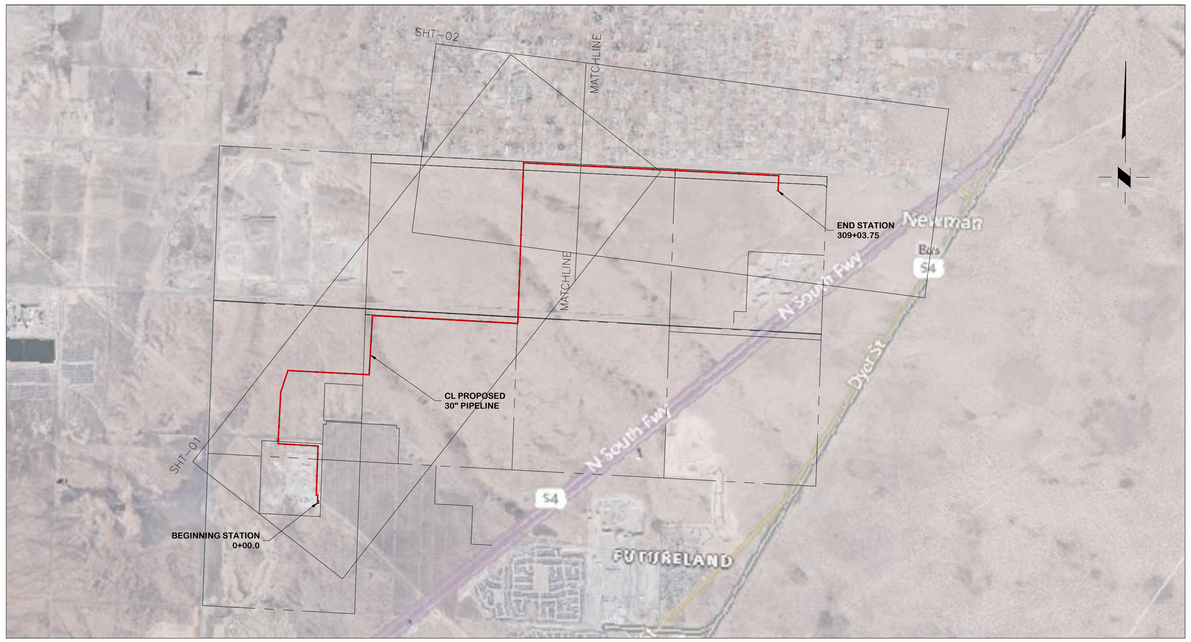
Aerial Photo-based Construction Drawings
Public

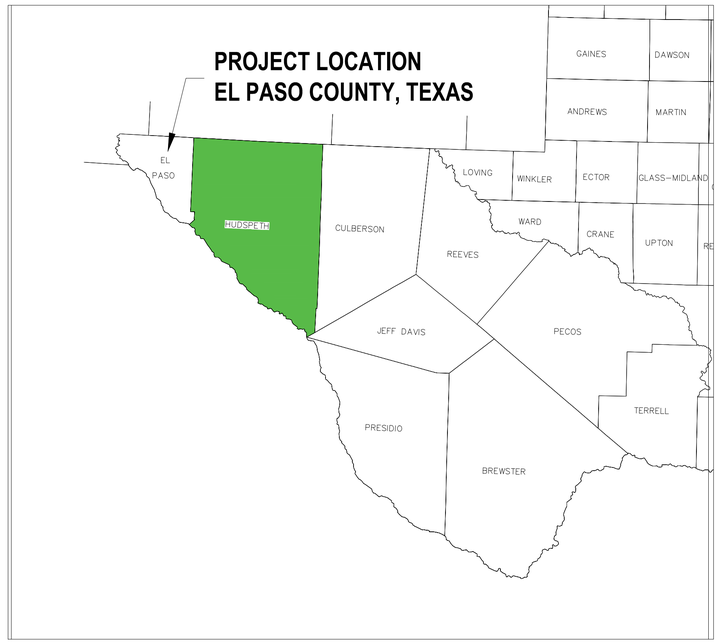
KINDER MORGAN
MCCLOUD LATERAL PROJECT LINE 01108
PROPOSED 16" PIPELINE

AFE# 244427

JULY 28, 2026

EL PASO COUNTY, TEXAS





INDEX

DRAWING NO. 01108
DESCRIPTION:

1	COVER
2	PLAN AND PROFILE STA. 0+00.0 - 234+94.54
3	PLAN AND PROFILE STA. 234+94.54 - 309+03.75

ISSUED FOR REVIEW

Texas 811

CALL BEFORE YOU DIG

PREPARED BY:

RRC ENERGY SERVICES, LLC.

810 Hesters Crossing Rd
Suite 120, Round Rock, TX 78681
Firm Registration No. 10194422

COUNTY & STATE

EL PASO COUNTY, TEXAS

OWNERSHIP & TRACT NO.

1	2	3	4	5	6	7	8	9
3494.82'	119.98'	1816.21'	350.02'	2803.61'	7298.34'	229.89'	5115.98'	2172.86'

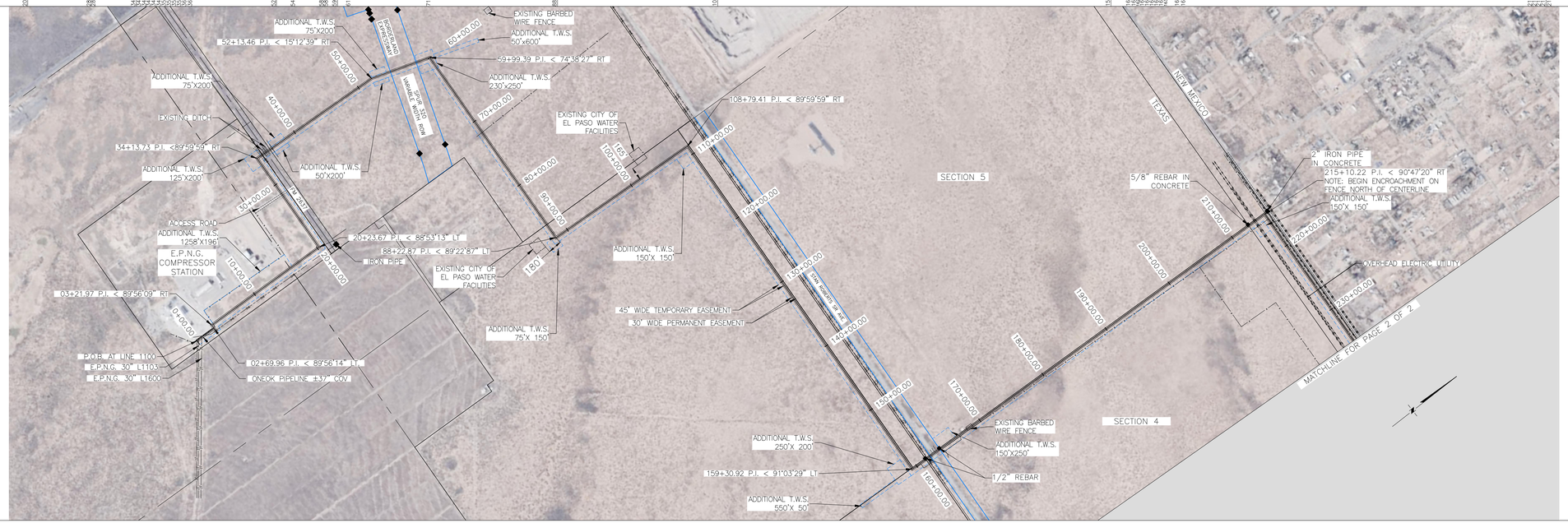
STATIONING

0+00.00 POB AT LINE 1100
0+00.00 EPNG 30" LINE 1100
0+00.00 EPNG 30" LINE 1600
0+00.00 OVERHEAD ELEC. UTILITY
0+00.00 BARBED WIRE FENCE
0+00.00 EPNG 30" LINE 1103
1+16.00 EPNG 30" LINE 1600
2+34.82 EPNG 30" LINE 1103
3+21.97 P.I. < 89°56'09" RT
4+00.00 EPNG 30" LINE 1100
4+00.00 EPNG 30" LINE 1600
4+00.00 EPNG 30" LINE 1103
4+00.00 ONE-OK PIPELINE 2.37" OD
4+00.00 OVERHEAD ELEC. UTILITY
4+00.00 BARBED WIRE FENCE
4+69.96 P.I. < 89°56'14" LT
5+21.81 ACCESS ROAD
5+47.63 EPNG 30" LINE 1103
5+47.63 EPNG 30" LINE 1600
5+47.63 EPNG 30" LINE 1100
5+47.63 ONE-OK PIPELINE 2.37" OD
5+47.63 OVERHEAD ELEC. UTILITY
5+47.63 BARBED WIRE FENCE
20+23.67 P.I. <88°53'13" LT
34+13.73 P.I. <89°59'49" RT
34+63.84 ACCESS ROAD
34+63.84 EPNG 30" LINE 1103
34+63.84 EPNG 30" LINE 1600
34+63.84 EPNG 30" LINE 1100
34+63.84 ONE-OK PIPELINE 2.37" OD
34+63.84 OVERHEAD ELEC. UTILITY
34+63.84 BARBED WIRE FENCE
52+13.46 P.I. <15°12'39" RT
54+63.84 RIGHT OF WAY
59+99.39 P.I. < 74°38'27" RT
61+65.31 KMS
71+71.79 BARBED WIRE FENCE
86+17.47 BARBED WIRE FENCE
88+22.87 P.I. <89°22'87" LT
108+79.41 P.I. <89°59'59" RT
159+30.92 P.I. <91°03'29" LT
161+72.68 OVERHEAD ELEC. UTILITY
161+72.68 EPNG 30" LINE 1600
161+72.68 EPNG 30" LINE 1100
161+72.68 EPNG 30" LINE 1103
161+72.68 ONE-OK PIPELINE 2.37" OD
161+72.68 ROAD EDGE CROSSING
161+72.68 ACCESS ROAD
161+72.68 SOUTHWEST BORDERS SW AVE
167+98.27 BARBED WIRE FENCE
168+80.00 BARBED WIRE FENCE
212+61.68 OVERHEAD ELEC. UTILITY
212+61.68 EPNG 30" LINE 1600
212+61.68 EPNG 30" LINE 1100
212+61.68 EPNG 30" LINE 1103
212+61.68 ONE-OK PIPELINE 2.37" OD
212+61.68 BARBED WIRE FENCE
234+94.54

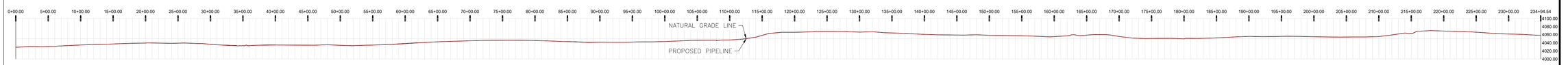
LEGEND

- FOUND MONUMENT
- SECTION LINE
- EXISTING PIPELINE
- PARCEL BOUNDARY
- PERMANENT EASEMENT
- TEMPORARY WORKSPACE (T.W.S.)
- CENTERLINE OF NEW PIPELINE
- GUARD RAIL/FENCE
- OHE OVERHEAD POWER LINE
- ROADWAY

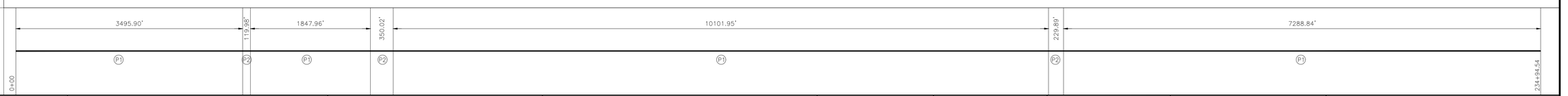
ALIGNMENT



PROFILE



PIPE DETAIL



GENERAL NOTES

1. ALL COORDINATES SHOWN HEREON ARE REFERENCED TO THE TEXAS CENTRAL COORDINATE SYSTEM OF 1983 (2011), EPOC 2010, CENTRAL ZONE (4203), US SURVEY FEET, GRID
2. ALL ELEVATIONS SHOWN HEREON ARE REFERENCED TO NAVD 88.
3. ALL DISTANCES CONTAINED HEREIN ARE (GRID) U.S. SURVEY FEET AND PASSED UPON ON THE GROUND SURVEY PERFORMED ON JULY 11, 2026.
4. RRC ENERGY SERVICES, LLC AND ITS CLIENTS MAKE NO REPRESENTATIONS OR WARRANTIES WITH REGARD TO THE LOCATION OR EXISTENCE OF UNDERGROUND UTILITIES, PIPELINES OR OBSTRUCTIONS. IT SHALL BE TO SOLE AND EXCLUSIVE RESPONSIBILITY OF CONTRACTOR TO IDENTIFY, LOCATE, AND COORDINATE WITH OWNERS DURING THE CROSSING OF ANY SUCH UNDERGROUND UTILITIES, PIPELINES AND OBSTRUCTIONS FROM DAMAGE DURING CONSTRUCTION.
5. ANY QUESTIONS CONCERNING THE PERMANENT EASEMENT, TEMP. WORKSPACE OR ADDITIONAL TEMO. WORKSPACE SHOULD BE ADDRESSED TO THE COMPANY ROW AGENT OF COMPANY REPRESENTATIVE.

BILL OF MATERIALS

NO.	DESCRIPTION	QTY
1	NPS 16, 0.312" WT, ERW, PEB, API 5L-PSL2, GR X52; FBE(14-16 MILS)	22734.65'
2	NPS 16, 0.312" WT, ERW, PEB, API 5L-PSL2, GR X52; DUAL-LAYER SYSTEM (14-16 MILS FBE BASE COAT/ 22-25 MILS ARO)	699.89'

REFERENCE DRAWINGS

DWG. NO.	TITLE

REVISIONS

NO.	DESCRIPTION	DATE	DRAWN	CK	APPR

EXCAVATION

811 Know what's below. Call before you dig.

KINDER MORGAN

APPROVALS

DRAWN BY	DATE
VA	
CHECKED BY	DATE
MH	
P.M. APPROVAL	DATE
CLIENT APPROVAL	DATE

RRC ENERGY SERVICES, LLC.
810 Hesters Crossing Rd
Suite 120, Round Rock, TX 78681
Firm Registration No. 10194422

0' 400' 800'
SCALE: 1"=800'

MCCLOUD LATERAL PROJECT LINE 01108

PROJECT NO.	SCALE	INDEX	SYSTEM	DRAWING NO.	REV.
AFE#244427	AS SHOWN			01108-1	

COUNTY & STATE

EL PASO COUNTY, TEXAS

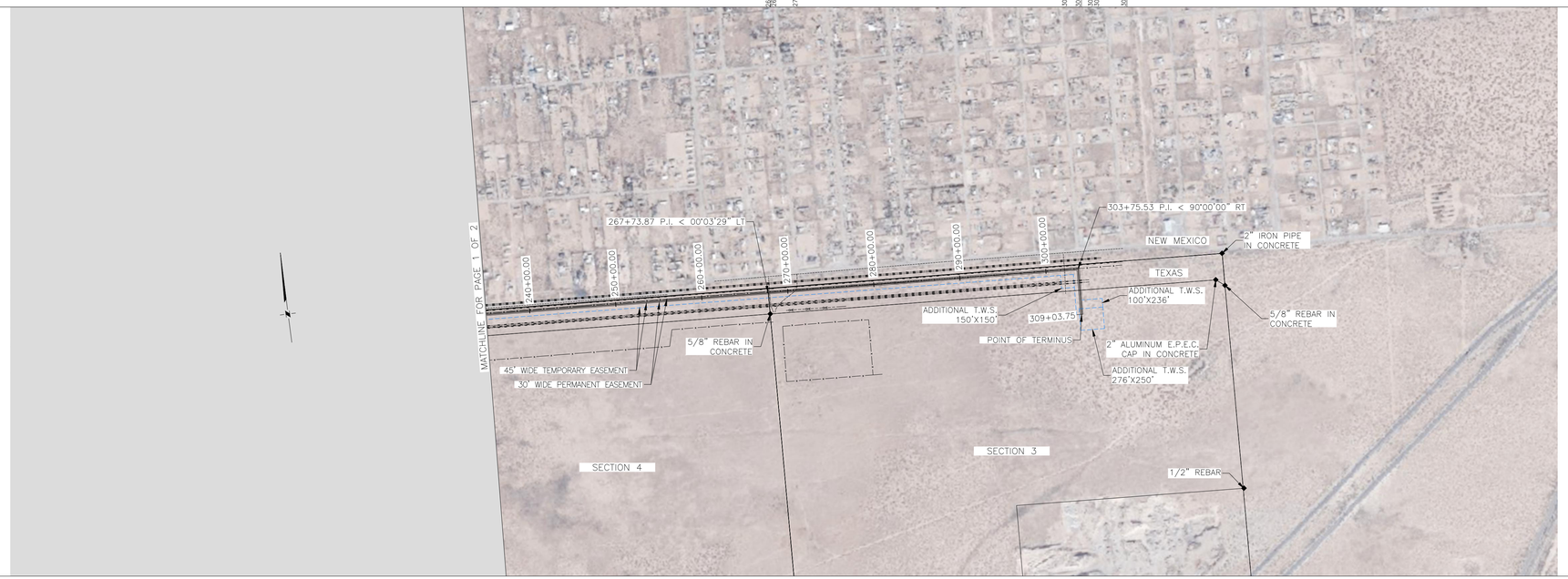
OWNERSHIP & TRACT NO.

234+94.54	(10) 3279.22'	267+73.76	(11) 3850.20'	306+23.96	(12) 279.79'	309+03.75

STATIONING

267+73.87 P.I. < 00°03'29" LT
267+89.23 ROAD EDGE CROSSING
270+96.48 ROAD EDGE CROSSING
302+13.25 CENTER OF TWO TRACK
303+75.53 P.I. < 90°00'00" RT
304+10.39 OVERHEAD ELEC. UTILITY
305+36.77 OVERHEAD ELEC. UTILITY
309+03.75 END STA.

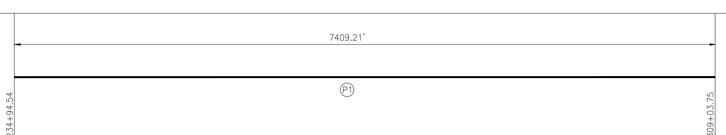
ALIGNMENT



PROFILE



PIPE DETAIL



LEGEND
- FOUND MONUMENT
- SECTION LINE
- EXISTING PIPELINE
- PARCEL BOUNDARY
- PERMANENT EASEMENT
- TEMPORARY WORKSPACE (T.W.S.)
- CENTERLINE OF NEW PIPELINE
- GUARD RAIL/FENCE
- OVERHEAD POWER LINE
- ROADWAY HATCH

GENERAL NOTES

1. ALL COORDINATES SHOWN HEREON ARE REFERENCED TO THE TEXAS CENTRAL COORDINATE SYSTEM OF 1983 (2011), EPOC 2010, CENTRAL ZONE (4203), US SURVEY FEET, GRID
2. ALL ELEVATIONS SHOWN HEREON ARE REFERENCED TO NAVD 88.
3. ALL DISTANCES CONTAINED HEREIN ARE (GRID) U.S. SURVEY FEET AND PASSED UPON ON THE GROUND SURVEY PERFORMED ON JULY 11, 2026.
4. RRC ENERGY SERVICES, LLC AND ITS CLIENTS MAKE NO REPRESENTATIONS OR WARRANTIES WITH REGARD TO THE LOCATION OR EXISTENCE OF UNDERGROUND UTILITIES, PIPELINES OR OBSTRUCTIONS. IT SHALL BE TO SOLE AND EXCLUSIVE RESPONSIBILITY OF CONTRACTOR TO IDENTIFY, LOCATE, AND COORDINATE WITH OWNERS DURING THE CROSSING OF ANY SUCH UNDERGROUND UTILITIES, PIPELINES AND OBSTRUCTIONS FROM DAMAGE DURING CONSTRUCTION.
5. ANY QUESTIONS CONCERNING THE PERMANENT EASEMENT, TEMP. WORKSPACE OR ADDITIONAL TEMO. WORKSPACE SHOULD BE ADDRESSED TO THE COMPANY ROW AGENT OF COMPANY REPRESENTATIVE.

BILL OF MATERIALS

NO.	DESCRIPTION	QTY
1	NPS 16, 0.312" WT, ERW, PEB, API 5L–PSL2, GR X52; FBE(14–16 MILS)	7409.21'

REFERENCE DRAWINGS

DWG. NO.	TITLE

REVISIONS

NO.	DESCRIPTION	DATE	DRAWN	CK	APPR

EXCAVATION

811 Know what's below. Call before you dig.

KINDER MORGAN

APPROVALS

DRAWN BY	DATE
VA	
CHECKED BY	DATE
MH	
P.M. APPROVAL	DATE
CLIENT APPROVAL	DATE

RRC ENERGY SERVICES, LLC.
810 Hesters Crossing Rd
Suite 120, Round Rock, TX 78681
Firm Registration No. 10194422

0' 400' 800'
SCALE: 1"=800'

MCCLOUD LATERAL PROJECT LINE 01108

PROJECT NO.	SCALE	INDEX	SYSTEM	DRAWING NO.	REV.
AFE#244427	AS SHOWN			01108-2	

Appendix 1B2

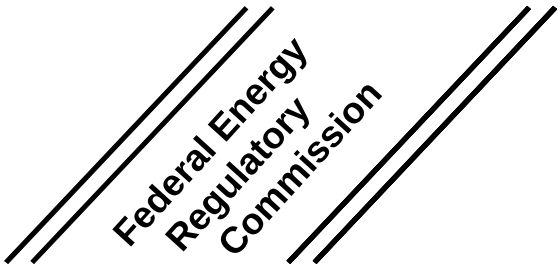
Aerial Photo-based Construction Drawings and Engineering Plot Plans

CUI//PRIV – Contains Privileged Information - Do Not Release

Appendix 1C

Environmental Construction Plans





Office of
Energy Projects

May 2013

UPLAND EROSION CONTROL, REVEGETATION, AND MAINTENANCE PLAN

Washington, DC 20426

MAY 2013 VERSION

UPLAND EROSION CONTROL, REVEGETATION, AND MAINTENANCE PLAN

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UPLAND EROSION CONTROL, REVEGETATION, AND MAINTENANCE PLAN (PLAN)

I. APPLICABILITY

A. The intent of this Plan is to assist project sponsors by identifying baseline mitigation measures for minimizing erosion and enhancing revegetation. Project sponsors shall specify in their applications for a new FERC authorization and in prior notice and advance notice filings, any individual measures in this Plan they consider unnecessary, technically infeasible, or unsuitable due to local conditions and fully describe any alternative measures they would use. Project sponsors shall also explain how those alternative measures would achieve a comparable level of mitigation.

Once a project is authorized, project sponsors can request further changes as variances to the measures in this Plan (or the applicant's approved plan). The Director of the Office of Energy Projects (Director) will consider approval of variances upon the project sponsor's written request, if the Director agrees that a variance:

1. provides equal or better environmental protection;

2. is necessary because a portion of this Plan is infeasible or unworkable based on project-specific conditions; or

3. is specifically required in writing by another federal, state, or Native American land management agency for the portion of the project on its land or under its jurisdiction.

Sponsors of projects planned for construction under the automatic authorization provisions in the FERC's regulations must receive written approval for any variances in advance of construction.

Project-related impacts on wetland and waterbody systems are addressed in the staff's Wetland and Waterbody Construction and Mitigation Procedures (Procedures).

II. SUPERVISION AND INSPECTION

A. ENVIRONMENTAL INSPECTION

1. At least one Environmental Inspector is required for each construction spread during construction and restoration (as defined by section V). The number and experience of Environmental Inspectors assigned to each construction spread shall be appropriate for the length of the construction spread and the number/significance of resources affected.

2. Environmental Inspectors shall have peer status with all other activity inspectors.

3. Environmental Inspectors shall have the authority to stop activities that violate the environmental conditions of the FERC's Orders, stipulations of other environmental permits or approvals, or landowner easement agreements; and to order appropriate corrective action.

B. RESPONSIBILITIES OF ENVIRONMENTAL INSPECTORS

At a minimum, the Environmental Inspector(s) shall be responsible for:

1. Inspecting construction activities for compliance with the requirements of this Plan, the Procedures, the environmental conditions of the FERC's Orders, the mitigation measures proposed by the project sponsor (as approved and/or modified by the Order), other environmental permits and approvals, and environmental requirements in landowner easement agreements.

2. Identifying, documenting, and overseeing corrective actions, as necessary to bring an activity back into compliance;

3. Verifying that the limits of authorized construction work areas and locations of access roads are visibly marked before clearing, and maintained throughout construction;

4. Verifying the location of signs and highly visible flagging marking the boundaries of sensitive resource areas, waterbodies, wetlands, or areas with special requirements along the construction work area;

5. Identifying erosion/sediment control and soil stabilization needs in all areas;

6. Ensuring that the design of slope breakers will not cause erosion or direct water into sensitive environmental resource areas, including cultural resource sites, wetlands, waterbodies, and sensitive species habitats;

7. Verifying that dewatering activities are properly monitored and do not result in the deposition of sand, silt, and/or sediment into sensitive environmental resource areas, including wetlands, waterbodies, cultural resource sites, and sensitive species habitats; stopping dewatering activities if such deposition is occurring and ensuring the design of the discharge is changed to prevent reoccurrence; and verifying that dewatering structures are removed after completion of dewatering activities;

8. Ensuring that subsoil and topsoil are tested in agricultural and residential areas to measure compaction and determine the need for corrective action;

9. Advising the Chief Construction Inspector when environmental conditions (such as wet weather or frozen soils) make it advisable to restrict or delay construction activities to avoid topsoil mixing or excessive compaction;

10. Ensuring restoration of contours and topsoil;

11. Verifying that the soils imported for agricultural or residential use are certified as free of noxious weeds and soil pests, unless otherwise approved by the landowner;

12. Ensuring that erosion control devices are properly installed to prevent sediment flow into sensitive environmental resource areas (e.g., wetlands, waterbodies, cultural resource sites, and sensitive species habitats) and onto roads, and determining the need for additional erosion control devices;

13. Inspecting and ensuring the maintenance of temporary erosion control measures at least:

    a. on a daily basis in areas of active construction or equipment operation;

    b. on a weekly basis in areas with no construction or equipment operation; and

    c. within 24 hours of each 0.5 inch of rainfall;

14. Ensuring the repair of all ineffective temporary erosion control measures within 24 hours of identification, or as soon as conditions allow if compliance with this time frame would result in greater environmental impacts;

15. Keeping records of compliance with the environmental conditions of the FERC's Orders, and the mitigation measures proposed by the project sponsor in the application submitted to the FERC, and other federal or state environmental permits during active construction and restoration;

16. Identifying areas that should be given special attention to ensure stabilization and restoration after the construction phase; and

17. Verifying that locations for any disposal of excess construction materials for beneficial reuse comply with section III.E.

III. PRECONSTRUCTION PLANNING

The project sponsor shall do the following before construction:

A. CONSTRUCTION WORK AREAS

1. Identify all construction work areas (e.g., construction right-of-way, extra work space areas, pipe storage and contractor yards, borrow and disposal areas, access roads) that would be needed for safe construction. The project sponsor must ensure that appropriate cultural resources and biological surveys are conducted, as determined necessary by the appropriate federal and state agencies.

2. Project sponsors are encouraged to consider expanding any required cultural resources and endangered species surveys in anticipation of the need for activities outside of authorized work areas.

3. Plan construction sequencing to limit the amount and duration of open trench sections, as necessary, to prevent excessive erosion or sediment flow into sensitive environmental resource areas.

B. DRAIN TILE AND IRRIGATION SYSTEMS

1. Attempt to locate existing drain tiles and irrigation systems.

2. Contact landowners and local soil conservation authorities to determine the locations of future drain tiles that are likely to be installed within 3 years of the authorized construction.

3. Develop procedures for constructing through drain-tiled areas, maintaining irrigation systems during construction, and repairing drain tiles and irrigation systems after construction.

4. Engage qualified drain tile specialists, as needed to conduct or monitor repairs to drain tile systems affected by construction. Use drain tile specialists from the project area, if available.

C. GRAZING DEFERMENT

Develop grazing deferment plans with willing landowners, grazing permittees, and land management agencies to minimize grazing disturbance of revegetation efforts.

D. ROAD CROSSINGS AND ACCESS POINTS

Plan for safe and accessible conditions at all roadway crossings and access points during construction and restoration.

E. DISPOSAL PLANNING

Determine methods and locations for the regular collection, containment, and disposal of excess construction materials and debris (e.g., timber, slash, mats, garbage, drill cuttings and fluids, excess rock) throughout the construction process. Disposal of materials for beneficial reuse must not result in adverse environmental impact and is subject to compliance with all applicable survey, landowner or land management agency approval, and permit requirements.

F. AGENCY COORDINATION

The project sponsor must coordinate with the appropriate local, state, and federal agencies as outlined in this Plan and/or required by the FERC's Orders.

1. Obtain written recommendations from the local soil conservation authorities or land management agencies regarding permanent erosion control and revegetation specifications.

2. Develop specific procedures in coordination with the appropriate agencies to prevent the introduction or spread of invasive species, noxious weeds, and soil pests resulting from construction and restoration activities.

3. Develop specific procedures in coordination with the appropriate agencies and landowners, as necessary, to allow for livestock and wildlife movement and protection during construction.

4. Develop specific blasting procedures in coordination with the appropriate agencies that address pre- and post-blast inspections; advanced public notification; and mitigation measures for building foundations, groundwater wells, and springs. Use appropriate methods (e.g., blasting mats) to prevent damage to nearby structures and to prevent debris from entering sensitive environmental resource areas.

G. SPILL PREVENTION AND RESPONSE PROCEDURES

The project sponsor shall develop project-specific Spill Prevention and Response Procedures, as specified in section IV of the staff's Procedures. A copy must be filed with the Secretary of the FERC (Secretary) prior to construction and made available in the field on each construction spread. The filing requirement does not apply to projects constructed under the automatic authorization provisions in the FERC's regulations.

H. RESIDENTIAL CONSTRUCTION

For all properties with residences located within 50 feet of construction work areas, project sponsors shall: avoid removal of mature trees and landscaping within the construction work area unless necessary for safe operation of construction equipment, or as specified in landowner agreements; fence the edge of the construction work area for a distance of 100 feet on either side of the residence; and restore all lawn areas and landscaping immediately following clean up operations, or as specified in landowner agreements. If seasonal or other weather conditions prevent compliance with these time frames, maintain and monitor temporary erosion controls (sediment barriers and mulch) until conditions allow completion of restoration.

I. WINTER CONSTRUCTION PLANS

If construction is planned to occur during winter weather conditions, project sponsors shall develop and file a project-specific winter construction plan with the FERC application. This filing requirement does not apply to projects constructed under the automatic authorization provisions of the FERC's regulations.

The plan shall address:

1. winter construction procedures (e.g., snow handling and removal, access road construction and maintenance, soil handling under saturated or frozen conditions, topsoil stripping);

2. stabilization and monitoring procedures if ground conditions will delay restoration until the following spring (e.g., mulching and erosion controls, inspection and reporting, stormwater control during spring thaw conditions); and

3. final restoration procedures (e.g., subsidence and compaction repair, topsoil replacement, seeding).

IV. INSTALLATION

A. APPROVED AREAS OF DISTURBANCE

1. Project-related ground disturbance shall be limited to the construction right-of-way, extra work space areas, pipe storage yards, borrow and disposal areas, access roads, and other areas approved in the FERC's Orders. Any project-related ground disturbing activities outside these areas will require prior Director approval. This requirement does not apply to activities needed to comply with the Plan and Procedures (i.e., slope breakers, energy-dissipating devices, dewatering structures, drain tile system repairs) or minor field realignments and workspace shifts per landowner needs and requirements that do not affect other landowners or sensitive environmental resource areas. All construction or restoration activities outside of authorized areas are subject to all applicable survey and permit requirements, and landowner easement agreements.

2. The construction right-of-way width for a project shall not exceed 75 feet or that described in the FERC application unless otherwise modified by a FERC Order. However, in limited, non-wetland areas, this construction right-of-way width may be expanded by up to 25 feet without Director approval to accommodate full construction right-of-way topsoil segregation and to ensure safe construction where topographic conditions (e.g., side-slopes) or soil limitations require it. Twenty-five feet of extra construction right-of-way width may also be used in limited, non-wetland or non-forested areas for truck turn-arounds where no reasonable alternative access exists.

   Project use of these additional limited areas is subject to landowner or land management agency approval and compliance with all applicable survey and permit requirements. When additional areas are used, each one shall be identified and the need explained in the weekly or biweekly construction reports to the FERC, if required. The following material shall be included in the reports:

   a. the location of each additional area by station number and reference to previously filed alignment sheets, or updated alignment sheets showing the additional areas;

   b. identification of the filing at FERC containing evidence that the additional areas were previously surveyed; and

c. a statement that landowner approval has been obtained and is available in project files.

Prior written approval of the Director is required when the authorized construction right-of-way width would be expanded by more than 25 feet.

B. TOPSOIL SEGREGATION

1. Unless the landowner or land management agency specifically approves otherwise, prevent the mixing of topsoil with subsoil by stripping topsoil from either the full work area or from the trench and subsoil storage area (ditch plus spoil side method) in:

   a. cultivated or rotated croplands, and managed pastures;

   b. residential areas;

   c. hayfields; and

   d. other areas at the landowner's or land managing agency's request.

2. In residential areas, importation of topsoil is an acceptable alternative to topsoil segregation.

3. Where topsoil segregation is required, the project sponsor must:

   a. segregate at least 12 inches of topsoil in deep soils (more than 12 inches of topsoil); and

   b. make every effort to segregate the entire topsoil layer in soils with less than 12 inches of topsoil.

4. Maintain separation of salvaged topsoil and subsoil throughout all construction activities.

5. Segregated topsoil may not be used for padding the pipe, constructing temporary slope breakers or trench plugs, improving or maintaining roads, or as a fill material.

6. Stabilize topsoil piles and minimize loss due to wind and water erosion with use of sediment barriers, mulch, temporary seeding, tackifiers, or functional equivalents, where necessary.

C. DRAIN TILES

1. Mark locations of drain tiles damaged during construction.

2. Probe all drainage tile systems within the area of disturbance to check for damage.

3. Repair damaged drain tiles to their original or better condition. Do not use filter-covered drain tiles unless the local soil conservation authorities and the landowner agree. Use qualified specialists for testing and repairs.

4. For new pipelines in areas where drain tiles exist or are planned, ensure that the depth of cover over the pipeline is sufficient to avoid interference with drain tile systems. For adjacent pipeline loops in agricultural areas, install the new pipeline with at least the same depth of cover as the existing pipeline(s).

D. IRRIGATION

Maintain water flow in crop irrigation systems, unless shutoff is coordinated with affected parties.

E. ROAD CROSSINGS AND ACCESS POINTS

1. Maintain safe and accessible conditions at all road crossings and access points during construction.

2. If crushed stone access pads are used in residential or agricultural areas, place the stone on synthetic fabric to facilitate removal.

3. Minimize the use of tracked equipment on public roadways. Remove any soil or gravel spilled or tracked onto roadways daily or more frequent as necessary to maintain safe road conditions. Repair any damages to roadway surfaces, shoulders, and bar ditches.

F. TEMPORARY EROSION CONTROL

Install temporary erosion controls immediately after initial disturbance of the soil. Temporary erosion controls must be properly maintained throughout construction (on a daily basis) and reinstalled as necessary (such as after backfilling of the trench) until replaced by permanent erosion controls or restoration is complete.

1. Temporary Slope Breakers

   a. Temporary slope breakers are intended to reduce runoff velocity and divert water off the construction right-of-way. Temporary slope

breakers may be constructed of materials such as soil, silt fence, staked hay or straw bales, or sand bags.

b. Install temporary slope breakers on all disturbed areas, as necessary to avoid excessive erosion. Temporary slope breakers must be installed on slopes greater than 5 percent where the base of the slope is less than 50 feet from waterbody, wetland, and road crossings at the following spacing (closer spacing shall be used if necessary):

Slope (%)	Spacing (feet)
5 - 15	300
>15 - 30	200
>30	100

c. Direct the outfall of each temporary slope breaker to a stable, well vegetated area or construct an energy-dissipating device at the end of the slope breaker and off the construction right-of-way.

d. Position the outfall of each temporary slope breaker to prevent sediment discharge into wetlands, waterbodies, or other sensitive environmental resource areas.

2. Temporary Trench Plugs

Temporary trench plugs are intended to segment a continuous open trench prior to backfill.

a. Temporary trench plugs may consist of unexcavated portions of the trench, compacted subsoil, sandbags, or some functional equivalent.

b. Position temporary trench plugs, as necessary, to reduce trenchline erosion and minimize the volume and velocity of trench water flow at the base of slopes.

3. Sediment Barriers

Sediment barriers are intended to stop the flow of sediments and to prevent the deposition of sediments beyond approved workspaces or into sensitive resources.

a. Sediment barriers may be constructed of materials such as silt fence, staked hay or straw bales, compacted earth (e.g., driveable berms across travelways), sand bags, or other appropriate materials.

b. At a minimum, install and maintain temporary sediment barriers across the entire construction right-of-way at the base of slopes greater than 5 percent where the base of the slope is less than 50 feet from a waterbody, wetland, or road crossing until revegetation is successful as defined in this Plan. Leave adequate room between the base of the slope and the sediment barrier to accommodate ponding of water and sediment deposition.

c. Where wetlands or waterbodies are adjacent to and downslope of construction work areas, install sediment barriers along the edge of these areas, as necessary to prevent sediment flow into the wetland or waterbody.

4. Mulch

a. Apply mulch on all slopes (except in cultivated cropland) concurrent with or immediately after seeding, where necessary to stabilize the soil surface and to reduce wind and water erosion. Spread mulch uniformly over the area to cover at least 75 percent of the ground surface at a rate of 2 tons/acre of straw or its equivalent, unless the local soil conservation authority, landowner, or land managing agency approves otherwise in writing.

b. Mulch can consist of weed-free straw or hay, wood fiber hydromulch, erosion control fabric, or some functional equivalent.

c. Mulch all disturbed upland areas (except cultivated cropland) before seeding if:

(1) final grading and installation of permanent erosion control measures will not be completed in an area within 20 days after the trench in that area is backfilled (10 days in residential areas), as required in section V.A.1; or

(2) construction or restoration activity is interrupted for extended periods, such as when seeding cannot be completed due to seeding period restrictions.

d. If mulching before seeding, increase mulch application on all slopes within 100 feet of waterbodies and wetlands to a rate of 3 tons/acre of straw or equivalent.

e. If wood chips are used as mulch, do not use more than 1 ton/acre and add the equivalent of 11 lbs/acre available nitrogen (at least 50 percent of which is slow release).

f. Ensure that mulch is adequately anchored to minimize loss due to wind and water.

g. When anchoring with liquid mulch binders, use rates recommended by the manufacturer. Do not use liquid mulch binders within 100 feet of wetlands or waterbodies, except where the product is certified environmentally non-toxic by the appropriate state or federal agency or independent standards-setting organization.

h. Do not use synthetic monofilament mesh/netted erosion control materials in areas designated as sensitive wildlife habitat, unless the product is specifically designed to minimize harm to wildlife. Anchor erosion control fabric with staples or other appropriate devices.

V. RESTORATION

A. CLEANUP

1. Commence cleanup operations immediately following backfill operations. Complete final grading, topsoil replacement, and installation of permanent erosion control structures within 20 days after backfilling the trench (10 days in residential areas). If seasonal or other weather conditions prevent compliance with these time frames, maintain temporary erosion controls (i.e., temporary slope breakers, sediment barriers, and mulch) until conditions allow completion of cleanup.

   If construction or restoration unexpectedly continues into the winter season when conditions could delay successful decompaction, topsoil replacement, or seeding until the following spring, file with the Secretary for the review and written approval of the Director, a winter construction plan (as specified in section III.I). This filing requirement does not apply to projects constructed under the automatic authorization provisions of the FERC's regulations.

2. A travel lane may be left open temporarily to allow access by construction traffic if the temporary erosion control structures are installed as specified in section IV.F. and inspected and maintained as specified in sections II.B.12 through 14. When access is no longer required the travel lane must be removed and the right-of-way restored.

3. Rock excavated from the trench may be used to backfill the trench only to the top of the existing bedrock profile. Rock that is not returned to the trench shall be considered construction debris, unless approved for use as mulch or for some other use on the construction work areas by the landowner or land managing agency.

4. Remove excess rock from at least the top 12 inches of soil in all cultivated or rotated cropland, managed pastures, hayfields, and residential areas, as well as other areas at the landowner's request. The size, density, and distribution of rock on the construction work area shall be similar to adjacent areas not disturbed by construction. The landowner or land management agency may approve other provisions in writing.

5. Grade the construction right-of-way to restore pre-construction contours and leave the soil in the proper condition for planting.

6. Remove construction debris from all construction work areas unless the landowner or land managing agency approves leaving materials onsite for beneficial reuse, stabilization, or habitat restoration.

7. Remove temporary sediment barriers when replaced by permanent erosion control measures or when revegetation is successful.

B. PERMANENT EROSION CONTROL DEVICES

1. Trench Breakers

a. Trench breakers are intended to slow the flow of subsurface water along the trench. Trench breakers may be constructed of materials such as sand bags or polyurethane foam. Do not use topsoil in trench breakers.

b. An engineer or similarly qualified professional shall determine the need for and spacing of trench breakers. Otherwise, trench breakers shall be installed at the same spacing as and upslope of permanent slope breakers.

c. In agricultural fields and residential areas where slope breakers are not typically required, install trench breakers at the same spacing as if permanent slope breakers were required.

d. At a minimum, install a trench breaker at the base of slopes greater than 5 percent where the base of the slope is less than 50 feet from a waterbody or wetland and where needed to avoid draining a waterbody or wetland. Install trench breakers at wetland boundaries, as specified in the Procedures. Do not install trench breakers within a wetland.

2. Permanent Slope Breakers

a. Permanent slope breakers are intended to reduce runoff velocity, divert water off the construction right-of-way, and prevent sediment deposition into sensitive resources. Permanent slope breakers may be constructed of materials such as soil, stone, or some functional equivalent.

b. Construct and maintain permanent slope breakers in all areas, except cultivated areas and lawns, unless requested by the landowner, using spacing recommendations obtained from the local soil conservation authority or land managing agency.

In the absence of written recommendations, use the following spacing unless closer spacing is necessary to avoid excessive erosion on the construction right-of-way:

Slope (%)	Spacing (feet)
5 - 15	300
>15 - 30	200
>30	100

c. Construct slope breakers to divert surface flow to a stable area without causing water to pool or erode behind the breaker. In the absence of a stable area, construct appropriate energy-dissipating devices at the end of the breaker.

d. Slope breakers may extend slightly (about 4 feet) beyond the edge of the construction right-of-way to effectively drain water off the disturbed area. Where slope breakers extend beyond the edge of the construction right-of-way, they are subject to compliance with all applicable survey requirements.

C. SOIL COMPACTION MITIGATION

1. Test topsoil and subsoil for compaction at regular intervals in agricultural and residential areas disturbed by construction activities. Conduct tests on the same soil type under similar moisture conditions in undisturbed areas to approximate preconstruction conditions. Use penetrometers or other appropriate devices to conduct tests.

2. Plow severely compacted agricultural areas with a paraplow or other deep tillage implement. In areas where topsoil has been segregated, plow the subsoil before replacing the segregated topsoil.

If subsequent construction and cleanup activities result in further compaction, conduct additional tilling.

3. Perform appropriate soil compaction mitigation in severely compacted residential areas.

D. REVEGETATION

1. General

a. The project sponsor is responsible for ensuring successful revegetation of soils disturbed by project-related activities, except as noted in section V.D.1.b.

b. Restore all turf, ornamental shrubs, and specialized landscaping in accordance with the landowner's request, or compensate the landowner. Restoration work must be performed by personnel familiar with local horticultural and turf establishment practices.

2. Soil Additives

Fertilize and add soil pH modifiers in accordance with written recommendations obtained from the local soil conservation authority, land management agencies, or landowner. Incorporate recommended soil pH modifier and fertilizer into the top 2 inches of soil as soon as practicable after application.

3. Seeding Requirements

a. Prepare a seedbed in disturbed areas to a depth of 3 to 4 inches using appropriate equipment to provide a firm seedbed. When hydroseeding, scarify the seedbed to facilitate lodging and germination of seed.

b. Seed disturbed areas in accordance with written recommendations for seed mixes, rates, and dates obtained from the local soil conservation authority or the request of the landowner or land management agency. Seeding is not required in cultivated croplands unless requested by the landowner.

c. Perform seeding of permanent vegetation within the recommended seeding dates. If seeding cannot be done within those dates, use appropriate temporary erosion control measures discussed in section IV.F and perform seeding of permanent vegetation at the beginning of the next recommended seeding season. Dormant seeding or temporary

seeding of annual species may also be used, if necessary, to establish cover, as approved by the Environmental Inspector. Lawns may be seeded on a schedule established with the landowner.

d. In the absence of written recommendations from the local soil conservation authorities, seed all disturbed soils within 6 working days of final grading, weather and soil conditions permitting, subject to the specifications in section V.D.3.a through V.D.3.c.

e. Base seeding rates on Pure Live Seed. Use seed within 12 months of seed testing.

f. Treat legume seed with an inoculant specific to the species using the manufacturer's recommended rate of inoculant appropriate for the seeding method (broadcast, drill, or hydro).

g. In the absence of written recommendations from the local soil conservation authorities, landowner, or land managing agency to the contrary, a seed drill equipped with a cultipacker is preferred for seed application.

Broadcast or hydroseeding can be used in lieu of drilling at double the recommended seeding rates. Where seed is broadcast, firm the seedbed with a cultipacker or roller after seeding. In rocky soils or where site conditions may limit the effectiveness of this equipment, other alternatives may be appropriate (e.g., use of a chain drag) to lightly cover seed after application, as approved by the Environmental Inspector.

VI. OFF-ROAD VEHICLE CONTROL

To each owner or manager of forested lands, offer to install and maintain measures to control unauthorized vehicle access to the right-of-way. These measures may include:

A. signs;

B. fences with locking gates;

C. slash and timber barriers, pipe barriers, or a line of boulders across the right-of-way; and

D. conifers or other appropriate trees or shrubs across the right-of-way.

VII. POST-CONSTRUCTION ACTIVITIES AND REPORTING

A. MONITORING AND MAINTENANCE

1. Conduct follow-up inspections of all disturbed areas, as necessary, to determine the success of revegetation and address landowner concerns. At a minimum, conduct inspections after the first and second growing seasons.

2. Revegetation in non-agricultural areas shall be considered successful if upon visual survey the density and cover of non-nuisance vegetation are similar in density and cover to adjacent undisturbed lands. In agricultural areas, revegetation shall be considered successful when upon visual survey, crop growth and vigor are similar to adjacent undisturbed portions of the same field, unless the easement agreement specifies otherwise.

   Continue revegetation efforts until revegetation is successful.

3. Monitor and correct problems with drainage and irrigation systems resulting from pipeline construction in agricultural areas until restoration is successful.

4. Restoration shall be considered successful if the right-of-way surface condition is similar to adjacent undisturbed lands, construction debris is removed (unless otherwise approved by the landowner or land managing agency per section V.A.6), revegetation is successful, and proper drainage has been restored.

5. Routine vegetation mowing or clearing over the full width of the permanent right-of-way in uplands shall not be done more frequently than every 3 years. However, to facilitate periodic corrosion/leak surveys, a corridor not exceeding 10 feet in width centered on the pipeline may be cleared at a frequency necessary to maintain the 10-foot corridor in an herbaceous state. In no case shall routine vegetation mowing or clearing occur during the migratory bird nesting season between April 15 and August 1 of any year unless specifically approved in writing by the responsible land management agency or the U.S. Fish and Wildlife Service.

6. Efforts to control unauthorized off-road vehicle use, in cooperation with the landowner, shall continue throughout the life of the project. Maintain signs, gates, and permanent access roads as necessary.

B. REPORTING

1. The project sponsor shall maintain records that identify by milepost:

   a. method of application, application rate, and type of fertilizer, pH modifying agent, seed, and mulch used;

   b. acreage treated;

   c. dates of backfilling and seeding;

   d. names of landowners requesting special seeding treatment and a description of the follow-up actions;

   e. the location of any subsurface drainage repairs or improvements made during restoration; and

   f. any problem areas and how they were addressed.

2. The project sponsor shall file with the Secretary quarterly activity reports documenting the results of follow-up inspections required by section VII.A.1; any problem areas, including those identified by the landowner; and corrective actions taken for at least 2 years following construction.

   The requirement to file quarterly activity reports with the Secretary does not apply to projects constructed under the automatic authorization, prior notice, or advanced notice provisions in the FERC's regulations.



Federal Energy Regulatory Commission

Office of Energy Projects

May 2013

WETLAND AND WATERBODY CONSTRUCTION AND MITIGATION PROCEDURES

Washington, DC 20426

MAY 2013 VERSION

WETLAND AND WATERBODY CONSTRUCTION AND MITIGATION PROCEDURES

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WETLAND AND WATERBODY
CONSTRUCTION AND MITIGATION PROCEDURES (PROCEDURES)

I. APPLICABILITY

A. The intent of these Procedures is to assist project sponsors by identifying baseline mitigation measures for minimizing the extent and duration of project-related disturbance on wetlands and waterbodies. Project sponsors shall specify in their applications for a new FERC authorization, and in prior notice and advance notice filings, any individual measures in these Procedures they consider unnecessary, technically infeasible, or unsuitable due to local conditions and fully describe any alternative measures they would use. Project sponsors shall also explain how those alternative measures would achieve a comparable level of mitigation.

Once a project is authorized, project sponsors can request further changes as variances to the measures in these Procedures (or the applicant's approved procedures). The Director of the Office of Energy Projects (Director) will consider approval of variances upon the project sponsor's written request, if the Director agrees that a variance:

1. provides equal or better environmental protection;

2. is necessary because a portion of these Procedures is infeasible or unworkable based on project-specific conditions; or

3. is specifically required in writing by another federal, state, or Native American land management agency for the portion of the project on its land or under its jurisdiction.

Sponsors of projects planned for construction under the automatic authorization provisions in the FERC's regulations must receive written approval for any variances in advance of construction.

Project-related impacts on non-wetland areas are addressed in the staff's Upland Erosion Control, Revegetation, and Maintenance Plan (Plan).

B. DEFINITIONS

1. "Waterbody" includes any natural or artificial stream, river, or drainage with perceptible flow at the time of crossing, and other permanent waterbodies such as ponds and lakes:

   a. "minor waterbody" includes all waterbodies less than or equal to 10 feet wide at the water's edge at the time of crossing;

   b. "intermediate waterbody" includes all waterbodies greater than 10 feet wide but less than or equal to 100 feet wide at the water's edge at the time of crossing; and

   c. "major waterbody" includes all waterbodies greater than 100 feet wide at the water's edge at the time of crossing.

2. "Wetland" includes any area that is not in actively cultivated or rotated cropland and that satisfies the requirements of the current federal methodology for identifying and delineating wetlands.

II. PRECONSTRUCTION FILING

A. The following information must be filed with the Secretary of the FERC (Secretary) prior to the beginning of construction, for the review and written approval by the Director:

1. site-specific justifications for extra work areas that would be closer than 50 feet from a waterbody or wetland; and

2. site-specific justifications for the use of a construction right-of-way greater than 75-feet-wide in wetlands.

B. The following information must be filed with the Secretary prior to the beginning of construction. These filing requirements do not apply to projects constructed under the automatic authorization provisions in the FERC's regulations:

1. Spill Prevention and Response Procedures specified in section IV.A;

2. a schedule identifying when trenching or blasting will occur within each waterbody greater than 10 feet wide, within any designated coldwater fishery, and within any waterbody identified as habitat for federally-listed threatened or endangered species. The project sponsor will revise the schedule as necessary to provide FERC staff at least 14 days advance notice. Changes within this last 14-day period must provide for at least 48 hours advance notice;

3. plans for horizontal directional drills (HDD) under wetlands or waterbodies, specified in section V.B.6.d;

4. site-specific plans for major waterbody crossings, described in section V.B.9;

5. a wetland delineation report as described in section VI.A.1, if applicable; and

6. the hydrostatic testing information specified in section VII.B.3.

III. ENVIRONMENTAL INSPECTORS

A. At least one Environmental Inspector having knowledge of the wetland and waterbody conditions in the project area is required for each construction spread. The number and experience of Environmental Inspectors assigned to each construction spread shall be appropriate for the length of the construction spread and the number/significance of resources affected.

B. The Environmental Inspector's responsibilities are outlined in the Upland Erosion Control, Revegetation, and Maintenance Plan (Plan).

IV. PRECONSTRUCTION PLANNING

A. The project sponsor shall develop project-specific Spill Prevention and Response Procedures that meet applicable requirements of state and federal agencies. A copy must be filed with the Secretary prior to construction and made available in the field on each construction spread. This filing requirement does not apply to projects constructed under the automatic authorization provisions in the FERC's regulations.

1. It shall be the responsibility of the project sponsor and its contractors to structure their operations in a manner that reduces the risk of spills or the accidental exposure of fuels or hazardous materials to waterbodies or wetlands. The project sponsor and its contractors must, at a minimum, ensure that:

a. all employees handling fuels and other hazardous materials are properly trained;

b. all equipment is in good operating order and inspected on a regular basis;

c. fuel trucks transporting fuel to on-site equipment travel only on approved access roads;

d. all equipment is parked overnight and/or fueled at least 100 feet from a waterbody or in an upland area at least 100 feet from a wetland boundary. These activities can occur closer only if the Environmental Inspector determines that there is no reasonable alternative, and the

project sponsor and its contractors have taken appropriate steps (including secondary containment structures) to prevent spills and provide for prompt cleanup in the event of a spill;

e. hazardous materials, including chemicals, fuels, and lubricating oils, are not stored within 100 feet of a wetland, waterbody, or designated municipal watershed area, unless the location is designated for such use by an appropriate governmental authority. This applies to storage of these materials and does not apply to normal operation or use of equipment in these areas;

f. concrete coating activities are not performed within 100 feet of a wetland or waterbody boundary, unless the location is an existing industrial site designated for such use. These activities can occur closer only if the Environmental Inspector determines that there is no reasonable alternative, and the project sponsor and its contractors have taken appropriate steps (including secondary containment structures) to prevent spills and provide for prompt cleanup in the event of a spill;

g. pumps operating within 100 feet of a waterbody or wetland boundary utilize appropriate secondary containment systems to prevent spills; and

h. bulk storage of hazardous materials, including chemicals, fuels, and lubricating oils have appropriate secondary containment systems to prevent spills.

2. The project sponsor and its contractors must structure their operations in a manner that provides for the prompt and effective cleanup of spills of fuel and other hazardous materials. At a minimum, the project sponsor and its contractors must:

a. ensure that each construction crew (including cleanup crews) has on hand sufficient supplies of absorbent and barrier materials to allow the rapid containment and recovery of spilled materials and knows the procedure for reporting spills and unanticipated discoveries of contamination;

b. ensure that each construction crew has on hand sufficient tools and material to stop leaks;

c. know the contact names and telephone numbers for all local, state, and federal agencies (including, if necessary, the U. S. Coast Guard and the National Response Center) that must be notified of a spill; and

d. follow the requirements of those agencies in cleaning up the spill, in excavating and disposing of soils or other materials contaminated by a spill, and in collecting and disposing of waste generated during spill cleanup.

B. AGENCY COORDINATION

The project sponsor must coordinate with the appropriate local, state, and federal agencies as outlined in these Procedures and in the FERC's Orders.

V. WATERBODY CROSSINGS

A. NOTIFICATION PROCEDURES AND PERMITS

1. Apply to the U.S. Army Corps of Engineers (COE), or its delegated agency, for the appropriate wetland and waterbody crossing permits.

2. Provide written notification to authorities responsible for potable surface water supply intakes located within 3 miles downstream of the crossing at least 1 week before beginning work in the waterbody, or as otherwise specified by that authority.

3. Apply for state-issued waterbody crossing permits and obtain individual or generic section 401 water quality certification or waiver.

4. Notify appropriate federal and state authorities at least 48 hours before beginning trenching or blasting within the waterbody, or as specified in applicable permits.

B. INSTALLATION

1. Time Window for Construction

Unless expressly permitted or further restricted by the appropriate federal or state agency in writing on a site-specific basis, instream work, except that required to install or remove equipment bridges, must occur during the following time windows:

a. coldwater fisheries - June 1 through September 30; and

b. coolwater and warmwater fisheries - June 1 through November 30.

2. Extra Work Areas

a. Locate all extra work areas (such as staging areas and additional spoil storage areas) at least 50 feet away from water's edge, except where

the adjacent upland consists of cultivated or rotated cropland or other disturbed land.

b. The project sponsor shall file with the Secretary for review and written approval by the Director, site-specific justification for each extra work area with a less than 50-foot setback from the water's edge, except where the adjacent upland consists of cultivated or rotated cropland or other disturbed land. The justification must specify the conditions that will not permit a 50-foot setback and measures to ensure the waterbody is adequately protected.

c. Limit the size of extra work areas to the minimum needed to construct the waterbody crossing.

3. General Crossing Procedures

a. Comply with the COE, or its delegated agency, permit terms and conditions.

b. Construct crossings as close to perpendicular to the axis of the waterbody channel as engineering and routing conditions permit.

c. Where pipelines parallel a waterbody, maintain at least 15 feet of undisturbed vegetation between the waterbody (and any adjacent wetland) and the construction right-of-way, except where maintaining this offset will result in greater environmental impact.

d. Where waterbodies meander or have multiple channels, route the pipeline to minimize the number of waterbody crossings.

e. Maintain adequate waterbody flow rates to protect aquatic life, and prevent the interruption of existing downstream uses.

f. Waterbody buffers (e.g., extra work area setbacks, refueling restrictions) must be clearly marked in the field with signs and/or highly visible flagging until construction-related ground disturbing activities are complete.

g. Crossing of waterbodies when they are dry or frozen and not flowing may proceed using standard upland construction techniques in accordance with the Plan, provided that the Environmental Inspector verifies that water is unlikely to flow between initial disturbance and final stabilization of the feature. In the event of perceptible flow, the project sponsor must comply with all applicable Procedure requirements for "waterbodies" as defined in section I.B.1.

4. Spoil Pile Placement and Control

   a. All spoil from minor and intermediate waterbody crossings, and upland spoil from major waterbody crossings, must be placed in the construction right-of-way at least 10 feet from the water's edge or in additional extra work areas as described in section V.B.2.

   b. Use sediment barriers to prevent the flow of spoil or silt-laden water into any waterbody.

5. Equipment Bridges

   a. Only clearing equipment and equipment necessary for installation of equipment bridges may cross waterbodies prior to bridge installation. Limit the number of such crossings of each waterbody to one per piece of clearing equipment.

   b. Construct and maintain equipment bridges to allow unrestricted flow and to prevent soil from entering the waterbody. Examples of such bridges include:

      (1) equipment pads and culvert(s);
      (2) equipment pads or railroad car bridges without culverts;
      (3) clean rock fill and culvert(s); and
      (4) flexi-float or portable bridges.

      Additional options for equipment bridges may be utilized that achieve the performance objectives noted above. Do not use soil to construct or stabilize equipment bridges.

   c. Design and maintain each equipment bridge to withstand and pass the highest flow expected to occur while the bridge is in place. Align culverts to prevent bank erosion or streambed scour. If necessary, install energy dissipating devices downstream of the culverts.

   d. Design and maintain equipment bridges to prevent soil from entering the waterbody.

   e. Remove temporary equipment bridges as soon as practicable after permanent seeding.

   f. If there will be more than 1 month between final cleanup and the beginning of permanent seeding and reasonable alternative access to the right-of-way is available, remove temporary equipment bridges as soon as practicable after final cleanup.

g. Obtain any necessary approval from the COE, or the appropriate state agency for permanent bridges.

6. Dry-Ditch Crossing Methods

a. Unless approved otherwise by the appropriate federal or state agency, install the pipeline using one of the dry-ditch methods outlined below for crossings of waterbodies up to 30 feet wide (at the water's edge at the time of construction) that are state-designated as either coldwater or significant coolwater or warmwater fisheries, or federally-designated as critical habitat.

b. Dam and Pump

(1) The dam-and-pump method may be used without prior approval for crossings of waterbodies where pumps can adequately transfer streamflow volumes around the work area, and there are no concerns about sensitive species passage.

(2) Implementation of the dam-and-pump crossing method must meet the following performance criteria:

(i) use sufficient pumps, including on-site backup pumps, to maintain downstream flows;
(ii) construct dams with materials that prevent sediment and other pollutants from entering the waterbody (e.g., sandbags or clean gravel with plastic liner);
(iii) screen pump intakes to minimize entrainment of fish;
(iv) prevent streambed scour at pump discharge; and
(v) continuously monitor the dam and pumps to ensure proper operation throughout the waterbody crossing.

c. Flume Crossing

The flume crossing method requires implementation of the following steps:

(1) install flume pipe after blasting (if necessary), but before any trenching;

(2) use sand bag or sand bag and plastic sheeting diversion structure or equivalent to develop an effective seal and to divert stream flow through the flume pipe (some modifications to the stream bottom may be required to achieve an effective seal);

(3) properly align flume pipe(s) to prevent bank erosion and streambed scour;

(4) do not remove flume pipe during trenching, pipelaying, or backfilling activities, or initial streambed restoration efforts; and

(5) remove all flume pipes and dams that are not also part of the equipment bridge as soon as final cleanup of the stream bed and bank is complete.

d. Horizontal Directional Drill

For each waterbody or wetland that would be crossed using the HDD method, file with the Secretary for the review and written approval by the Director, a plan that includes:

(1) site-specific construction diagrams that show the location of mud pits, pipe assembly areas, and all areas to be disturbed or cleared for construction;

(2) justification that disturbed areas are limited to the minimum needed to construct the crossing;

(3) identification of any aboveground disturbance or clearing between the HDD entry and exit workspaces during construction;

(4) a description of how an inadvertent release of drilling mud would be contained and cleaned up; and

(5) a contingency plan for crossing the waterbody or wetland in the event the HDD is unsuccessful and how the abandoned drill hole would be sealed, if necessary.

The requirement to file HDD plans does not apply to projects constructed under the automatic authorization provisions in the FERC's regulations.

7. Crossings of Minor Waterbodies

Where a dry-ditch crossing is not required, minor waterbodies may be crossed using the open-cut crossing method, with the following restrictions:

a. except for blasting and other rock breaking measures, complete instream construction activities (including trenching, pipe installation, backfill, and restoration of the streambed contours) within 24 hours.

Streambanks and unconsolidated streambeds may require additional restoration after this period;

b. limit use of equipment operating in the waterbody to that needed to construct the crossing; and

c. equipment bridges are not required at minor waterbodies that do not have a state-designated fishery classification or protected status (e.g., agricultural or intermittent drainage ditches). However, if an equipment bridge is used it must be constructed as described in section V.B.5.

8. Crossings of Intermediate Waterbodies

Where a dry-ditch crossing is not required, intermediate waterbodies may be crossed using the open-cut crossing method, with the following restrictions:

a. complete instream construction activities (not including blasting and other rock breaking measures) within 48 hours, unless site-specific conditions make completion within 48 hours infeasible;

b. limit use of equipment operating in the waterbody to that needed to construct the crossing; and

c. all other construction equipment must cross on an equipment bridge as specified in section V.B.5.

9. Crossings of Major Waterbodies

Before construction, the project sponsor shall file with the Secretary for the review and written approval by the Director a detailed, site-specific construction plan and scaled drawings identifying all areas to be disturbed by construction for each major waterbody crossing (the scaled drawings are not required for any offshore portions of pipeline projects). This plan must be developed in consultation with the appropriate state and federal agencies and shall include extra work areas, spoil storage areas, sediment control structures, etc., as well as mitigation for navigational issues. The requirement to file major waterbody crossing plans does not apply to projects constructed under the automatic authorization provisions of the FERC's regulations.

The Environmental Inspector may adjust the final placement of the erosion and sediment control structures in the field to maximize effectiveness.

10. Temporary Erosion and Sediment Control

Install sediment barriers (as defined in section IV.F.3.a of the Plan) immediately after initial disturbance of the waterbody or adjacent upland.

Sediment barriers must be properly maintained throughout construction and reinstalled as necessary (such as after backfilling of the trench) until replaced by permanent erosion controls or restoration of adjacent upland areas is complete. Temporary erosion and sediment control measures are addressed in more detail in the Plan; however, the following specific measures must be implemented at stream crossings:

a. install sediment barriers across the entire construction right-of-way at all waterbody crossings, where necessary to prevent the flow of sediments into the waterbody. Removable sediment barriers (or driveable berms) must be installed across the travel lane. These removable sediment barriers can be removed during the construction day, but must be re-installed after construction has stopped for the day and/or when heavy precipitation is imminent;

b. where waterbodies are adjacent to the construction right-of-way and the right-of-way slopes toward the waterbody, install sediment barriers along the edge of the construction right-of-way as necessary to contain spoil within the construction right-of-way and prevent sediment flow into the waterbody; and

c. use temporary trench plugs at all waterbody crossings, as necessary, to prevent diversion of water into upland portions of the pipeline trench and to keep any accumulated trench water out of the waterbody.

11. Trench Dewatering

Dewater the trench (either on or off the construction right-of-way) in a manner that does not cause erosion and does not result in silt-laden water flowing into any waterbody. Remove the dewatering structures as soon as practicable after the completion of dewatering activities.

C. RESTORATION

1. Use clean gravel or native cobbles for the upper 1 foot of trench backfill in all waterbodies that contain coldwater fisheries.

2. For open-cut crossings, stabilize waterbody banks and install temporary sediment barriers within 24 hours of completing instream construction activities. For dry-ditch crossings, complete streambed and bank stabilization before returning flow to the waterbody channel.

3. Return all waterbody banks to preconstruction contours or to a stable angle of repose as approved by the Environmental Inspector.

4. Install erosion control fabric or a functional equivalent on waterbody banks at the time of final bank recontouring. Do not use synthetic monofilament

mesh/netted erosion control materials in areas designated as sensitive wildlife habitat unless the product is specifically designed to minimize harm to wildlife. Anchor erosion control fabric with staples or other appropriate devices.

5. Application of riprap for bank stabilization must comply with COE, or its delegated agency, permit terms and conditions.

6. Unless otherwise specified by state permit, limit the use of riprap to areas where flow conditions preclude effective vegetative stabilization techniques such as seeding and erosion control fabric.

7. Revegetate disturbed riparian areas with native species of conservation grasses, legumes, and woody species, similar in density to adjacent undisturbed lands.

8. Install a permanent slope breaker across the construction right-of-way at the base of slopes greater than 5 percent that are less than 50 feet from the waterbody, or as needed to prevent sediment transport into the waterbody. In addition, install sediment barriers as outlined in the Plan.

   In some areas, with the approval of the Environmental Inspector, an earthen berm may be suitable as a sediment barrier adjacent to the waterbody.

9. Sections V.C.3 through V.C.7 above also apply to those perennial or intermittent streams not flowing at the time of construction.

D. POST-CONSTRUCTION MAINTENANCE

1. Limit routine vegetation mowing or clearing adjacent to waterbodies to allow a riparian strip at least 25 feet wide, as measured from the waterbody's mean high water mark, to permanently revegetate with native plant species across the entire construction right-of-way. However, to facilitate periodic corrosion/leak surveys, a corridor centered on the pipeline and up to 10 feet wide may be cleared at a frequency necessary to maintain the 10-foot corridor in an herbaceous state. In addition, trees that are located within 15 feet of the pipeline that have roots that could compromise the integrity of the pipeline coating may be cut and removed from the permanent right-of-way. Do not conduct any routine vegetation mowing or clearing in riparian areas that are between HDD entry and exit points.

2. Do not use herbicides or pesticides in or within 100 feet of a waterbody except as allowed by the appropriate land management or state agency.

3. Time of year restrictions specified in section VII.A.5 of the Plan (April 15 – August 1 of any year) apply to routine mowing and clearing of riparian areas.

VI. WETLAND CROSSINGS

A. GENERAL

1. The project sponsor shall conduct a wetland delineation using the current federal methodology and file a wetland delineation report with the Secretary before construction. The requirement to file a wetland delineation report does not apply to projects constructed under the automatic authorization provisions in the FERC's regulations.

   This report shall identify:

   a. by milepost all wetlands that would be affected;

   b. the National Wetlands Inventory (NWI) classification for each wetland;

   c. the crossing length of each wetland in feet; and

   d. the area of permanent and temporary disturbance that would occur in each wetland by NWI classification type.

   The requirements outlined in this section do not apply to wetlands in actively cultivated or rotated cropland. Standard upland protective measures, including workspace and topsoiling requirements, apply to these agricultural wetlands.

2. Route the pipeline to avoid wetland areas to the maximum extent possible. If a wetland cannot be avoided or crossed by following an existing right-of-way, route the new pipeline in a manner that minimizes disturbance to wetlands. Where looping an existing pipeline, overlap the existing pipeline right-of-way with the new construction right-of-way. In addition, locate the loop line no more than 25 feet away from the existing pipeline unless site-specific constraints would adversely affect the stability of the existing pipeline.

3. Limit the width of the construction right-of-way to 75 feet or less. Prior written approval of the Director is required where topographic conditions or soil limitations require that the construction right-of-way width within the boundaries of a federally delineated wetland be expanded beyond 75 feet. Early in the planning process the project sponsor is encouraged to identify site-specific areas where excessively wide trenches could occur and/or where spoil piles could be difficult to maintain because existing soils lack adequate unconfined compressive strength.

4. Wetland boundaries and buffers must be clearly marked in the field with signs and/or highly visible flagging until construction-related ground disturbing activities are complete.

5. Implement the measures of sections V and VI in the event a waterbody crossing is located within or adjacent to a wetland crossing. If all measures of sections V and VI cannot be met, the project sponsor must file with the Secretary a site-specific crossing plan for review and written approval by the Director before construction. This crossing plan shall address at a minimum:

   a. spoil control;

   b. equipment bridges;

   c. restoration of waterbody banks and wetland hydrology;

   d. timing of the waterbody crossing;

   e. method of crossing; and

   f. size and location of all extra work areas.

6. Do not locate aboveground facilities in any wetland, except where the location of such facilities outside of wetlands would prohibit compliance with U.S. Department of Transportation regulations.

B. INSTALLATION

1. Extra Work Areas and Access Roads

   a. Locate all extra work areas (such as staging areas and additional spoil storage areas) at least 50 feet away from wetland boundaries, except where the adjacent upland consists of cultivated or rotated cropland or other disturbed land.

   b. The project sponsor shall file with the Secretary for review and written approval by the Director, site-specific justification for each extra work area with a less than 50-foot setback from wetland boundaries, except where adjacent upland consists of cultivated or rotated cropland or other disturbed land. The justification must specify the site-specific conditions that will not permit a 50-foot setback and measures to ensure the wetland is adequately protected.

   c. The construction right-of-way may be used for access when the wetland soil is firm enough to avoid rutting or the construction right-of-way has been appropriately stabilized to avoid rutting (e.g., with timber riprap, prefabricated equipment mats, or terra mats).

      In wetlands that cannot be appropriately stabilized, all construction equipment other than that needed to install the wetland crossing shall

use access roads located in upland areas. Where access roads in upland areas do not provide reasonable access, limit all other construction equipment to one pass through the wetland using the construction right-of-way.

d. The only access roads, other than the construction right-of-way, that can be used in wetlands are those existing roads that can be used with no modifications or improvements, other than routine repair, and no impact on the wetland.

2. Crossing Procedures

a. Comply with COE, or its delegated agency, permit terms and conditions.

b. Assemble the pipeline in an upland area unless the wetland is dry enough to adequately support skids and pipe.

c. Use "push-pull" or "float" techniques to place the pipe in the trench where water and other site conditions allow.

d. Minimize the length of time that topsoil is segregated and the trench is open. Do not trench the wetland until the pipeline is assembled and ready for lowering in.

e. Limit construction equipment operating in wetland areas to that needed to clear the construction right-of-way, dig the trench, fabricate and install the pipeline, backfill the trench, and restore the construction right-of-way.

f. Cut vegetation just above ground level, leaving existing root systems in place, and remove it from the wetland for disposal.

The project sponsor can burn woody debris in wetlands, if approved by the COE and in accordance with state and local regulations, ensuring that all remaining woody debris is removed for disposal.

g. Limit pulling of tree stumps and grading activities to directly over the trenchline. Do not grade or remove stumps or root systems from the rest of the construction right-of-way in wetlands unless the Chief Inspector and Environmental Inspector determine that safety-related construction constraints require grading or the removal of tree stumps from under the working side of the construction right-of-way.

h. Segregate the top 1 foot of topsoil from the area disturbed by trenching, except in areas where standing water is present or soils are

saturated. Immediately after backfilling is complete, restore the segregated topsoil to its original location.

i. Do not use rock, soil imported from outside the wetland, tree stumps, or brush riprap to support equipment on the construction right-of-way.

j. If standing water or saturated soils are present, or if construction equipment causes ruts or mixing of the topsoil and subsoil in wetlands, use low-ground-weight construction equipment, or operate normal equipment on timber riprap, prefabricated equipment mats, or terra mats.

k. Remove all project-related material used to support equipment on the construction right-of-way upon completion of construction.

3. Temporary Sediment Control

Install sediment barriers (as defined in section IV.F.3.a of the Plan) immediately after initial disturbance of the wetland or adjacent upland. Sediment barriers must be properly maintained throughout construction and reinstalled as necessary (such as after backfilling of the trench). Except as noted below in section VI.B.3.c, maintain sediment barriers until replaced by permanent erosion controls or restoration of adjacent upland areas is complete. Temporary erosion and sediment control measures are addressed in more detail in the Plan.

a. Install sediment barriers across the entire construction right-of-way immediately upslope of the wetland boundary at all wetland crossings where necessary to prevent sediment flow into the wetland.

b. Where wetlands are adjacent to the construction right-of-way and the right-of-way slopes toward the wetland, install sediment barriers along the edge of the construction right-of-way as necessary to contain spoil within the construction right-of-way and prevent sediment flow into the wetland.

c. Install sediment barriers along the edge of the construction right-of-way as necessary to contain spoil and sediment within the construction right-of-way through wetlands. Remove these sediment barriers during right-of-way cleanup.

4. Trench Dewatering

Dewater the trench (either on or off the construction right-of-way) in a manner that does not cause erosion and does not result in silt-laden water flowing into any wetland. Remove the dewatering structures as soon as practicable after the completion of dewatering activities.

C. RESTORATION

1. Where the pipeline trench may drain a wetland, construct trench breakers at the wetland boundaries and/or seal the trench bottom as necessary to maintain the original wetland hydrology.

2. Restore pre-construction wetland contours to maintain the original wetland hydrology.

3. For each wetland crossed, install a trench breaker at the base of slopes near the boundary between the wetland and adjacent upland areas. Install a permanent slope breaker across the construction right-of-way at the base of slopes greater than 5 percent where the base of the slope is less than 50 feet from the wetland, or as needed to prevent sediment transport into the wetland. In addition, install sediment barriers as outlined in the Plan. In some areas, with the approval of the Environmental Inspector, an earthen berm may be suitable as a sediment barrier adjacent to the wetland.

4. Do not use fertilizer, lime, or mulch unless required in writing by the appropriate federal or state agency.

5. Consult with the appropriate federal or state agencies to develop a project-specific wetland restoration plan. The restoration plan shall include measures for re-establishing herbaceous and/or woody species, controlling the invasion and spread of invasive species and noxious weeds (e.g., purple loosestrife and phragmites), and monitoring the success of the revegetation and weed control efforts. Provide this plan to the FERC staff upon request.

6. Until a project-specific wetland restoration plan is developed and/or implemented, temporarily revegetate the construction right-of-way with annual ryegrass at a rate of 40 pounds/acre (unless standing water is present).

7. Ensure that all disturbed areas successfully revegetate with wetland herbaceous and/or woody plant species.

8. Remove temporary sediment barriers located at the boundary between wetland and adjacent upland areas after revegetation and stabilization of adjacent upland areas are judged to be successful as specified in section VII.A.4 of the Plan.

D. POST-CONSTRUCTION MAINTENANCE AND REPORTING

1. Do not conduct routine vegetation mowing or clearing over the full width of the permanent right-of-way in wetlands. However, to facilitate periodic corrosion/leak surveys, a corridor centered on the pipeline and up to 10 feet wide may be cleared at a frequency necessary to maintain the 10-foot corridor in an herbaceous state. In addition, trees within 15 feet of the pipeline with roots that could compromise the integrity of pipeline coating may be selectively cut and removed from the permanent right-of-way. Do not conduct any routine vegetation mowing or clearing in wetlands that are between HDD entry and exit points.

2. Do not use herbicides or pesticides in or within 100 feet of a wetland, except as allowed by the appropriate federal or state agency.

3. Time of year restrictions specified in section VII.A.5 of the Plan (April 15 – August 1 of any year) apply to routine mowing and clearing of wetland areas.

4. Monitor and record the success of wetland revegetation annually until wetland revegetation is successful.

5. Wetland revegetation shall be considered successful if all of the following criteria are satisfied:

   a. the affected wetland satisfies the current federal definition for a wetland (i.e., soils, hydrology, and vegetation);

   b. vegetation is at least 80 percent of either the cover documented for the wetland prior to construction, or at least 80 percent of the cover in adjacent wetland areas that were not disturbed by construction;

   c. if natural rather than active revegetation was used, the plant species composition is consistent with early successional wetland plant communities in the affected ecoregion; and

   d. invasive species and noxious weeds are absent, unless they are abundant in adjacent areas that were not disturbed by construction.

6. Within 3 years after construction, file a report with the Secretary identifying the status of the wetland revegetation efforts and documenting success as defined in section VI.D.5, above. The requirement to file wetland restoration reports with the Secretary does not apply to projects constructed under the automatic authorization, prior notice, or advance notice provisions in the FERC's regulations.

   For any wetland where revegetation is not successful at the end of 3 years after construction, develop and implement (in consultation with a

professional wetland ecologist) a remedial revegetation plan to actively revegetate wetlands. Continue revegetation efforts and file a report annually documenting progress in these wetlands until wetland revegetation is successful.

VII. HYDROSTATIC TESTING

A. NOTIFICATION PROCEDURES AND PERMITS

1. Apply for state-issued water withdrawal permits, as required.

2. Apply for National Pollutant Discharge Elimination System (NPDES) or state-issued discharge permits, as required.

3. Notify appropriate state agencies of intent to use specific sources at least 48 hours before testing activities unless they waive this requirement in writing.

B. GENERAL

1. Perform 100 percent radiographic inspection of all pipeline section welds or hydrotest the pipeline sections, before installation under waterbodies or wetlands.

2. If pumps used for hydrostatic testing are within 100 feet of any waterbody or wetland, address secondary containment and refueling of these pumps in the project's Spill Prevention and Response Procedures.

3. The project sponsor shall file with the Secretary before construction a list identifying the location of all waterbodies proposed for use as a hydrostatic test water source or discharge location. This filing requirement does not apply to projects constructed under the automatic authorization provisions of the FERC's regulations.

C. INTAKE SOURCE AND RATE

1. Screen the intake hose to minimize the potential for entrainment of fish.

2. Do not use state-designated exceptional value waters, waterbodies which provide habitat for federally listed threatened or endangered species, or waterbodies designated as public water supplies, unless appropriate federal, state, and/or local permitting agencies grant written permission.

3. Maintain adequate flow rates to protect aquatic life, provide for all waterbody uses, and provide for downstream withdrawals of water by existing users.

4. Locate hydrostatic test manifolds outside wetlands and riparian areas to the maximum extent practicable.

D. DISCHARGE LOCATION, METHOD, AND RATE

1. Regulate discharge rate, use energy dissipation device(s), and install sediment barriers, as necessary, to prevent erosion, streambed scour, suspension of sediments, or excessive streamflow.

2. Do not discharge into state-designated exceptional value waters, waterbodies which provide habitat for federally listed threatened or endangered species, or waterbodies designated as public water supplies, unless appropriate federal, state, and local permitting agencies grant written permission.

Spill Prevention, Control, and Countermeasures Plan

El Paso Natural Gas Company, L.L.C.
a Kinder Morgan company

SPILL PREVENTION, CONTROL, AND COUNTERMEASURES PLAN

McCloud Lateral Project

FERC Docket CP 26-__-000

El Paso Natural Gas Company, L.L.C.
Two North Nevada
Colorado Springs, Colorado 80903

July 2026

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Acronyms and Abbreviations

AST	Aboveground storage tank
Bcf	Billion cubic feet
CERCLA	Comprehensive Environmental Response, Compensation, and Liability Act
Certificate	Certificate of Public Convenience and Necessity Commission
CFR	Code of Federal Register
Dth/day	Dekatherms per day
EI	Environmental Inspector
EPNG	El Paso Natural Gas Company, L.L.C.
ERL	Emergency Response Line
FERC	Federal Energy Regulatory Commission
ft	feet
I/W	Injection/Withdrawal
NRC	National Response Center
NGA	Natural Gas Act
O.D.	outside diameter
PAR	Permanent Access Roads
Project	McCloud Lateral Project
RQ	reportable quantity
SPCC Plan	Spill Prevention, Control, and Countermeasure Plan
SRCR	Surface Release Characterization Report
TCEQ	Texas Commission on Environmental Quality
UST	Underground storage tank

1.0 INTRODUCTION

El Paso Natural Gas Company, L.L.C.'s (EPNG) is seeking authorization from the Federal Energy Regulatory Commission (FERC) under the Prior Notice procedures of the FERC's blanket certificate regulations (Sections 157.205, 157.208, and 157.210 of the FERC's regulations, 18 Code of Federal Regulations [CFR], §§ 157.205, 157.208, and 157.210 [2026]), for approval of the McCloud Lateral Project (Project), located in El Paso County, Texas.

The proposed Project involves an approximately 5.7 miles of 16-inch outside diameter pipeline that will originate upstream of EPNG's existing El Paso Compressor Station on its South Mainline system and move north-east ending at a new delivery meter station near the McCloud Generation facility in El Paso County, Texas (see Figure 1.1-1) with related appurtenances.

EPNG anticipates starting construction on the Project in the fourth quarter of 2026, after receipt of all federal, state and local authorizations, and permits. Depending on the actual construction start date, the Project's in-service date is expected as early as January 1, 2027.

2.0 PREVENTATIVE MEASURES

The Spill Prevention, Control and Countermeasures ("SPCC") Plan provides preventative and mitigative measures to be employed by EPNG during construction of the Project and/or operations and maintenance activities for the Project facilities.

Methods listed in this plan are based on approved spill control plans that EPNG has used successfully in the past and are established to minimize the environmental impact associated with spills or releases at fuel, lubricant, or hazardous materials storage areas, during normal upland construction and refueling activities, and during special refueling activities within 100 feet of perennial stream banks, wetland boundaries, or within municipal watersheds. The Project's on-site Environmental Inspector ("EI") is responsible for ensuring that EPNG's Contractors implement the measures and procedures outlined in this SPCC Plan.

2.1 Training

The Contractor will instruct personnel on the operation and maintenance of equipment to prevent the accidental discharge or spill of fuel, oil, and lubricants. Personnel will also be made aware of the pollution control laws, rules, and regulations applicable to their work. The Contractor is responsible for maintaining records of the training provided.

Spill prevention briefings with the construction crew will be scheduled and conducted by the Contractor to ensure adequate understanding of spill prevention measures. These briefings will highlight:

- Precautionary measures to prevent spills;
- Sources of spills, such as equipment failure or malfunction;
- Standard operating procedures in case of a spill;
- Equipment, materials, and supplies available for clean-up of a spill;
- Sample collection procedures; and
- A list of known spill events.

A spill is an un-permitted release of product, raw materials, or chemicals outside any secondary containment and into the environment. Spills can occur as a result of leaks, accidents, or third-party incidents.

2.2 Equipment Inspection/Maintenance

The Contractor will inspect and maintain equipment that must be fueled and/or lubricated according to a strict schedule. The Contractor will submit to EPNG for approval written documentation of the methods used and work performed.

All containers, valves, pipelines, and hoses will be examined regularly to assess their general condition. The examination will identify any signs of deterioration that could cause a spill and signs of leaks, such as accumulated fluids. All leaks will be promptly corrected and/or repaired.

2.3 Refueling

The Contractor will ensure that: fuel trucks transporting fuel to on-site equipment travel only within construction workspaces; all equipment is parked overnight and/or fueled at least 100 feet from a waterbody or in an upland area; and equipment is refueled and lubricated within construction workspaces or other permitted area and at least 100 feet away from all waterbodies and wetlands.

Exceptions from the 100-foot setback for refueling and parking are only permitted if the EI finds, in advance, that no reasonable alternative is available, and the Contractor and EPNG have taken appropriate steps (including secondary containment structures) to prevent spills and provide for prompt cleanup in the event of a spill. Examples of such situations may include:

- Locations where the waterbody or wetland is located adjacent to an access driveway or interior access road; and
- Refueling of immobile equipment, including, but not limited to, bending machines, and air compressors and dewatering or hydro-test fill pumps. Pumps operating within 100 feet of a waterbody or wetland boundary must utilize appropriate secondary containment systems to prevent spills.

In these areas, auxiliary fuel tanks will be used to reduce the frequency of refueling operations and in no case will refueling take place within 100 feet of any known potable water wells.

The Contractor will ensure that all refueling is done pursuant to the following conditions:

- Impact minimization measures and equipment will be available and sufficient to prevent discharged fluids from leaving the compressor station yard and construction workspace, or from reaching wetlands or waterbodies, and will be readily available for use. These will include a combination of the following:
    - Dikes, berms, or retaining walls sufficiently impervious to contain spilled oil;
    - Sorbent and barrier materials in quantities determined by the Contractor to be sufficient to capture the largest reasonably foreseeable spill;
    - Drums or containers suitable for holding and transporting contaminated materials;
    - Curbing;
    - Culverts, gutters, or other drainage systems;
    - Weirs, booms, or other barriers;
    - Spill diversion or retention ponds; and
    - Sumps and collection systems.
- All spills will be cleaned up immediately. Containment equipment will not be used for storing contaminated material.

Concrete coating activities will not be performed within 100 feet of a wetland or waterbody boundary unless the location is an existing industrial site. These activities can occur closer only if the EI determines that there is no reasonable alternative, and the project sponsor and its contractors have taken appropriate steps (including secondary containment structures) to prevent spills and provide for prompt cleanup in the event of a spill.

The Contractor will prepare, for approval by EPNG, a list of the type, quantity, and the storage location of containment and cleanup equipment to be used during construction.

2.4 Storage

The Contractor will ensure that hazardous materials, including chemicals, fuels, and lubricating oils, are not stored within 100 feet of a wetland, waterbody, or designated municipal watershed area, unless the location is designated for such use by an appropriate governmental authority. This applies to storage of these materials and does not apply to normal operation or use of equipment in these areas. Any exceptions would require prior written approval by EPNG and applicable regulatory agencies.

Storage containment areas will not have drains unless such drains lead to a containment area or vessel where the entire spill can be recovered. The Contractor will ensure that bulk storage of hazardous materials, including chemicals, fuels, and lubricating oils will have appropriate secondary containment systems.

3.0 IMPACT MINIMIZATION MEASURES

Containment is the immediate priority in the case of a spill. A spill will be contained on EPNG's property owned in fee, compressor station yard, or construction workspace, if possible. Cleanup procedures will begin immediately after a spill is contained. In no case will containment equipment be used to store contaminated material.

Project operations will be structured in a manner that provides for the prompt and effective cleanup of spills of fuel and other hazardous materials. The Contractor will ensure the construction crews (including cleanup crews) have on hand:

- Sufficient supplies of absorbent and barrier materials to allow the rapid containment and recovery of spilled materials and knows the procedure for reporting spills and unanticipated discovers of contaminate;
- Sufficient tools and material to stop leaks; and
- Names and telephone numbers for all local, state, and federal agencies (including, if necessary, the U.S. Coast Guard and the National Response Center ["NRC"]) that must be notified of a spill. See Section 3.1 for Spill Reporting Procedures. The Contractor will follow the requirements of those agencies in cleaning up the spill, excavating and disposing of soils or other materials contaminated by a spill, and collecting and disposing of waste generated during spill cleanup.

3.1 Spill Response and Reporting Procedures

Upon identification of a spill or release, the Contractor shall immediately report any spill or release of the following materials, regardless of location or quantity, to the EI:

- Oil or petroleum products (e.g., hydraulic fluid, vegetable oil, lubricating oils);
- Hazardous substances or hazardous wastes (e.g., fuels, solvents, paint);
- Chemicals;
- Unplanned natural gas (flaring or venting); and
- Asbestos-containing materials.

If a spill enters a body of water, the Contractor will immediately take samples upstream and downstream from point of entry and refrigerate samples. If advised, additional analysis will be completed and/or additional samples will be gathered.

The EI and/or Chief Inspector shall notify EPNG environmental personnel: (1) Project Permitting Environmental Project Manager, (2) Field Environmental Services Specialist. The following information shall be provided to EPNG:

- The date, time and location of the occurrence or discovery of the occurrence;
- A description or identity of the material spilled;
- An estimate of the quantity spilled;
- The circumstances that caused the spill (e.g., equipment failure);

- A list of wetlands and waterbodies affected or potentially affected by the spill;
- A statement verifying whether a sheen is present;
- The size of the affected area;
- An estimate of the depth that the material has reached in water or on soil;
- A determination of whether the spill will migrate off of the Company's property or right-of-way or workspace;
- A determination of whether the spill is under control;
- A statement verifying that cleanup has begun and a description of the methods being used to clean up the spill;
- The names of the people observing the spill (with their affiliations) and the extent of injuries, if any; and
- The "Spill Documentation Form."

EPNG will determine if the incident is reportable to state or federal agencies and make any necessary agency notifications.

If the spill or release is reportable to state or federal agencies EPNG will enter the incident into IMPACT and contact Project Management for a project Emergency Response Line ("ERL") entry, as necessary.

3.2 Reporting Criteria

The following releases require immediate (within 1 hour of discovery) notification to the NRC:

- Any petroleum product released into streams, rivers, lakes, or dry washes;
- A release that exceeds the reportable quantity ("RQ") of any Comprehensive Environmental Response, Compensation, and Liability Act ("CERCLA") hazardous substances in any 24-hour period which is not fully contained;
- A release of a hazardous substance or hazardous waste which occurs during transportation; and,
- A release of hazardous waste which contains a RQ of a hazardous substance.

The NRC (1-800-424-8802) will be notified immediately if spills occur above threshold levels (Clean Water Act, 40 CFR 110.10) into surface waters and/or wetlands.

3.2.1 Texas

A surface spill or overfill of a regulated substance is considered a confirmed release when: 1) any spill or overfill quantity is not cleaned up within 24 hours, or 2) a spill or overfill quantity is greater than 25 gallons. Upon discovery of a regulated substance on the ground or in surface water, or if a regulated substance has the potential to create a fire, explosion or acute health hazard, emergency response action shall be initiated immediately. If the released product has come into contact with surficial soil, surface water, groundwater, a stormwater collection system that discharges to surface water, or a sensitive environment, the owner/operator is required to conduct

a site characterization in accordance with this guidance. Any release of a Texas Department of Environmental Quality (TCEQ) regulated substance that has or may impact waters of the State, no matter how small, must immediately be reported to the Texas Emergency Oil Spill and Hazardous Substance Reporting response center at 1-800-832-8224. If the owner/operator can demonstrate that less than 100 gallons of product was released and that the released product did not come in contact with surficial soil, surface water, groundwater, a stormwater collection system that discharges to surface water, or a sensitive environment, the owner/operator may submit a Surface Release Characterization Report ("SRCR") in accordance with the Instructions for a SRCR. The primary elements of an SRCR are described below.

A narrative must be provided that summarizes the events pertaining to the release, including the following:

- A chronology of the initial response
- Weather conditions at the time of the release and during the cleanup
- Identification of responders including names and contact information
- Abatement activities and disposition of abatement derived waste.

A site map must show the surface area of the release, and include the following:

- North arrow
- Property boundaries
- Locations and names of streets
- Site buildings and structures
- Location of underground storage tanks ("UST"), aboveground storage tanks ("AST"), dispensers, and product piping runs
- Type of ground cover (e.g., asphalt, concrete)
- Groundwater monitoring wells and tank pit observation wells.

Attach all available reports from private contractors and local, county, and state agencies. Typically, the fire department response report will be available. Provide photos to document the surface release area, abatement and cleanup activities, and post abatement and mitigation conditions at the site. Attach copies of all manifests provided by transporters, landfills, disposal, and treatment facilities.

4.0 SUGGESTED EQUIPMENT LIST

Section 3.1 of this SPCC Plan states that the Contractor will prepare a list of the type, quantity, and location of storage, containment, and cleanup equipment to be used on the construction site. The list will include the Procedures and impact minimization measures to be used in response to a spill. The Contractor's choice of impact minimization measures and equipment will be tailored to meet the characteristics of the affected terrain, as well as the types and amounts of material that could potentially be spilled. The types of equipment that EPNG expects to use to control spills at terrestrial sites and wetlands are described in the FERC's *Upland Revegetation and Erosion Control Plan* (May 2013).

4.1 Terrestrial Construction

General equipment that the Contractor will use for spill containment and cleanup on terrestrial areas includes:

- Sorbents (pillows, socks, and wipe sheets) for containment and pickup of spilled liquids;
- Commercially available spill kits (or the functional equivalent thereof) that are prepackaged, self- contained spill kits containing a variety of sorbents for small to large spills;
- Structures such as gutters, culverts, and dikes for immediate spill containment;
- Shovels, backhoes, etc., for excavating contaminated materials;
- Sumps and collection systems; and
- Drums, barrels, and temporary storage bags to clean up and transport contaminated materials.

4.1.1 Fuels and Lubricating Oil Storage

The Contractor will implement special measures to prevent spills in areas where trucks carrying fuel and oil barrels are loaded. Containment equipment will be kept close to tanks and barrels to minimize spill response time and will include absorbent pads or mats. The quantity and capabilities of the mats will be sufficient to capture the largest foreseeable spill, ROW or workspace characteristics, crankcase, and other fuel vessel capacities.

4.1.2 Routine Refueling and Maintenance

Absorbent pads and mats will be placed on the ground beneath equipment before refueling and maintenance. Equipment that will be stored on-site for routine refueling and maintenance includes small sorbent kits (or their functional equivalent).

4.1.3 Equipment Failure

Kits with the capacity of absorbing up to five gallons of liquid can fit beneath the operator's seat on construction equipment for use in an equipment failure.

4.2 Waterbody and Wetland Crossings

No wetlands and two ephemeral waterbodies are located within the Project area, however, the two ephemeral streams are in additional temporary workspace areas only and will not be crossed by the pipeline. The equipment listed below will be available as required, in addition to that needed for terrestrial construction. This equipment will be stored close to the water or wetland to minimize response time, and will include:

- Oil containment booms and the related equipment needed for rapid deployment; and
- Equipment to remove oils from water, such as oleophilic and hydrophobic absorbent booms and mats, and/or mechanical skimmers.

Noxious and Invasive Weed Plan

El Paso Natural Gas Company, L.L.C.
a Kinder Morgan company

NOXIOUS AND INVASIVE WEED PLAN

McCloud Lateral Project
FERC Docket CP 26-__-000

El Paso Natural Gas Company, L.L.C.
Two North Nevada
Colorado Springs, Colorado 80903

July 2026

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Acronyms and Abbreviations

Certificate	Certificate of Public Convenience and Necessity Commission
CFR	Code of Federal Register
EI	Environmental Inspector
EO	Executive Order
EPNG	El Paso Natural Gas Company, L.L.C.
FERC	Federal Energy Regulatory Commission
FERC Plan	FERC *Upland Erosion Control, Revegetation, and Maintenance Plan*
FERC Procedures	FERC *Wetland and Waterbody Construction and Mitigation Procedures*
I/W	Injection/Withdrawal
McCloud Lateral	new approximate 5.8 mile, 16-inch outside diameter pipeline lateral
McCloud Meter Station	new delivery meter station
NGA	Natural Gas Act
PAR	Permanent Access Roads
PM	particulate matter
Project	McCloud Lateral Project
TDA	Texas Department of Agriculture
Tetra Tech	Tetra Tech, Inc.

1.0 INTRODUCTION

EPNG is seeking authorization from the Federal Energy Regulatory Commission (FERC) under the Prior Notice procedures of the FERC's blanket certificate regulations (Sections 157.205, 157.208, 157.210 and 157.211 of the FERC's regulations, 18 Code of Federal Regulations [CFR], §§ 157.205, 157.208, 157.210 and 157.211 [2025]), for approval of the Project, located in El Paso County, Texas. [1]

The proposed Project involves the construction of a new approximate 5.8 mile, 16-inch outside diameter pipeline lateral (McCloud Lateral) that will originate upstream of EPNG's existing El Paso Compressor Station on its South Mainline System and move north-east ending at a new delivery meter station (McCloud Meter Station) near the planned McCloud Generation facility in El Paso County, Texas (see Figure 1.1-1) with related appurtenances.

EPNG anticipates starting construction on the Project during the fourth quarter of 2026, after receipt of all federal, state and local authorizations, and permits. Depending on the actual construction start date, the Project's in-service date is expected to be as early as January 1, 2027.

2.0 GOALS AND OBJECTIVES

The goal of a noxious and invasive weed control plan is to implement preventive measures to minimize the establishment and spread of noxious and invasive weeds during ground-disturbing activities associated with construction of the Project. Noxious weeds and other invasive plants are non-native, undesirable native, or introduced species that are able to outcompete desired native species and thereby decrease overall species diversity. Noxious weeds often invade and persist in areas after disturbance.

Noxious weeds are addressed by Executive Order ("EO") 13112, which was set into federal law on February 3, 1999. Under EO 13112, the federal government is required to prevent the introduction of invasive species, provide for their control, and minimize their impacts. The EO further specifies that the federal government shall not authorize, fund, or carry out actions likely to cause or promote the introduction or spread of invasive species unless it has been determined that the benefits of such actions would outweigh the potential harm caused by invasive species after all prudent and feasible measures to minimize risk of harm are taken in conjunction with the actions.

The State of Texas addresses the control of noxious and invasive plants through Texas Administrative Code (TAC) Title 4 Part 1 Chapter 19. The Texas Department of Agriculture (TDA) maintains a list of noxious and invasive plant list under Chapter 19.300(a) and regulates noxious weeds under Agricultural Code Title 5, Subtitle B, Chapter 78; Noxious Weed Control Districts (TDA 2026). This chapter addresses enforcement, compliance required and notice of control measures, among others.

There are two key elements to this Noxious and Invasive Weed Control Plan:

[1] With the exception of a 120-foot permanent access road segment located in Otero County, New Mexico, EPNG's Project facilities are situated in El Paso County, Texas.

1. Identification of pre-existing problematic plant species and treatment of existing infestations prior to construction.
2. Maintenance of construction equipment in a weed-free state during the construction process.

3.0 Applicability

This Plan is applicable, if the Project is approved, to activities that would occur during pre-construction, construction, and commissioning of the Project that causes ground disturbance in the construction workspaces including equipment, materials, access roads, and staging areas.

4.0 Pre-construction Conditions

In April 2026, Tetra Tech, Inc (Tetra Tech) conducted a field survey for the McCloud Lateral Project, located in El Paso County, Texas. No state listed or otherwise regulated noxious or invasive weed species as defined by the Texas Department of Agriculture (TDA) (TDA 2026) were identified.

5.0 General Construction Procedures

Prior to construction, EPNG will provide information and training regarding noxious weed management as part of pre-construction environmental training. The importance of preventing the spread of noxious weeds into areas not already infested as well as the importance of controlling the proliferation of weeds already present will be explained. Prior to construction, areas of concern for noxious weeds will be identified and flagged in the field by EPNG's Environmental Inspector ("EI"). The flagging will alert construction personnel and prevent access into areas until noxious weed management control measures have been properly implemented.

Any new weed populations identified by EPNG's EI prior to construction will be treated with appropriate measures to prevent their spread.

Measures may include physical removal, spot spraying with approved herbicides, mechanical treatment, or covering with growth-preventing materials (e.g., black plastic tarps).

Contractors will be required to ensure that vehicles arrive at the work site clean and weed free. EPNG's EI will inspect vehicles to determine that they are free of soil and debris capable of transporting seeds or other propagules.

In areas with existing noxious weed infestations, vegetation and soils will be stockpiled in a location adjacent to the removal site and following construction, will be returned to their original location in order to prevent their spread with Project workspaces.

Following work at identified noxious weed infested sites, the contractor will be required to use compressed air or other means to remove soil and propagules from machinery and vehicles to prevent their transport to other sections of the project site.

Restoration of disturbed areas will follow immediately after construction. In addition, EPNG will comply with the May 2013 FERC *Upland Erosion Control, Revegetation, and Maintenance Plan* ("FERC Plan") (FERC 2013a) and the May 2013 FERC *Wetland and Waterbody Construction and*

Mitigation Procedures ("FERC Procedures") (FERC 2013b). The contractor will ensure and certify in writing that all straw bales used for sediment and erosion controls, mulch distribution, and restoration seed mixes are certified as weed-free from the supplier.

Since the locations of aboveground appurtenant facilities are, or will be, largely maintained with herbaceous and gravel cover during operations, noxious weed control requirements are anticipated to be limited mainly to spot mowing, mechanical removal, or approved herbicide application during operations.

6.0 Monitoring and Maintenance

Following construction and restoration, EPNG will monitor and treat target species noxious weed infestations as needed. Treatment will be consistent with existing control measures currently implemented along the South Mainline system.

Herbicide applications, if needed, will follow United States Environmental Protection Agency label guidelines, and be performed in accordance with federal, state, and local laws and regulations.

In general, the guidelines to be implemented will include:

- Implementing control measures for noxious plants before seed maturation.
- Suspending herbicide application when:
    - Wind velocities exceed 6 miles per hour for the application of liquid materials and 15 miles per hour for the application of granular materials.
    - Ice covers the target vegetation; or
    - Precipitation is occurring or imminent.
- Transporting to the construction site only the quantity of material necessary to treat the expected weed population. Herbicides will be transported in approved containers that are inspected daily for leaks.
- Mixing of chemical controls at least 200 feet from wetlands, waterbodies, or other known sensitive biological resources (e.g., localities supporting threatened or endangered species).
- Precluding use of herbicides within 100 feet of wetlands or waterbodies unless specifically authorized by an appropriate regulatory agency.
- Carrying material safety data sheets and spill kits in any vehicle transporting or applying herbicides.
- Scheduling weed control efforts to occur before seed maturation/development.

7.0 References

Federal Energy Regulatory Commission (FERC). 2013a. FERC *Upland Erosion Control, Revegetation, and Maintenance Plan*. https://www.ferc.gov/sites/default/files/2020-04/upland-erosion- control-revegetation-maintenance-plan.pdf. Accessed June 2026.

FERC. 2013b. FERC *Wetland and Waterbody Construction and Mitigation Procedures.* https://www.ferc.gov/sites/default/files/2020-04/wetland-waterbody-construction-mitigation-procedures.pdf. Accessed June 2026.

Texas Department of Agriculture (TDA). 2026. Noxious and Invasive Plants. Available at: https://www.texasagriculture.gov/Regulatory-Programs/Plant-Quality/Noxious-and-Invasive-Plants. Accessed June 2026.

UNANTICIPATED DISCOVERIES PLAN FOR CULTURAL RESOURCES AND HUMAN REMAINS

Proposed McCloud Lateral Project,

El Paso County, TX

Prepared for

El Paso Natural Gas Company, L.L.C.
a Kinder Morgan company

El Paso Natural Gas Company, L.L.C.
Two North Nevada
Colorado Springs, Colorado 80903

Prepared by

TETRA TECH

Tetra Tech, Inc.
1500 CityWest Blvd, Suite 1000
Houston, TX 77042

July 2026

1.0 INTRODUCTION

This document outlines the procedures the El Paso Natural Gas Company, L.L.C (EPNG) will follow to prepare for and address any unanticipated discoveries of cultural resources, including archaeological sites and possible human remains. It provides direction to EPNG personnel and their consultants as to the proper procedure to follow in the event that unanticipated discoveries are made during construction of the McCloud Lateral Project (Project).

As part of the planning process for the Project, EPNG conducted a cultural resources survey of the Project. To ensure that EPNG maintains compliance with all federal and state regulations concerning the protection of cultural resources, and to maintain compliance with the Federal Energy Regulatory Commission's (FERC) requirement for a plan to address the unanticipated discovery of cultural properties or human remains during construction, this Unanticipated Discoveries Plan (UDP) has been prepared for the Project.

Unanticipated cultural discoveries that trigger these procedures include:

- Building foundations or other historic structures with subsurface remains;
- Cultural features, concentrations of artifacts, or evidence of human occupation, such as fire hearths, middens and mounds, bottle or can dumps, clusters of stone tools or pottery fragments, and charcoal-stained soil; and
- Human remains, including evidence of human burial, such as gravestone and other funerary objects, casket hardware, ceremonial grave goods, soil staining in the outline of a grave, or any other evidence that suggests the presence of a human interment.

2.0 TRAINING AND IDENTIFICATION

Training will be provided to all construction personnel outlining EPNG's commitment to cultural resources compliance and to provide an overview of the types of human-made artifacts, cultural features, and structures that may be encountered during construction of the Project. The training will emphasize the exact procedures to be followed, as outlined in this plan, in the event unanticipated cultural resources are discovered during construction.

The Environmental Project Managers (PMs) will provide training as part of the pre-construction on-site training program for foremen, company inspectors, and construction supervisors. The Construction Manager (CM) will be responsible for advising construction-contractor personnel on the procedures to follow in the event unanticipated discoveries are encountered.

3.0 PROCEDURES WHEN CULTURAL MATERIALS ARE OBSERVED

In the event that cultural materials are observed within a construction zone, the person making the discovery will immediately contact the CM. If the CM believes that an unanticipated discovery has been made:

a. CM will immediately halt all ground-disturbing activities within 100 feet (30 meters) of the discovery unless a greater distance is deemed appropriate;

b. CM will protect and secure the discovery by delineating the finds with flagging or fencing within 24 hours;
c. CM will notify the Environmental PM same day;
d. Environmental PM will notify the Project Archaeologist within 24 hours;
e. Project Archaeologist will examine the location of the discovery accompanied by CM, within 1 day of being notified;
    1. If during the initial discovery examination, the Project Archaeologist determines that the discovery is not a significant cultural resource, the Project Archaeologist will immediately notify the CM and/or PM, either of whom will have the authority to remove the stop-work order. The Project Archaeologist will prepare a letter report of findings to EPNG within 10 business days.
    2. If the Project Archaeologist determines that the discovery may be a significant cultural resource, the Project Archaeologist will immediately advise EPNG.
f. In the event that the Project Archaeologist has determined the discovery may be a significant cultural resource, Tetra Tech will develop a Scope of Work and in consultation with EPNG , the Texas Historical Commission (THC), and FERC, will prepare to conduct an archaeological investigation that will conform to the Secretary of the Interior's *Standards and Guidelines for Archeology and Historic Preservation* (48 Federal Register 44716-42, September 29, 1983), and the *Archeological Survey Standards for Texas*, and the *Council of Texas Archaeologists: Guidelines for Cultural Resource Reports*.
g. If the discovery is determined to be eligible for listing on the National Register of Historic Places (NRHP) and Project construction cannot avoid the resource, Tetra Tech's Project Archaeologist will work with EPNG to develop a Treatment Plan for review and approval by FERC and the Texas Historical Commission.
h. FERC will consult with interested Native American Tribes that have historical and cultural associations with the Project Area and solicit their comments on the findings.

4.0 UNANTICIPATED DISCOVERY OF HUMAN REMAINS

The following procedures will be conducted in the event human remains are discovered during Project construction.

a. Should human remains be encountered during construction, all work will be immediately halted within 100 ft (30 m) of the discovery.
b. The CM and Environmental PM will be immediately notified of the discovery of skeletal remains, even if there is uncertainty about the identification of the remains as human. The Environmental PM will immediately notify EPNG, the Texas Historical Commission, and FERC of the discovery.
c. CRS § 24-80-1302 mandates that anyone who discovers, on any land, suspected human skeletal remains must contact the county coroner and local law enforcement officials (see Contacts below). This task will be the responsibility of the Environmental PM.
d. The CM will ensure that the suspected human remains are safeguarded, covered, not disturbed, and treated with respect. The CM will ensure that fencing is installed around the location of the discovery.

e. The coroner will determine if the human remains possess forensic value and if so, will take legal custody of the remains. If determined that the human remains do not possess forensic value, the coroner will notify the State Archaeologist into whose care the remains will be moved.
f. The State Archaeologist will select a qualified archaeologist to examine the remains to determine: 1) the general age of interment, 2) the integrity of the archaeological context, and 3) whether the remains are representative of a Native American individual. If the remains are determined to be of Native American origin, the State Archaeologist will notify the State Commission of Indian Affairs (Commission).
g. The remains will be disinterred unless the landowner, the State Archaeologist, and the Commission Chair unanimously agree to leave the remains in situ.
h. Disinterment will occur within ten days after the State Archaeologist has received initial notification from the coroner.
i. After disinterment is complete, and with the approval of the State Archaeologist, the stop-work order can be removed.

CONTACTS

EPNG will provide contact names for **Construction Manager**	
EPNG Construction Manager TBD	**EPNG Environmental PM** TBD
Project Archaeologist Steven Sarich, MS, RPA Tetra Tech (512) 645-6238 (cell) Steven.Sarich@tetratech.com	**El Paso County Coroner/Medical Examiner** Mario Rascon 4505 Alberta Avenue El Paso, TX 79905 915-273-3403
Texas State Historic Preservation Officer Texas Historical Commission John L. Nau, III 1511 Colorado Street Austin Texas 78701 (512) 463-6100 John.Nau@thc.texas.gov	**El Paso County Sheriff** Oscar Ugarte 3850 Justice St. El Paso, Texas 79938 (915) 273-3800 epsheriff@epcounty.com.
FERC Archaeologist Allison King Federal Energy Regulatory Commission 888 First Street, NE Washington, DC 20426 202-502-8847	**FERC PM** TBD

Fugitive Dust Control Plan

El Paso Natural Gas Company, L.L.C.
a Kinder Morgan company

FUGITIVE DUST CONTROL PLAN

McCloud Lateral Project
FERC Docket CP 26-__-000

El Paso Natural Gas Company, L.L.C..
Two North Nevada
Colorado Springs, Colorado 80903

July 2026

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2.0 Plan Overview 1
3.0 Fugitive Dust Sources 1
4.0 Applicable Regulatory Requirements 2
5.0 Fugitive Dust Abatement 2
6.0 Fugitive Dust Control Measures 3
7.0 Inspection, Monitoring, And Recordkeeping 3
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Acronyms and Abbreviations

CCR	Code of Colorado Regulations
Certificate	Certificate of Public Convenience and Necessity Commission
CFR	Code of Federal Register
CS	Totem Storage Compressor Station
EI	Environmental Inspector
EPNG	El Paso Natural Gas Company, L.L.C.
FERC	Federal Energy Regulatory Commission
I/W	Injection/Withdrawal
McCloud Lateral	new approximate 5.8 mile, 16-inch outside diameter pipeline lateral
McCloud Meter Station	new delivery meter station
NGA	Natural Gas Act
PM	particulate matter
Project	McCloud Lateral Project

1.0 Introduction

EPNG is seeking authorization from the Federal Energy Regulatory Commission (FERC) under the Prior Notice procedures of the FERC's blanket certificate regulations (Sections 157.205, 157.208, 157.210 and 157.211 of the FERC's regulations, 18 Code of Federal Regulations [CFR], §§ 157.205, 157.208, 157.210 and 157.211 [2025]), for approval of the Project, located in El Paso County, Texas.[1]

The proposed Project involves the construction of a new approximate 5.8 mile, 16-inch outside diameter pipeline lateral (McCloud Lateral) that will originate upstream of EPNG's existing El Paso Compressor Station on its South Mainline System and move north-east ending at a new delivery meter station (McCloud Meter Station) near the planned McCloud Generation facility in El Paso County, Texas (see Figure 1.1-1) with related appurtenances.

EPNG anticipates starting construction on the Project during the fourth quarter of 2026, after receipt of all federal, state and local authorizations, and permits. Depending on the actual construction start date, the Project's in-service date is expected to be as early as January 1, 2027.

2.0 Plan Overview

The objective of this Fugitive Dust Control Plan is to identify potential dust emission sources associated with the Project and to provide guidance to construction and field personnel on measures to control the generation of fugitive dust during construction activities associated with the Project. It would be the responsibility of Project contractors, working with designated environmental inspectors ("EIs"), to identify activities generating fugitive dust, to implement feasible control measures, and to ensure compliance with applicable fugitive dust regulations. The Fugitive Dust Control Plan identifies potential fugitive dust sources, describes applicable regulatory requirements, specifies under what circumstances dust abatement would be undertaken, describes fugitive dust control measures, and specifies inspection, monitoring, and recordkeeping requirements for the Project.

3.0 Fugitive Dust Sources

Fugitive dust is airborne particulate matter ("PM"), which consists of microscopic solid particles that become airborne from many types of sources. PM is harmful to human health, has the potential to reduce visibility, to create driving hazards, and may be a public nuisance that can damage property and reduce the quality of life.

The ultimate source of fugitive dust is disturbed soil. If left alone, the soils of undisturbed land naturally bind together forming a crust. This crust resists wind and helps prevent dust from becoming airborne.

When disturbed, small particles get into the air during high wind events.

[1] With the exception of a 120-foot permanent access road segment located in Otero County, New Mexico, EPNG's Project facilities are situated in El Paso County, Texas.

Fugitive dust could be generated directly by aboveground facility construction. The following construction activities have been identified as having the potential to generate fugitive dust:

- Vehicle and motorized equipment movement on paved and unpaved access roads
- Vegetation removal
- Clearing and grading
- Cutting and filling
- Trenching
- Backfilling
- Track-out onto roads
- Bulk material loading, hauling, and unloading
- Use of material storage piles
- Use of parking, staging, and storage areas.

The Project contractor(s) and the designated EI(s) will work together to identify additional sources of fugitive dust generation during construction and restoration of the Project.

4.0 Applicable Regulatory Requirements

Mitigating fugitive dust emissions are addressed in section 4.9.1.3 Air Quality Impacts under Construction Impacts and Mitigation within FERC Guidance Manual for Environmental Report Preparation dated 2017 (FERC 2017) and recommend the applicant include how they would minimize fugitive dust from construction.

Texas Administrative Code 30 TAC §111.145 states, no person may cause, suffer, allow, or permit a structure, road, street, alley, or parking area to be constructed, altered, repaired, or demolished, or land to be cleared without taking at least the following precautions to achieve control of dust emissions:

1. use of water or of suitable oil or chemicals for control of dust in the demolition of structures, in construction operations, in work performed on a road, street, alley, or parking area, or in the clearing of land;
2. use of adequate methods such as wet-sandblasting and enclosure of work areas to prevent airborne particulate matter during sandblasting of structures or other similar operations;

5.0 Fugitive Dust Abatement

The Project area would be monitored for fugitive dust generation during construction. Abatement of fugitive dust would be implemented within the construction workspaces or access roads in order to ensure that fugitive dust does pass outside the facilities property boundary. Construction activities that occur near the facility property line will be monitored frequently, and if required, dust

abatement procedures will be implemented. Project contractors would be responsible for controlling dust by reducing travel speeds and/or applying dust suppressants (e.g., water). A listing of fugitive dust control measures that may be used during Project construction is included in Section 6 of this Fugitive Dust Control Plan.

6.0 Fugitive Dust Control Measures

The generation of fugitive dust during construction would be reduced through the application of appropriate control measures. Abatement measures would be utilized as needed and appropriate to a particular situation. Based on typical practices for compressor station installation, the following specific control measures would be used as needed to control fugitive dust emissions from the Project.

- Utilize existing public and private roads for access during construction wherever possible. Use only Project approved roads for access.
- Reduce vehicle speeds on unpaved roads; speed limits may be set on unpaved roads.
- Clean up track-out and/or carry-out areas at paved road access points.
- Ensure that all haul truck cargo compartments are constructed and maintained so as to minimize spills and loss of materials. Cover haul truck loads or maintain at least 6 inches of freeboard space in each cargo compartment; cover haul truckloads of sand, gravel, solid trash, or other loose material.
- Apply water to affected unpaved Project-approved roads and contractor yards (when in use). Where roads are paved, dust mitigation may not be necessary.
- When appropriate, apply a chemical stabilization as needed as a dust suppressant. The use of magnesium chloride would be restricted in sensitive vegetative areas, where only water or alternative dust suppressants would be considered.
- Apply water to active construction areas as needed. Areas should be pre-watered and soils maintained in a stabilized condition where support equipment and vehicles would operate.
- Control water spray so that over-spraying and pooling would be avoided to the extent possible.
- For temporary surfaces during periods of inactivity, restrict vehicular access by means of either fencing or signage, and apply water to comply with the stabilized surface requirements.

Other fugitive dust control methods may be used during Project construction.

7.0 Inspection, Monitoring, And Recordkeeping

Project contractors would implement the fugitive dust control measures specified in this Fugitive Dust Control Plan. EIs would be primarily responsible for monitoring and enforcing the implementation of needed dust control measures. The EIs would also be responsible for making sure that dust control is effective, and that proper documentation is maintained. Construction site

personnel would be educated on the measures outlined in this plan.

Field inspection for dust control would occur daily. Project contractors and EIs would be responsible for recording the following information on a daily basis:

- Weather conditions (temperature, wind speed, and direction)
- Number of water trucks in use.
- Cases where visible dust was of such a concentration that abatement measures were implemented.
- Condition of Project soils (crusted, damp, or unstable).
- Condition of Project access roads (crusted, damp, or unstable).
- Presence of track-out and when it was cleaned.
- Overall status of dust control compliance.

This information would be incorporated into the EI's daily report.

8.0 References

Federal Energy Regulatory Commission (FERC). 2017. Guidance Manual for Environmental Report Preparation. Office of Energy Projects. February 2026.

Appendix 1D

Affected Landowner List

CUI//PRIV – Contains Privileged Information - Do Not Release

Available in Volume II

Appendix 1E

Agency Correspondence

From:	Alejandro Vidales Jr.
To:	Lemieux, Dalton
Cc:	Rocio Alvarado; jgorham@meta.com; Jonathan Persall
Subject:	RE: Kinder Morgan/EPNG - Right of Entry - McCloud Seafox Lateral
Date:	Tuesday, June 16, 2026 2:12:10 PM
Attachments:	image001.png image003.png image004.png

[This email message was received from the Internet and came from outside of Kinder Morgan.]

WARNING: EXTERNAL EMAIL: PROCEED WITH CAUTION.

Do not respond, click on links or open attachments unless you recognize the sender or know the content is safe.

Hi Dalton,

I sent an updated TEAMs for 8 am MST.

Let me know if this works,

Alex Vidales, JD.,
Utility Land & Water Rights Manager

1154 Hawkins, El Paso, TX 79925
(O) 915.594.5636 (F) 915.594.5570

From: Lemieux, Dalton <Dalton_Lemieux@kindermorgan.com>
Sent: Tuesday, June 16, 2026 8:16 AM
To: Alejandro Vidales Jr. <AVidales@epwater.org>
Cc: Rocio Alvarado <RPAlvarado@epwater.org>; jgorham@meta.com; Jonathan Persall <JPersall@epwater.org>
Subject: RE: Kinder Morgan/EPNG - Right of Entry - McCloud Seafox Lateral

Perfect, thank you very much.

Talk then. Thanks

Dalton Lemieux
Right of Way Agent
719-412-3756
Tulsa, OK

From: Alejandro Vidales Jr. <AVidales@epwater.org>
Sent: Tuesday, June 16, 2026 9:14 AM
To: Lemieux, Dalton <Dalton_Lemieux@kindermorgan.com>
Cc: Rocio Alvarado <RPAlvarado@epwater.org>; jgorham@meta.com; Jonathan Persall <JPersall@epwater.org>
Subject: RE: Kinder Morgan/EPNG - Right of Entry - McCloud Seafox Lateral

[This email message was received from the Internet and came from outside of Kinder Morgan.]

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Do not respond, click on links or open attachments unless you recognize the sender or know the content is safe.

Hi Dalton,

The 30-foot easement works even better in conjunction with the 45-foot TCE.

Also, you do not need to apply for an easement with the city. EPWater, through our department, will handle the appropriate document and fees that I am working on.

I'll send a TEAMs for 9 to 930 MST for tomorrow, the 17th.

Thank you,

Alex Vidales, JD.,
Utility Land & Water Rights Manager

1154 Hawkins, El Paso, TX 79925
(O) 915.594.5636 (F) 915.594.5570

From: Lemieux, Dalton <Dalton_Lemieux@kindermorgan.com>
Sent: Tuesday, June 16, 2026 8:07 AM
To: Alejandro Vidales Jr. <AVidales@epwater.org>
Cc: Rocio Alvarado <RPAlvarado@epwater.org>; Renata Renova <RRenova@epwater.org>; jgorham@meta.com; Jonathan Persall <JPersall@epwater.org>
Subject: RE: Kinder Morgan/EPNG - Right of Entry - McCloud Seafox Lateral

Good morning.

We will proceed with the route attached. Also, I wanted to note that on the entirety of the project we are doing a 30ft permanent right of way and 45ft temporary right of way, so that's what we will do on this tract of land as well. If you are able, let's just hop on the Wednesday call and discuss the project details.

I am currently working through the City of El Paso Real Estate group, Jorge Olmos, as I was told I needed to apply for an easement on them through their website. Can you confirm that is the case or do I just not worry about that and work directly through you? Just want to confirm I am doing this correctly. Thanks

Dalton Lemieux
Right of Way Agent
719-412-3756
Tulsa, OK

From: Alejandro Vidales Jr. <AVidales@epwater.org>
Sent: Tuesday, June 16, 2026 8:59 AM
To: Lemieux, Dalton <Dalton_Lemieux@kindermorgan.com>

Cc: Rocio Alvarado <RPAlvarado@epwater.org>; Renata Renova <RRenova@epwater.org>; jgorham@meta.com; Jonathan Persall <JPersall@epwater.org>
Subject: RE: Kinder Morgan/EPNG - Right of Entry - McCloud Seafox Lateral

[This email message was received from the Internet and came from outside of Kinder Morgan.]

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Good morning Dalton,

Please proceed with the yellow route and with the corresponding 40-foot Metes & Bounds.

We can do a quick TEAMs to answer any questions on the wells and the route itself. I'll also send you the doc asap.

Thank you,

Alex Vidales, JD.,
Utility Land & Water Rights Manager

1154 Hawkins, El Paso, TX 79925
(O) 915.594.5636 (F) 915.594.5570

From: Alejandro Vidales Jr.
Sent: Thursday, June 11, 2026 2:16 PM
To: 'Lemieux, Dalton' <Dalton_Lemieux@kindermorgan.com>
Cc: Rocio Alvarado <RPAlvarado@epwater.org>; Renata Renova <RRenova@epwater.org>; jgorham@meta.com; Jonathan Persall <JPersall@epwater.org>
Subject: RE: Kinder Morgan/EPNG - Right of Entry - McCloud Seafox Lateral

Yes, I believe that is the route.

Also, we can do the 35-ft TCE for your workspace and keep the 40-foot PE.

Alex Vidales, JD.,
Utility Land & Water Rights Manager

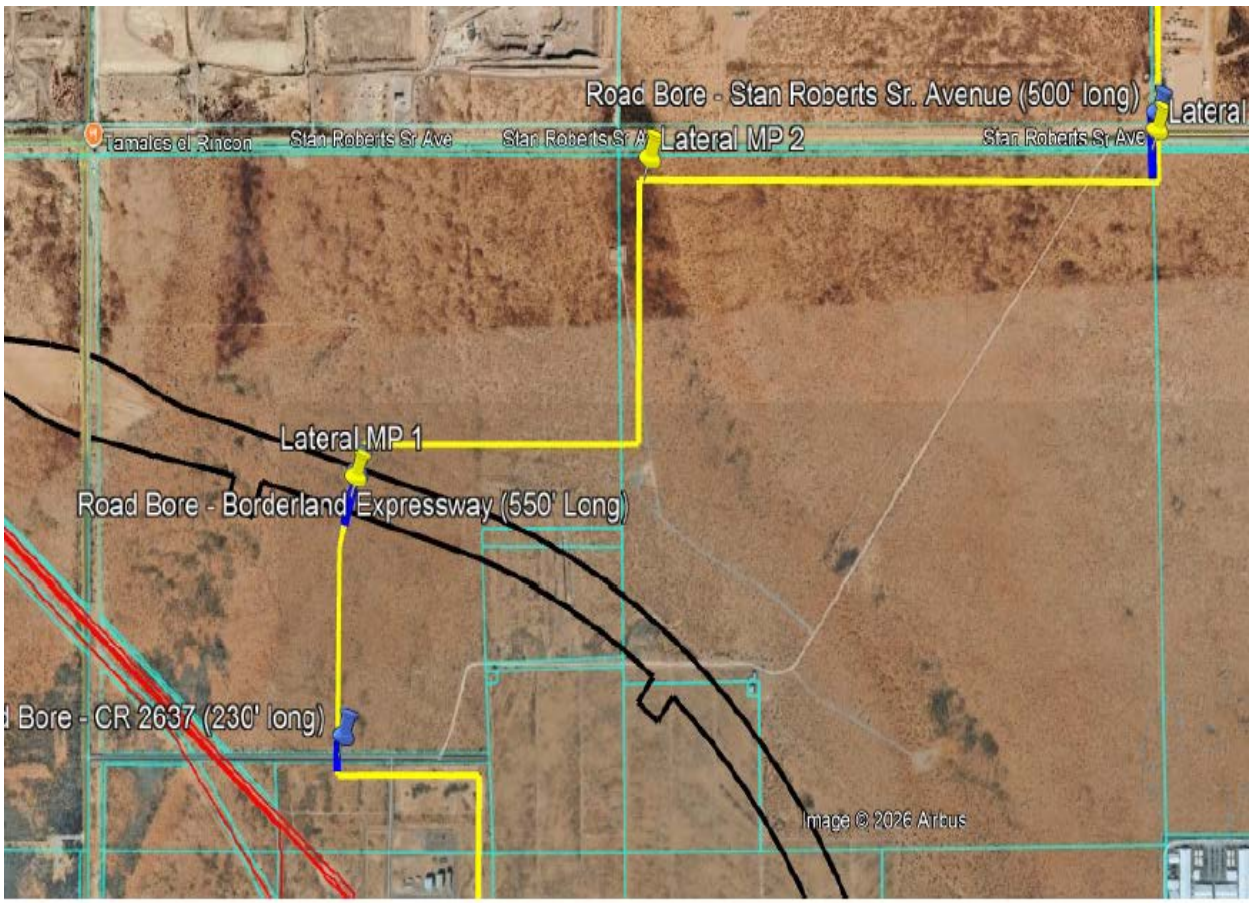
1154 Hawkins, El Paso, TX 79925
(O) 915.594.5636 (F) 915.594.5570

From: Lemieux, Dalton <Dalton_Lemieux@kindermorgan.com>
Sent: Thursday, June 11, 2026 2:13 PM
To: Alejandro Vidales Jr. <AVidales@epwater.org>
Cc: Rocio Alvarado <RPAlvarado@epwater.org>; Renata Renova <RRenova@epwater.org>; jgorham@meta.com;

Jonathan Persall <JPersall@epwater.org>
Subject: RE: Kinder Morgan/EPNG - Right of Entry - McCloud Seafox Lateral

Thanks Alex. Just to clarify, you are talking about the below yellow route correct?

Also, we can agree to a 40ft permanent easement. The only thing I would request is that we will need more than the 50ft you mentioned below for the temporary workspace to install the line. If we could do a 40ft permanent with 35ft temporary workspace that would be our preference so we can install the pipeline safely. I can talk with the project manager and see if he can do it safely with less that 75ft temporary workspace if that is an issue. Thanks



From: Alejandro Vidales Jr. <AVidales@epwater.org>
Sent: Thursday, June 11, 2026 2:58 PM
To: Lemieux, Dalton <Dalton_Lemieux@kindermorgan.com>
Cc: Rocio Alvarado <RPAlvarado@epwater.org>; Renata Renova <RRenova@epwater.org>; jgorham@meta.com; Jonathan Persall <JPersall@epwater.org>
Subject: RE: Kinder Morgan/EPNG - Right of Entry - McCloud Seafox Lateral

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Good afternoon Dalton,

I am waiting on one more approval today for the Yellow route, one of your options.

But in the meantime, 1st attached is the Exhibit, the 2nd & 3rd is the infrastructure around the route for the buffer consideration. Please keep these Metes & Bounds confidential.

Also, would you able to work within a 40-ft permanent easement instead of 50 ft? We could grant a 10-ftTemporary Construction Easement during construction. This would help us tremendously by minimizing permanent easements along the frontage of Stan Roberts. Let me know,

Thank you,

Alex Vidales, JD.,
Utility Land & Water Rights Manager

1154 Hawkins, El Paso, TX 79925
(O) 915.594.5636 (F) 915.594.5570

From: Lemieux, Dalton <Dalton_Lemieux@kindermorgan.com>
Sent: Wednesday, June 10, 2026 3:35 PM
To: Alejandro Vidales Jr. <AVidales@epwater.org>
Cc: Rocio Alvarado <RPAlvarado@epwater.org>; Renata Renova <RRenova@epwater.org>; jgorham@meta.com; Alejandra Montalvo <Alejandra.Montalvo@epelectric.com>; Jonathan Persall <JPersall@epwater.org>
Subject: Re: Kinder Morgan/EPNG - Right of Entry - McCloud Seafox Lateral

Good afternoon, Alex. Just wanted to check in with you and see if you had gotten a chance to send over the route that had been approved? Thanks

Sent from my iPhone

> On Jun 10, 2026, at 8:02 AM, Alejandro Vidales Jr. <AVidales@epwater.org> wrote:
>
> **[This email message was received from the Internet and came from outside of Kinder Morgan.]**
>
> **WARNING: EXTERNAL EMAIL: PROCEED WITH CAUTION.**
>
> **Do not respond, click on links or open attachments unless you recognize the sender or know the content is safe.**
> Good morning Dalton,
>
> Yesterday the Team approved a route which was an initial route, outside of the dairy site, that I will share with you this afternoon. Also, I'll provide our existing infrastructure Metes & Bounds so that you can ensure required buffer distance.

I have a Board meeting this morning, but again, I'll email that info over to you asap.

Thank you,

Alex Vidales, JD.,
<image002.png>
Utility Land & Water Rights Manager

<image003.jpg>

1154 Hawkins, El Paso, TX 79925
(O) 915.594.5636 (F) 915.594.5570

From: Lemieux, Dalton <Dalton_Lemieux@kindermorgan.com>
Sent: Tuesday, June 9, 2026 8:28 AM
To: Alejandro Vidales Jr. <AVidales@epwater.org>
Cc: Rocio Alvarado <RPAlvarado@epwater.org>; Renata Renova <RRenova@epwater.org>; jgorham@meta.com; Montalvo, Alejandra <alejandra.montalvo@epelectric.com>; Jonathan Persall <JPersall@epwater.org>
Subject: RE: Kinder Morgan/EPNG - Right of Entry - McCloud Seafox Lateral

Appreciate the update. Hope to hear back from you on this soon.

We will be sure and get you those survey plats once we have an approved route. Thanks

Dalton Lemieux
Right of Way Agent
719-412-3756
Tulsa, OK
<image005.png>

From: Alejandro Vidales Jr. <AVidales@epwater.org>
Sent: Tuesday, June 9, 2026 9:08 AM
To: Lemieux, Dalton <Dalton_Lemieux@kindermorgan.com>
Cc: Rocio Alvarado <RPAlvarado@epwater.org>; Renata Renova <RRenova@epwater.org>; jgorham@meta.com; Montalvo, Alejandra <alejandra.montalvo@epelectric.com>; Jonathan Persall <JPersall@epwater.org>
Subject: RE: Kinder Morgan/EPNG - Right of Entry - McCloud Seafox Lateral

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Good morning Dalton,

I have a follow-up meeting with the engineers this afternoon on Option 3.

I'll circle back to you on any feedback. Once the route is approved, you can provide us with

the metes & bounds so that we can attach them to the Agreement. I haven't sent you the draft agreement yet but should have something to you this week.

Let me know if you need anything else, thank you,

Alex Vidales, JD.,
<image002.png>
Utility Land & Water Rights Manager

<image003.jpg>

1154 Hawkins, El Paso, TX 79925
(O) 915.594.5636 (F) 915.594.5570

From: Lemieux, Dalton <Dalton_Lemieux@kindermorgan.com>
Sent: Monday, June 8, 2026 7:42 AM
To: Alejandro Vidales Jr. <AVidales@epwater.org>
Cc: Rocio Alvarado <RPAlvarado@epwater.org>; Renata Renova <RRenova@epwater.org>; jgorham@meta.com; Montalvo, Alejandra <alejandra.montalvo@epelectric.com>; Kupper Gray <KGray@epwater.org>
Subject: RE: Kinder Morgan/EPNG - Right of Entry - McCloud Seafox Lateral

Alex, I wanted to circle back with you.

Below you stated you were drafting the appropriate document for my review. I have not seen that come through so I wanted to see if you had got that drafted up. Thanks

Dalton Lemieux
Right of Way Agent
719-412-3756
Tulsa, OK
<image005.png>

From: Alejandro Vidales Jr. <AVidales@epwater.org>
Sent: Tuesday, May 19, 2026 9:49 AM
To: Lemieux, Dalton <Dalton_Lemieux@kindermorgan.com>
Cc: Rocio Alvarado <RPAlvarado@epwater.org>; Renata Renova <RRenova@epwater.org>; jgorham@meta.com; Montalvo, Alejandra <alejandra.montalvo@epelectric.com>; Kupper Gray <KGray@epwater.org>
Subject: RE: Kinder Morgan/EPNG - Right of Entry - McCloud Seafox Lateral

[This email message was received from the Internet and came from outside of Kinder Morgan.]

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Do not respond, click on links or open attachments unless you recognize the sender or know the content is safe.

Good morning Dalton,

As an update, I am meeting with a group of our engineers Fri morning to discuss the proposed

options. From there, if needed, I can set up a meeting with you and any engineers that may have deeper questions.

Concurrently, I am also drafting the appropriate document so that I can email it to you for review.

Let me know if you need anything else, thank you,

Alex Vidales, JD.,
<image002.png>
Utility Land & Water Rights Manager

<image003.jpg>

1154 Hawkins, El Paso, TX 79925
(O) 915.594.5636 (F) 915.594.5570

From: Lemieux, Dalton <Dalton_Lemieux@kindermorgan.com>
Sent: Tuesday, May 12, 2026 1:48 PM
To: Alejandro Vidales Jr. <AVidales@epwater.org>
Cc: Rocio Alvarado <RPAlvarado@epwater.org>; Renata Renova <RRenova@epwater.org>; jgorham@meta.com; Montalvo, Alejandra <alejandra.montalvo@epelectric.com>; Kupper Gray <KGray@epwater.org>
Subject: RE: Kinder Morgan/EPNG - Right of Entry - McCloud Seafox Lateral

Okay thanks for the update.

Dalton Lemieux
Right of Way Agent
719-412-3756
Tulsa, OK
<image005.png>

From: Alejandro Vidales Jr. <AVidales@epwater.org>
Sent: Tuesday, May 12, 2026 2:37 PM
To: Lemieux, Dalton <Dalton_Lemieux@kindermorgan.com>
Cc: Rocio Alvarado <RPAlvarado@epwater.org>; Renata Renova <RRenova@epwater.org>; jgorham@meta.com; Montalvo, Alejandra <alejandra.montalvo@epelectric.com>; Kupper Gray <KGray@epwater.org>
Subject: RE: Kinder Morgan/EPNG - Right of Entry - McCloud Seafox Lateral

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Hi Dalton,

I have gotten some feedback, we are working on a complete exhibit, that includes other projects and will discuss internally along with your request. I will share the comments and the

exhibit with you as soon as possible.

Thank you,

Alex Vidales, JD.,
<image002.png>
Utility Land & Water Rights Manager

<image003.jpg>

1154 Hawkins, El Paso, TX 79925
(O) 915.594.5636 (F) 915.594.5570

From: Lemieux, Dalton <Dalton_Lemieux@kindermorgan.com>
Sent: Tuesday, May 12, 2026 1:27 PM
To: Alejandro Vidales Jr. <AVidales@epwater.org>
Cc: Rocio Alvarado <RPAlvarado@epwater.org>; Renata Renova <RRenova@epwater.org>; jgorham@meta.com; Montalvo, Alejandra <alejandra.montalvo@epelectric.com>; Kupper Gray <KGray@epwater.org>
Subject: RE: Kinder Morgan/EPNG - Right of Entry - McCloud Seafox Lateral

Good afternoon, Alex. Any update on this routing?

Dalton Lemieux
Right of Way Agent
719-412-3756
Tulsa, OK
<image005.png>

From: Alejandro Vidales Jr. <AVidales@epwater.org>
Sent: Thursday, May 7, 2026 9:22 AM
To: Lemieux, Dalton <Dalton_Lemieux@kindermorgan.com>
Cc: Rocio Alvarado <RPAlvarado@epwater.org>; Renata Renova <RRenova@epwater.org>; jgorham@meta.com; Montalvo, Alejandra <alejandra.montalvo@epelectric.com>
Subject: RE: Kinder Morgan/EPNG - Right of Entry - McCloud Seafox Lateral

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Will do,

Alex Vidales, JD.,
<image002.png>
Utility Land & Water Rights Manager

<image003.jpg>

1154 Hawkins, El Paso, TX 79925
(O) 915.594.5636 (F) 915.594.5570

From: Lemieux, Dalton <Dalton_Lemieux@kindermorgan.com>
Sent: Thursday, May 7, 2026 7:59 AM
To: Alejandro Vidales Jr. <AVidales@epwater.org>
Cc: Rocio Alvarado <RPAlvarado@epwater.org>; Renata Renova <RRenova@epwater.org>; jgorham@meta.com; Montalvo, Alejandra <alejandra.montalvo@epelectric.com>
Subject: RE: Kinder Morgan/EPNG - Right of Entry - McCloud Seafox Lateral

Thanks for clarifying. Please keep us updated on progress.

Dalton Lemieux
Right of Way Agent
719-412-3756
Tulsa, OK
<image005.png>

From: Alejandro Vidales Jr. <AVidales@epwater.org>
Sent: Thursday, May 7, 2026 8:52 AM
To: Lemieux, Dalton <Dalton_Lemieux@kindermorgan.com>
Cc: Rocio Alvarado <RPAlvarado@epwater.org>; Renata Renova <RRenova@epwater.org>; jgorham@meta.com; Montalvo, Alejandra <alejandra.montalvo@epelectric.com>
Subject: RE: Kinder Morgan/EPNG - Right of Entry - McCloud Seafox Lateral

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Hi sir,

As clarification, it won't take longer than a month to approve the route.

Alex Vidales, JD.,
<image002.png>
Utility Land & Water Rights Manager

<image003.jpg>

1154 Hawkins, El Paso, TX 79925
(O) 915.594.5636 (F) 915.594.5570

From: Lemieux, Dalton <Dalton_Lemieux@kindermorgan.com>
Sent: Thursday, May 7, 2026 7:48 AM
To: Alejandro Vidales Jr. <AVidales@epwater.org>
Cc: Rocio Alvarado <RPAlvarado@epwater.org>; Renata Renova <RRenova@epwater.org>; jgorham@meta.com; Montalvo, Alejandra <alejandra.montalvo@epelectric.com>

Subject: RE: Kinder Morgan/EPNG - Right of Entry - McCloud Seafox Lateral

Alex, I understand the city receives multiple requests. My concern is the timelines we have been given have not been met, so just wanted to make sure that there isn't anything you need from us. Thanks for your explanation.

Also, I want to confirm something you said below. Are you saying that once you receive comments back from your necessary groups, we could still be a month out of final approval or that it shouldn't take longer than a month?

Dalton Lemieux
Right of Way Agent
719-412-3756
Tulsa, OK
<image005.png>

From: Alejandro Vidales Jr. <AVidales@epwater.org>
Sent: Thursday, May 7, 2026 8:38 AM
To: Lemieux, Dalton <Dalton_Lemieux@kindermorgan.com>
Cc: Rocio Alvarado <RPAlvarado@epwater.org>; Renata Renova <RRenova@epwater.org>
Subject: RE: Kinder Morgan/EPNG - Right of Entry - McCloud Seafox Lateral

[This email message was received from the Internet and came from outside of Kinder Morgan.]

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Good morning sir,

Since we receive numerous requests, we handle each one as quickly as possible. In addition, there is a lot of activity in this area, and this involves a lot of coordination with all the requestors and with our 3 engineering groups to ensure the protection of our water, wastewater and stormwater infrastructure, existing, or future. Both our EPWater leadership and city leadership are aware of the requests and the time it takes to process.

Once I receive all comments, I cannot promise a timeline other that it will not take a month, but I'll set up a meeting to discuss comments or objections asap.

Let me know if this helps, thank you for your patience,

Alex Vidales, JD.,
<image002.png>
Utility Land & Water Rights Manager

<image003.jpg>

1154 Hawkins, El Paso, TX 79925
(O) 915.594.5636 (F) 915.594.5570

From: Lemieux, Dalton <Dalton_Lemieux@kindermorgan.com>
Sent: Thursday, May 7, 2026 6:49 AM
To: Alejandro Vidales Jr. <AVidales@epwater.org>
Cc: Rocio Alvarado <RPAlvarado@epwater.org>
Subject: RE: Kinder Morgan/EPNG - Right of Entry - McCloud Seafox Lateral

Alex, can you explain to me the hold up on this deal?

We are getting at a real uncomfortable spot with our timeline on this project and want to make sure you have everything you need from us. We have the route nailed down with EPE & Meta and are eager to get this route finalized. Please let me know how we can help speed this along. Thanks

Dalton Lemieux
Right of Way Agent
719-412-3756
Tulsa, OK
<image005.png>

From: Alejandro Vidales Jr. <AVidales@epwater.org>
Sent: Wednesday, May 6, 2026 3:21 PM
To: Lemieux, Dalton <Dalton_Lemieux@kindermorgan.com>
Cc: Rocio Alvarado <RPAlvarado@epwater.org>
Subject: RE: Kinder Morgan/EPNG - Right of Entry - McCloud Seafox Lateral

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Good afternoon,

No update on the route, I'll let you know as soon as I receive comments from staff so that we can meet with them and discuss,

Alex Vidales, JD.,
<image002.png>
Utility Land & Water Rights Manager

<image003.jpg>

1154 Hawkins, El Paso, TX 79925
(O) 915.594.5636 (F) 915.594.5570

From: Lemieux, Dalton <Dalton_Lemieux@kindermorgan.com>
Sent: Wednesday, May 6, 2026 8:30 AM
To: Alejandro Vidales Jr. <AVidales@epwater.org>
Cc: Rocio Alvarado <RPAlvarado@epwater.org>

Subject: RE: Kinder Morgan/EPNG - Right of Entry - McCloud Seafox Lateral

Alex, I know we have our meeting later this afternoon, but I wanted to check in with you and see if your expectation was still to have an approved route for us today. Please let me know if you need anything. Thanks

Dalton Lemieux
Right of Way Agent
719-412-3756
Tulsa, OK
<image005.png>

From: Alejandro Vidales Jr. <AVidales@epwater.org>
Sent: Wednesday, April 22, 2026 3:48 PM
To: Lemieux, Dalton <Dalton_Lemieux@kindermorgan.com>
Cc: Rocio Alvarado <RPAlvarado@epwater.org>
Subject: RE: Kinder Morgan/EPNG - Right of Entry - McCloud Seafox Lateral

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Good afternoon Dalton,

I won't be able to attend today's update meeting due to an emergency meeting I have to attend.

No update, other than ongoing on our Staff comments.

Let me know if you need anything else, thank you,

Alex Vidales, JD.,
<image002.png>
Utility Land & Water Rights Manager

<image003.jpg>

1154 Hawkins, El Paso, TX 79925
(O) 915.594.5636 (F) 915.594.5570

From: Lemieux, Dalton <Dalton_Lemieux@kindermorgan.com>
Sent: Monday, April 20, 2026 9:42 AM
To: Alejandro Vidales Jr. <AVidales@epwater.org>
Cc: Rocio Alvarado <RPAlvarado@epwater.org>; Jonathan Persall <JPersall@epwater.org>; Joshua Peterson <JRPeterson@epwater.org>; Gassman, Steven M. <Steven_Gassman@kindermorgan.com>
Subject: RE: Kinder Morgan/EPNG - Right of Entry - McCloud Seafox Lateral

Okay thanks for the update. We have our surveyors out now, so if you could get that finalized quickly that would be greatly appreciated. Thanks

Dalton Lemieux
Right of Way Agent
719-412-3756
Tulsa, OK
<image005.png>

From: Alejandro Vidales Jr. <AVidales@epwater.org>
Sent: Monday, April 20, 2026 10:36 AM
To: Lemieux, Dalton <Dalton_Lemieux@kindermorgan.com>
Cc: Rocio Alvarado <RPAlvarado@epwater.org>; Jonathan Persall <JPersall@epwater.org>; Joshua Peterson <JRPeterson@epwater.org>; Gassman, Steven M. <Steven_Gassman@kindermorgan.com>
Subject: RE: Kinder Morgan/EPNG - Right of Entry - McCloud Seafox Lateral

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Good morning Dalton,

I am still collecting info from Staff and will get back to you with any questions or a possible meeting with our engineers.

Thank you,

Alex Vidales, JD.,
<image002.png>
Utility Land & Water Rights Manager

<image003.jpg>

1154 Hawkins, El Paso, TX 79925
(O) 915.594.5636 (F) 915.594.5570

From: Lemieux, Dalton <Dalton_Lemieux@kindermorgan.com>
Sent: Monday, April 20, 2026 9:27 AM
To: Alejandro Vidales Jr. <AVidales@epwater.org>
Cc: Rocio Alvarado <RPAlvarado@epwater.org>; Jonathan Persall <JPersall@epwater.org>; Joshua Peterson <JRPeterson@epwater.org>; Gassman, Steven M. <Steven_Gassman@kindermorgan.com>
Subject: RE: Kinder Morgan/EPNG - Right of Entry - McCloud Seafox Lateral

Good morning, Alex.

Do you have any update on which route would be preferrable on the City of El Paso land?
Thanks

Dalton Lemieux
Right of Way Agent

719-412-3756
Tulsa, OK
<image005.png>

From: Alejandro Vidales Jr. <AVidales@epwater.org>
Sent: Wednesday, April 15, 2026 3:15 PM
To: Lemieux, Dalton <Dalton_Lemieux@kindermorgan.com>
Cc: Rocio Alvarado <RPAlvarado@epwater.org>; Jonathan Persall <JPersall@epwater.org>; Joshua Peterson <JRPeterson@epwater.org>
Subject: FW: Kinder Morgan/EPNG - Right of Entry - McCloud Seafox Lateral

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Hi Dalton,

2nd attached is the fully executed Temporary Right of Entry. Please let us know when you will be out there.

For coordination, Josh, our environmental planner, is your point of contact who is copied on this email. He will be back in the office next Monday.

Thank you,

Alex Vidales, JD.,
<image002.png>
Utility Land & Water Rights Manager

<image003.jpg>

1154 Hawkins, El Paso, TX 79925
(O) 915.594.5636 (F) 915.594.5570

From: Lemieux, Dalton <Dalton_Lemieux@kindermorgan.com>
Sent: Wednesday, April 15, 2026 1:42 PM
To: Alejandro Vidales Jr. <AVidales@epwater.org>; Jonathan Persall <JPersall@epwater.org>
Cc: Rocio Alvarado <RPAlvarado@epwater.org>
Subject: RE: Kinder Morgan/EPNG - Right of Entry - McCloud Seafox Lateral

Alex, please see the attached EPNG signed TROE. Are you fine if we go ahead and send our crews out to survey these lands?

Dalton Lemieux
Right of Way Agent
719-412-3756
Tulsa, OK
<image005.png>

From: Alejandro Vidales Jr. <AVidales@epwater.org>
Sent: Monday, April 6, 2026 11:31 AM
To: Lemieux, Dalton <Dalton_Lemieux@kindermorgan.com>; Jonathan Persall <JPersall@epwater.org>
Cc: Rocio Alvarado <RPAlvarado@epwater.org>
Subject: RE: Kinder Morgan/EPNG - Right of Entry - McCloud Seafox Lateral

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Scanned is OK,

Alex Vidales, JD.,
<image002.png>
Utility Land & Water Rights Manager

<image003.jpg>

1154 Hawkins, El Paso, TX 79925
(O) 915.594.5636 (F) 915.594.5570

From: Lemieux, Dalton <Dalton_Lemieux@kindermorgan.com>
Sent: Monday, April 6, 2026 10:25 AM
To: Alejandro Vidales Jr. <AVidales@epwater.org>; Jonathan Persall <JPersall@epwater.org>
Cc: Rocio Alvarado <RPAlvarado@epwater.org>
Subject: RE: Kinder Morgan/EPNG - Right of Entry - McCloud Seafox Lateral

I will work on getting this signed. Are you fine with a scanned copy or do you need the original?

Dalton Lemieux
Right of Way Agent
719-412-3756
Tulsa, OK
<image005.png>

From: Alejandro Vidales Jr. <AVidales@epwater.org>
Sent: Monday, April 6, 2026 11:18 AM
To: Lemieux, Dalton <Dalton_Lemieux@kindermorgan.com>; Jonathan Persall <JPersall@epwater.org>
Cc: Rocio Alvarado <RPAlvarado@epwater.org>
Subject: RE: Kinder Morgan/EPNG - Right of Entry - McCloud Seafox Lateral

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Good morning Dalton,

Please see attached surveying TROE for your signatures. Once signed, please email it back to me for EPWater execution.

Let me know if you have any questions, thank you,

_____

Alex Vidales, JD.,
<image002.png>
Utility Land & Water Rights Manager

<image003.jpg>

1154 Hawkins, El Paso, TX 79925
(O) 915.594.5636 (F) 915.594.5570

From: Lemieux, Dalton <Dalton_Lemieux@kindermorgan.com>
Sent: Thursday, April 2, 2026 1:59 PM
To: Alejandro Vidales Jr. <AVidales@epwater.org>; Jonathan Persall <JPersall@epwater.org>
Cc: Rocio Alvarado <RPAlvarado@epwater.org>
Subject: RE: Kinder Morgan/EPNG - Right of Entry - McCloud Seafox Lateral

Hey Alex, do you think you will get the Right of Entry paperwork out by the end of this week? I know we received verbal approval yesterday, but thought you mentioned paperwork may be coming. Thanks

Dalton Lemieux
Right of Way Agent
719-412-3756
Tulsa, OK
<image005.png>

From: Alejandro Vidales Jr. <AVidales@epwater.org>
Sent: Wednesday, April 1, 2026 10:40 AM
To: Lemieux, Dalton <Dalton_Lemieux@kindermorgan.com>; Jonathan Persall <JPersall@epwater.org>
Cc: Rocio Alvarado <RPAlvarado@epwater.org>
Subject: RE: Kinder Morgan/EPNG - Right of Entry - McCloud Seafox Lateral

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Hi Dalton,

Can you please send me the latest route option that also shows the historical site; you showed it via TEAMs.

Thank you,

Alex Vidales, JD.,
<image002.png>
Utility Land & Water Rights Manager

<image003.jpg>

1154 Hawkins, El Paso, TX 79925
(O) 915.594.5636 (F) 915.594.5570

From: Lemieux, Dalton <Dalton_Lemieux@kindermorgan.com>
Sent: Monday, March 30, 2026 7:27 AM
To: Alejandro Vidales Jr. <AVidales@epwater.org>; Jonathan Persall <JPersall@epwater.org>
Cc: Rocio Alvarado <RPAlvarado@epwater.org>
Subject: RE: Kinder Morgan/EPNG - Right of Entry - McCloud Seafox Lateral

Alex, just following up on our call Friday. Did you happen to see if our new route is covered under our current right of entry requests, or do I need to submit another one?

Dalton Lemieux
Right of Way Agent
719-412-3756
Tulsa, OK
<image005.png>

From: Alejandro Vidales Jr. <AVidales@epwater.org>
Sent: Thursday, March 26, 2026 11:48 AM
To: Lemieux, Dalton <Dalton_Lemieux@kindermorgan.com>; Jonathan Persall <JPersall@epwater.org>
Cc: Rocio Alvarado <RPAlvarado@epwater.org>
Subject: RE: Kinder Morgan/EPNG - Right of Entry - McCloud Seafox Lateral

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Hi Dalton,

I'm booked today.

Are you available tomorrow the 27th?

1. 1230 – 1 MST?

2. 2 to 230 MST?
3. 330 to 4 MST?

Let me know or please send me the invite that works,

Alex Vidales, JD.,
<image002.png>
Utility Land & Water Rights Manager

<image003.jpg>

1154 Hawkins, El Paso, TX 79925
(O) 915.594.5636 (F) 915.594.5570

From: Lemieux, Dalton <Dalton_Lemieux@kindermorgan.com>
Sent: Thursday, March 26, 2026 10:22 AM
To: Alejandro Vidales Jr. <AVidales@epwater.org>; Jonathan Persall <JPersall@epwater.org>
Subject: RE: Kinder Morgan/EPNG - Right of Entry - McCloud Seafox Lateral

You don't often get email from dalton_lemieux@kindermorgan.com. Learn why this is important

Alex, we have discovered some stuff that is going to make us re-route our pipeline. Do you have just a few minutes to hop on teams today?

Dalton Lemieux
Right of Way Agent
719-412-3756
Tulsa, OK
<image005.png>

From: Alejandro Vidales Jr. <AVidales@epwater.org>
Sent: Wednesday, March 25, 2026 8:39 AM
To: Lemieux, Dalton <Dalton_Lemieux@kindermorgan.com>; Jonathan Persall <JPersall@epwater.org>
Subject: RE: Kinder Morgan/EPNG - Right of Entry - McCloud Seafox Lateral

[This email message was received from the Internet and came from outside of Kinder Morgan.]

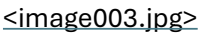
WARNING: EXTERNAL EMAIL: PROCEED WITH CAUTION.

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Good morning Dalton,

Let me review and get back to you asap,

Alex Vidales, JD.,
<image002.png>
Utility Land & Water Rights Manager



1154 Hawkins, El Paso, TX 79925
(O) 915.594.5636 (F) 915.594.5570

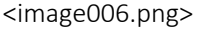
From: Lemieux, Dalton <Dalton_Lemieux@kindermorgan.com>
Sent: Tuesday, March 24, 2026 8:46 AM
To: Alejandro Vidales Jr. <AVidales@epwater.org>; Jonathan Persall <JPersall@epwater.org>
Subject: Kinder Morgan/EPNG - Right of Entry - McCloud Seafox Lateral

Some people who received this message don't often get email from dalton_lemieux@kindermorgan.com. Learn why this is important

Alex/Jonathan, I know we are currently waiting on the approved right of entry permits from you guys for survey purposes. I did get a question yesterday and wanted to reach out to you and get your thoughts.

We are wanting to know if you guys would be fine with our surveyors entering the City of El Paso property and going out to find the corner posts to identify corners and property lines. This work ahead of time would keep us on a good timeline, and would avoid them having to do this once we get survey permission to actually do the staking. This process wouldn't involve any routing of the pipeline; it would only give our surveyors a head start on identifying corners. Please let me know if this is acceptable.

I have attached a kmz showing on the parcels that would be involved in this process. And below I added a snippet with an area I had a question about, I know one of our proposed routes was going by this area, and wanted to see what that pad was. Thanks



Dalton Lemieux
Right of Way Agent
719-412-3756
Tulsa, OK


U.S. Fish and Wildlife Service

Correspondence

United States Department of the Interior

FISH AND WILDLIFE SERVICE
Austin Ecological Services Field Office
1505 Ferguson Lane
Austin, TX 78754-4501
Phone: (512) 937-7371

In Reply Refer To: 05/21/2026 21:31:37 UTC
Project Code: 2026-0093563
Project Name: McCloud Lateral Line Project

Subject: List of threatened and endangered species that may occur in your proposed project location or may be affected by your proposed project

To Whom It May Concern:

The enclosed species list identifies threatened, endangered, proposed and candidate species, as well as proposed and final designated critical habitat, that may occur within the boundary of your proposed project and/or may be affected by your proposed project. The species list fulfills the requirements of the U.S. Fish and Wildlife Service (Service) under section 7(c) of the Endangered Species Act (Act) of 1973, as amended (16 U.S.C. 1531 *et seq.*).

New information based on updated surveys, changes in the abundance and distribution of species, changed habitat conditions, or other factors could change this list. Please feel free to contact us if you need more current information or assistance regarding the potential impacts to federally proposed, listed, and candidate species and federally designated and proposed critical habitat. Please note that under 50 CFR 402.12(e) of the regulations implementing section 7 of the Act, the accuracy of this species list should be verified after 90 days. This verification can be completed formally or informally as desired. The Service recommends that verification be completed by visiting the IPaC website at regular intervals during project planning and implementation for updates to species lists and information. An updated list may be requested through the IPaC system by completing the same process used to receive the enclosed list.

The purpose of the Act is to provide a means whereby threatened and endangered species and the ecosystems upon which they depend may be conserved. Under sections 7(a)(1) and 7(a)(2) of the Act and its implementing regulations (50 CFR 402 *et seq.*), Federal agencies are required to utilize their authorities to carry out programs for the conservation of threatened and endangered species and to determine whether projects may affect threatened and endangered species and/or designated critical habitat.

A Biological Assessment is required for construction projects (or other undertakings having similar physical impacts) that are major Federal actions significantly affecting the quality of the human environment as defined in the National Environmental Policy Act (42 U.S.C. 4332(2)(c)). For projects other than major construction activities, the Service suggests that a biological

evaluation similar to a Biological Assessment be prepared to determine whether the project may affect listed or proposed species and/or designated or proposed critical habitat. Recommended contents of a Biological Assessment are described at 50 CFR 402.12.

If a Federal agency determines, based on the Biological Assessment or biological evaluation, that listed species and/or designated critical habitat may be affected by the proposed project, the agency is required to consult with the Service pursuant to 50 CFR 402. In addition, the Service recommends that candidate species, proposed species and proposed critical habitat be addressed within the consultation. More information on the regulations and procedures for section 7 consultation, including the role of permit or license applicants, can be found in the "Endangered Species Consultation Handbook" at: https://www.fws.gov/sites/default/files/documents/endangered-species-consultation-handbook.pdf

Migratory Birds: In addition to responsibilities to protect threatened and endangered species under the Endangered Species Act (ESA), there are additional responsibilities under the Migratory Bird Treaty Act (MBTA) and the Bald and Golden Eagle Protection Act (BGEPA) to protect native birds from project-related impacts. Any activity resulting in take of migratory birds, including eagles, is prohibited unless otherwise permitted by the U.S. Fish and Wildlife Service (50 C.F.R. Sec. 10.12 and 16 U.S.C. Sec. 668(a)). For more information regarding these Acts see https://www.fws.gov/program/migratory-bird-permit/what-we-do.

It is the responsibility of the project proponent to comply with these Acts by identifying potential impacts to migratory birds and eagles within applicable NEPA documents (when there is a federal nexus) or a Bird/Eagle Conservation Plan (when there is no federal nexus). Proponents should implement conservation measures to avoid or minimize the production of project-related stressors or minimize the exposure of birds and their resources to the project-related stressors. For more information on avian stressors and recommended conservation measures see https://www.fws.gov/library/collections/threats-birds.

In addition to MBTA and BGEPA, Executive Order 13186: *Responsibilities of Federal Agencies to Protect Migratory Birds*, obligates all Federal agencies that engage in or authorize activities that might affect migratory birds, to minimize those effects and encourage conservation measures that will improve bird populations. Executive Order 13186 provides for the protection of both migratory birds and migratory bird habitat. For information regarding the implementation of Executive Order 13186, please visit https://www.fws.gov/partner/council-conservation-migratory-birds.

We appreciate your concern for threatened and endangered species. The Service encourages Federal agencies to include conservation of threatened and endangered species into their project planning to further the purposes of the Act. Please include the Consultation Code in the header of this letter with any request for consultation or correspondence about your project that you submit to our office.

Note: IPaC has provided all available attachments because this project is in multiple field office jurisdictions.

Attachment(s):

- Official Species List
- USFWS National Wildlife Refuges and Fish Hatcheries
- Bald & Golden Eagles
- Migratory Birds
- Wetlands

OFFICIAL SPECIES LIST

This list is provided pursuant to Section 7 of the Endangered Species Act, and fulfills the requirement for Federal agencies to "request of the Secretary of the Interior information whether any species which is listed or proposed to be listed may be present in the area of a proposed action".

This species list is provided by:

Austin Ecological Services Field Office
1505 Ferguson Lane
Austin, TX 78754-4501
(512) 937-7371

This project's location is within the jurisdiction of multiple offices. However, only one species list document will be provided for all offices. The species and critical habitats in this document reflect the aggregation of those that fall in each of the affiliated office's jurisdiction. Other offices affiliated with the project:

New Mexico Ecological Services Field Office
2105 Osuna Road Ne
Albuquerque, NM 87113-1001
(505) 346-2525

PROJECT SUMMARY

Project Code: 2026-0093563
Project Name: McCloud Lateral Line Project
Project Type: Pipeline - Onshore - New Constr - Below Ground
Project Description: Construction of an approximately 5-mile lateral pipeline to service a proposed generation facility in El Paso County, Texas, within the northern most extent of the City of El Paso, west of Fort Bliss, and terminating near the New Mexico border. The pipeline will entirely traverse private lands. Above ground facilities would be limited to launcher/receiver facilities at the northern and southern ends of the route and metering facilities at the northern end.

Project Location:

The approximate location of the project can be viewed in Google Maps: https://www.google.com/maps/@31.984456,-106.39848941956399,14z



Counties: New Mexico and Texas

ENDANGERED SPECIES ACT SPECIES

There is a total of 9 threatened, endangered, or candidate species on this species list.

Species on this list should be considered in an effects analysis for your project and could include species that exist in another geographic area. For example, certain fish may appear on the species list because a project could affect downstream species. Note that 2 of these species should be considered only under certain conditions.

IPaC does not display listed species or critical habitats under the sole jurisdiction of NOAA Fisheries[1], as USFWS does not have the authority to speak on behalf of NOAA and the Department of Commerce.

See the "Critical habitats" section below for those critical habitats that lie wholly or partially within your project area under this office's jurisdiction. Please contact the designated FWS office if you have questions.

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1. NOAA Fisheries, also known as the National Marine Fisheries Service (NMFS), is an office of the National Oceanic and Atmospheric Administration within the Department of Commerce.

MAMMALS

NAME	STATUS
Penasco Least Chipmunk *Tamias minimus atristriatus* There is **final** critical habitat for this species. Your location does not overlap the critical habitat. Species profile: https://ecos.fws.gov/ecp/species/5126 General project design guidelines: https://ipac.ecosphere.fws.gov/project/FWPYGY42ZREERJXH55VMAJERYU/documents/generated/9171.pdf	Endangered

BIRDS

NAME	STATUS
Northern Aplomado Falcon *Falco femoralis septentrionalis* Population: U.S.A (AZ, NM) No critical habitat has been designated for this species. Species profile: https://ecos.fws.gov/ecp/species/1923 General project design guidelines: https://ipac.ecosphere.fws.gov/project/FWPYGY42ZREERJXH55VMAJERYU/documents/generated/8928.pdf	Experimental Population, Non-Essential
Northern Aplomado Falcon *Falco femoralis septentrionalis* Population: Wherever found, except where listed as an experimental population No critical habitat has been designated for this species. Species profile: https://ecos.fws.gov/ecp/species/1923 General project design guidelines: https://ipac.ecosphere.fws.gov/project/FWPYGY42ZREERJXH55VMAJERYU/documents/generated/8928.pdf	Endangered
Piping Plover *Charadrius melodus* Population: [Atlantic Coast and Northern Great Plains populations] - Wherever found, except those areas where listed as endangered. There is **final** critical habitat for this species. Your location does not overlap the critical habitat. This species only needs to be considered under the following conditions: ▪ Wind Energy Projects Species profile: https://ecos.fws.gov/ecp/species/6039	Threatened
Rufa Red Knot *Calidris canutus rufa* There is **proposed** critical habitat for this species. Your location does not overlap the critical habitat. This species only needs to be considered under the following conditions: ▪ Wind Energy Projects Species profile: https://ecos.fws.gov/ecp/species/1864	Threatened
Yellow-billed Cuckoo *Coccyzus americanus* Population: Western U.S. DPS There is **final** critical habitat for this species. Your location does not overlap the critical habitat. Species profile: https://ecos.fws.gov/ecp/species/3911 General project design guidelines: https://ipac.ecosphere.fws.gov/project/FWPYGY42ZREERJXH55VMAJERYU/documents/generated/9183.pdf	Threatened

INSECTS

NAME	STATUS
Monarch Butterfly *Danaus plexippus* There is **proposed** critical habitat for this species. Your location does not overlap the critical habitat. Species profile: https://ecos.fws.gov/ecp/species/9743	Proposed Threatened

FLOWERING PLANTS

NAME	STATUS
Sacramento Mountains Thistle *Cirsium vinaceum* No critical habitat has been designated for this species. Species profile: https://ecos.fws.gov/ecp/species/7486 General project design guidelines: https://ipac.ecosphere.fws.gov/project/FWPYGY42ZREERJXH55VMAJERYU/documents/generated/9175.pdf	Threatened
Sacramento Prickly Poppy *Argemone pleiacantha ssp. pinnatisecta* No critical habitat has been designated for this species. Species profile: https://ecos.fws.gov/ecp/species/3332	Endangered

CRITICAL HABITATS

THERE ARE NO CRITICAL HABITATS WITHIN YOUR PROJECT AREA UNDER THIS OFFICE'S JURISDICTION.

YOU ARE STILL REQUIRED TO DETERMINE IF YOUR PROJECT(S) MAY HAVE EFFECTS ON ALL ABOVE LISTED SPECIES.

USFWS NATIONAL WILDLIFE REFUGE LANDS AND FISH HATCHERIES

Any activity proposed on lands managed by the National Wildlife Refuge system must undergo a 'Compatibility Determination' conducted by the Refuge. Please contact the individual Refuges to discuss any questions or concerns.

THERE ARE NO REFUGE LANDS OR FISH HATCHERIES WITHIN YOUR PROJECT AREA.

BALD & GOLDEN EAGLES

Bald and Golden Eagles are protected under the Bald and Golden Eagle Protection Act [2] and the Migratory Bird Treaty Act (MBTA) [1]. Any person or organization who plans or conducts activities that may result in impacts to Bald or Golden Eagles, or their habitats, should follow appropriate regulations and consider implementing appropriate avoidance and minimization measures, as described in the various links on this page.

---

1. The Bald and Golden Eagle Protection Act of 1940.

2. The Migratory Birds Treaty Act of 1918.
3. 50 C.F.R. Sec. 10.12 and 16 U.S.C. Sec. 668(a)

Bald and Golden Eagles are protected under the Bald and Golden Eagle Protection Act and the Migratory Bird Treaty Act (MBTA). Any person or organization who plans or conducts activities that may result in impacts to Bald or Golden Eagles, or their nests, should follow appropriate regulations and implement required avoidance and minimization measures, as described in the various links on this page.

The data in this location indicates that no eagles have been observed in this area. This does not mean eagles are not present in your project area, especially if the area is difficult to survey. Please review the 'Steps to Take When No Results Are Returned' section of the Supplemental Information on Migratory Birds and Eagles document to determine if your project is in a poorly surveyed area. If it is, you may need to rely on other resources to determine if eagles may be present (e.g. your local FWS field office, state surveys, your own surveys).

Any person or organization who plans or conducts activities that may result in impacts to bald or golden eagles, or their habitats, should follow appropriate regulations and consider implementing appropriate conservation measures, as described in the links below. Specifically, please review the "Supplemental Information on Migratory Birds and Eagles".

MIGRATORY BIRDS

The Migratory Bird Treaty Act (MBTA) [1] prohibits the take (including killing, capturing, selling, trading, and transport) of protected migratory bird species without prior authorization by the Department of Interior U.S. Fish and Wildlife Service (Service).

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1. The Migratory Birds Treaty Act of 1918.
2. The Bald and Golden Eagle Protection Act of 1940.
3. 50 C.F.R. Sec. 10.12 and 16 U.S.C. Sec. 668(a)

For guidance on when to schedule activities or implement avoidance and minimization measures to reduce impacts to migratory birds on your list, see the "Probability of Presence Summary" below to see when these birds are most likely to be present and breeding in your project area.

NAME	BREEDING SEASON
Broad-tailed Hummingbird *Selasphorus platycercus* This is a Bird of Conservation Concern (BCC) throughout its range in the continental USA and Alaska. https://ecos.fws.gov/ecp/species/11935	Breeds May 25 to Aug 21

NAME	BREEDING SEASON
Cactus Wren *Campylorhynchus brunneicapillus guttatus* This is a Bird of Conservation Concern (BCC) only in particular Bird Conservation Regions (BCRs) in the continental USA https://ecos.fws.gov/ecp/species/8834	Breeds Mar 5 to Sep 30
Cassin's Sparrow *Peucaea cassinii* This is a Bird of Conservation Concern (BCC) only in particular Bird Conservation Regions (BCRs) in the continental USA https://ecos.fws.gov/ecp/species/9512	Breeds Aug 1 to Oct 10
Chestnut-collared Longspur *Calcarius ornatus* This is a Bird of Conservation Concern (BCC) throughout its range in the continental USA and Alaska. https://ecos.fws.gov/ecp/species/9437	Breeds elsewhere
Eastern Meadowlark *Sturnella magna* This is a Bird of Conservation Concern (BCC) only in particular Bird Conservation Regions (BCRs) in the continental USA https://ecos.fws.gov/ecp/species/9455	Breeds Apr 25 to Aug 31
Long-billed Curlew *Numenius americanus* This is a Bird of Conservation Concern (BCC) only in particular Bird Conservation Regions (BCRs) in the continental USA https://ecos.fws.gov/ecp/species/5511	Breeds elsewhere
Virginia's Warbler *Leiothlypis virginiae* This is a Bird of Conservation Concern (BCC) throughout its range in the continental USA and Alaska. https://ecos.fws.gov/ecp/species/9441	Breeds May 1 to Jul 31

PROBABILITY OF PRESENCE SUMMARY

The graphs below provide our best understanding of when birds of concern are most likely to be present in your project area. This information can be used to tailor and schedule your project activities to avoid or minimize impacts to birds. Please make sure you read "Supplemental Information on Migratory Birds and Eagles", specifically the FAQ section titled "Proper Interpretation and Use of Your Migratory Bird Report" before using or attempting to interpret this report.

Probability of Presence (■)

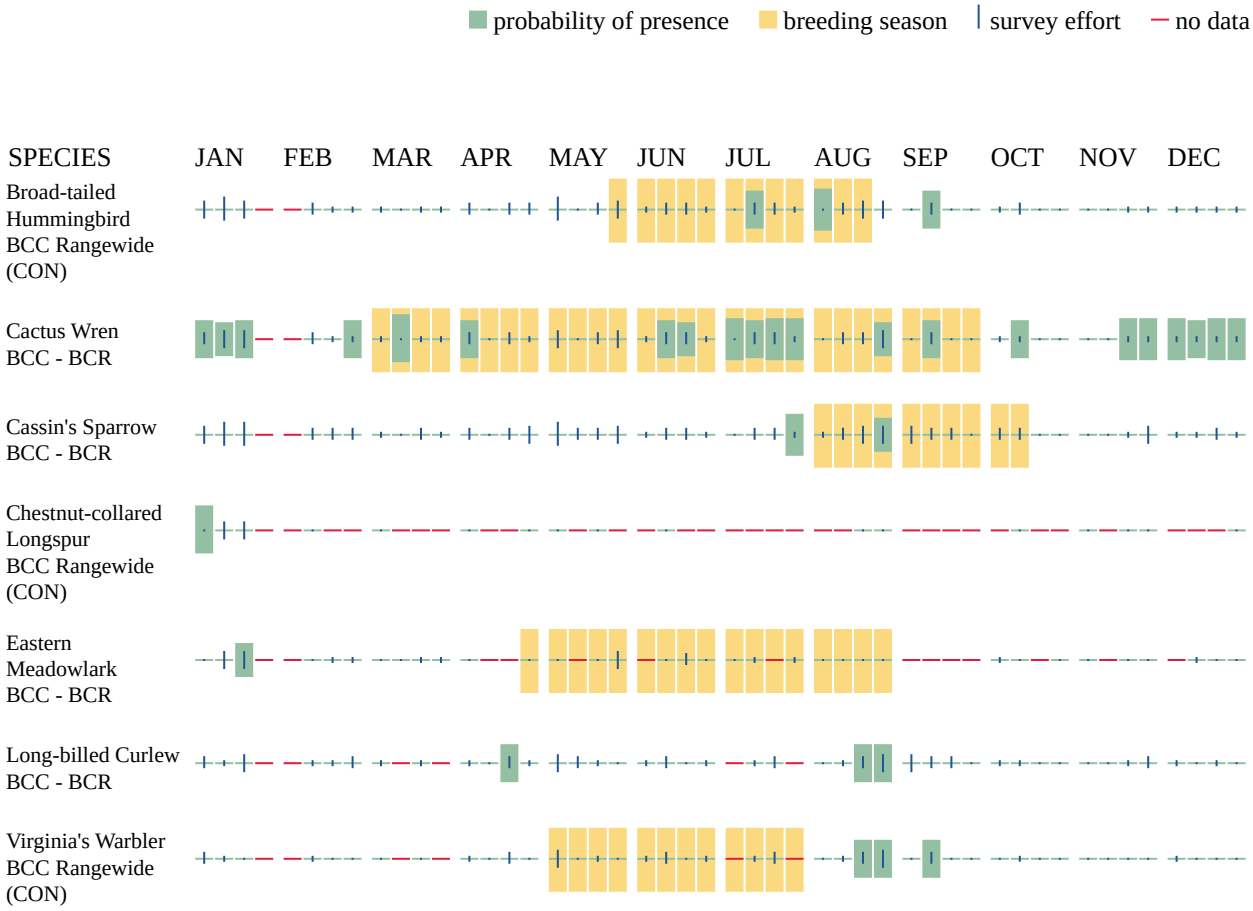
Green bars; the bird's relative probability of presence in the 10km grid cell(s) your project overlaps during that week of the year.

Breeding Season (■)
Yellow bars; liberal estimate of the timeframe inside which the bird breeds across its entire range.

Survey Effort (|)

Vertical black lines; the number of surveys performed for that species in the 10km grid cell(s) your project area overlaps.

No Data (–)
A week is marked as having no data if there were no survey events for that week.



Additional information can be found using the following links:

- Eagle Management https://www.fws.gov/program/eagle-management
- Measures for avoiding and minimizing impacts to birds https://www.fws.gov/library/collections/avoiding-and-minimizing-incidental-take-migratory-birds
- Nationwide avoidance and minimization measures for birds
- Supplemental Information for Migratory Birds and Eagles in IPaC https://www.fws.gov/media/supplemental-information-migratory-birds-and-bald-and-golden-eagles-may-occur-project-action

WETLANDS

Impacts to NWI wetlands and other aquatic habitats may be subject to regulation under Section 404 of the Clean Water Act, or other State/Federal statutes.

For more information please contact the Regulatory Program of the local U.S. Army Corps of Engineers District.

Please note that the NWI data being shown may be out of date. We are currently working to update our NWI data set. We recommend you verify these results with a site visit to determine the actual extent of wetlands on site.

THERE ARE NO WETLANDS WITHIN YOUR PROJECT AREA.

IPAC USER CONTACT INFORMATION

Agency: Private Entity
Name: Levi Sparks
Address: 1500 CityWest Blvd
City: Houston
State: TX
Zip: 77042
Email levi.sparks@tetratech.com
Phone: 3252361166

LEAD AGENCY CONTACT INFORMATION

Lead Agency: Federal Energy Regulatory Commission

From: Williams, Christina
To: Donnelly, Mike
Subject: Re: [EXTERNAL] El Paso Natural Gas McCloud Lateral - No effect determination
Date: Tuesday, July 14, 2026 2:12:21 PM
Attachments: image001.png
image002.png
image003.png
image004.png
image005.png

CAUTION: This email originated from an external sender. Verify the source before opening links or attachments.

Mike,

As you noted, the Service does not concur with no effect determinations. We recommend you keep the determination with your records in case of inquiry.

Thank you,

Christina

Christina Williams
1505 Ferguson Lane
Austin, Texas 78754
512-850-0980

From: Donnelly, Mike <Mike.Donnelly@tetratech.com>
Sent: Tuesday, 14 July 2026 09:23:31
To: Williams, Christina <christina_williams@fws.gov>
Subject: [EXTERNAL] El Paso Natural Gas McCloud Lateral - No effect determination

This email has been received from outside of DOI - Use caution before clicking on links, opening attachments, or responding.

Good Morning:

On behalf of our client, El Paso Natural Gas, Tetra Tech is preparing a Federal Energy Regulatory Commission (FERC) Prior Notice application for the proposed 5.8-mile McCloud Lateral Project located in El Paso Texas. During April 2026 surveys, the Project Area was documented as being predominantly desert scrub shrub, with creosote bush being the

dominant shrub. The project is surrounded by multiple other on-going projects including the Borderlands Expressway and the Seafox Data Center. Only two indistinct ephemeral drainages were mapped within the proposed construction workspace.

Based on the absence of persistent water sources, the Project Area's characterization, and ongoing development, Tetra Tech has made a determination that the Project would have "no effect" on listed species protected under the Endangered Species Act.

As with past projects, it is our understanding that the USFWS does not concur with no effect determinations, but we are requesting confirmation of such, to include with our application being submitted to FERC at the end of July.

Thank you for your time and assistance.

Mike

Michael L. Donnelly| Senior Program Manager
Direct **(832) 251-5172** | Mobile **(346)** 267-5673| Mike.Donnelly@tetratech.com

Tetra Tech | *Leading with Science*®
1500 CityWest Blvd, Suite 1000 | Houston, TX 77042 | tetratech.com

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TETRA TECH

Last Update: 1/15/2025

EL PASO COUNTY

AMPHIBIANS

Woodhouse's toad *Anaxyrus woodhousii*

Terrestrial and aquatic: A wide variety of terrestrial habitats are used by this species, including forests, grasslands, and barrier island sand dunes. Aquatic habitats are equally varied.

Federal Status:	State Status:	SGCN: Y
Endemic: N	Global Rank: G5	State Rank: S5

BIRDS

Baird's Sparrow *Centronyx bairdii*

Shortgrass prairie with scattered low bushes and matted vegetation; mostly migratory in western half of State, though winters in Mexico and just across Rio Grande into Texas from Brewster through Hudspeth counties

Federal Status:	State Status:	SGCN: Y
Endemic: N	Global Rank: G4	State Rank: SUN

Bank Swallow *Riparia riparia*

Bank Swallows live in low areas along rivers, streams, ocean coasts, and reservoirs. Their territories usually include vertical cliffs or banks where they nest in colonies of 10 to 2,000 nests. Though in the past Bank Swallows were most commonly found around natural bluffs or eroding streamside banks, they now often nest in human-made sites, such as sand and gravel quarries or road cuts. They forage in open areas and avoid places with tree cover.

Federal Status:	State Status:	SGCN: Y
Endemic: N	Global Rank: G5	State Rank: S2B,S4N

Brewer's Blackbird *Euphagus cyanocephalus*

Shrubby and bushy areas (especially near water), riparian woodland, aspen parklands, cultivated lands, marshes, and around human habitation; in migration and winter also in pastures and fields (AOU 1983).

Federal Status:	State Status:	SGCN: Y
Endemic: N	Global Rank: G5	State Rank: S5

Cactus Wren *Campylorhynchus brunneicapillus*

Desert (especially with cholla cactus or yucca), mesquite, arid scrub, coastal sage scrub, and in trees in towns in arid regions (Tropical to Subtropical zones) (AOU 1983). Nests in OPUNTIA cactus, or in twiggy, thorny, trees and shrubs, sometimes in buildings. Nest may be relined and used as a winter roost.

Federal Status:	State Status:	SGCN: Y
Endemic: N	Global Rank: G5	State Rank: S4B

chestnut-collared longspur *Calcarius ornatus*

Occurs in open shortgrass settings especially in patches with some bare ground. Also occurs in grain sorghum fields and Conservation Reserve Program lands

Federal Status:	State Status:	SGCN: Y
Endemic: N	Global Rank: G5	State Rank: S3

DISCLAIMER

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EL PASO COUNTY

BIRDS

Common Nighthawk *Chordeiles minor*

Common Nighthawks nest in both rural and urban habitats including coastal sand dunes and beaches, logged forest, recently burned forest, woodland clearings, prairies, plains, sagebrush, grasslands, open forests, and rock outcrops. They also nest on flat gravel rooftops, though less often as gravel roofs are being replaced by smooth, rubberized roofs that provide an unsuitable surface.

Federal Status:	State Status:	SGCN: Y
Endemic: N	Global Rank: G5	State Rank: S4B

Franklin's gull *Leucophaeus pipixcan*

The county distribution for this species includes geographic areas that the species may use during migration. Time of year should be factored into evaluations to determine potential presence of this species in a specific county. This species is only a spring and fall migrant throughout Texas. It does not breed in or near Texas. Winter records are unusual consisting of one or a few individuals at a given site (especially along the Gulf coastline). During migration, these gulls fly during daylight hours but often come down to wetlands, lake shore, or islands to roost for the night.

Federal Status:	State Status:	SGCN: Y
Endemic: N	Global Rank: G5	State Rank: S2N

golden eagle *Aquila chrysaetos*

Golden eagles generally inhabit open and semi-open country such as prairies, sagebrush, savannah or sparse woodland, and barren areas, especially in hilly or mountainous regions, in areas with sufficient mammalian prey base and near suitable nesting sites.

Federal Status:	State Status:	SGCN: N
Endemic: N	Global Rank: G5	State Rank: S3B

lark bunting *Calamospiza melanocorys*

Overall, it's a generalist in most short grassland settings including ones with some brushy component plus certain agricultural lands that include grain sorghum. Short grasses include sideoats and blue gramas, sand dropseed, prairie junegrass (Koeleria), buffalograss also with patches of bluestem and other mid-grass species. This bunting will frequent smaller patches of grasses or disturbed patches of grasses including rural yards. It also uses weedy fields surrounding playas. This species avoids urban areas and cotton fields.

Federal Status:	State Status:	SGCN: Y
Endemic: N	Global Rank: G5	State Rank: S4B

Loggerhead Shrike *Lanius ludovicianus*

Loggerhead Shrikes inhabit open country with short vegetation and well-spaced shrubs or low trees, particularly those with spines or thorns. They frequent agricultural fields, pastures, old orchards, riparian areas, desert scrublands, savannas, prairies, golf courses, and cemeteries. Loggerhead Shrikes are often seen along mowed roadsides with access to fence lines and utility poles.

Federal Status:	State Status:	SGCN: Y
Endemic: N	Global Rank: G4	State Rank: S4B

Pyrrhuloxia *Cardinalis sinuatus*

Pyrrhuloxias live in upland deserts, mesquite savannas, riparian (streamside) woodlands, desert scrublands, farm fields with hedgerows, and residential areas with nearby mesquite. When not breeding, some Pyrrhuloxias wander into urban habitats, mesquite-hackberry habitats, and riparian habitats with Arizona sycamore and cottonwood.

Federal Status:	State Status:	SGCN: Y
Endemic: N	Global Rank: G5	State Rank: S4B

DISCLAIMER

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EL PASO COUNTY

BIRDS

Sanderling *Calidris alba*

Nonbreeding: primarily sandy beaches, less frequently on mud flats and shores of lakes or rivers (AOU 1983) also on exposed reefs (Pratt et al. 1987). Sleeps/loafs on upper beach or on salt pond dike.

Federal Status: State Status: SGCN: Y

Endemic: N Global Rank: G5 State Rank: S5

Scaled Quail *Callipepla squamata*

In general, preferred habitat is arid-semiarid, mixed shrub-grassland. Common shrubs of preferred habitat include acacia (ACACIA spp.), sand sagebrush (ARTEMISIA FILIFOLIA), four-winged saltbush (ATRIPLEX CANESCENS), cacti (OPUNTIA spp.), honey mesquite (PROSOPIS GLANDULOSA), sumacs (RHUS AROMATICA, R. MICROPHYLLA, R. TRILOBATA), yucca (YUCCA spp.), and snakeweed (XANTHOCEPHALUM SAROTHRAE).

Federal Status: State Status: SGCN: Y

Endemic: N Global Rank: G5 State Rank: S4B

Snowy Plover *Charadrius nivosus*

Algal flats appear to be the highest quality habitat. Some of the most important aspects of algal flats are their relative inaccessibility and their continuous availability throughout all tidal conditions. An optimal site characteristic would be large in size. The size of populations appear to be roughly proportional to the total area of suitable habitat used. Formerly an uncommon breeder in the Panhandle; potential migrant; winter along coast.

Federal Status: State Status: SGCN: Y

Endemic: N Global Rank: G3 State Rank: S3B

southwestern willow flycatcher *Empidonax traillii extimus*

Thickets of willow, cottonwood, mesquite, and other species along desert streams

Federal Status: E State Status: E SGCN: Y

Endemic: N Global Rank: G5T2 State Rank: S1B

Sprague's pipit *Anthus spragueii*

The county distribution for this species includes geographic areas that the species may use during migration. Time of year should be factored into evaluations to determine potential presence of this species in a specific county. Habitat during migration and in winter consists of pastures and weedy fields (AOU 1983), including grasslands with dense herbaceous vegetation or grassy agricultural fields.

Federal Status: State Status: SGCN: Y

Endemic: N Global Rank: G3G4 State Rank: S3N

Virginia's Warbler *Leiothlypis virginiae*

In summer higher elevations and oak woodland. In migration riparian areas, woodlands, brush.

Federal Status: State Status: SGCN: Y

Endemic: N Global Rank: G5 State Rank: S3B

DISCLAIMER

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EL PASO COUNTY

BIRDS

western burrowing owl *Athene cunicularia hypugaea*

Open grasslands, especially prairie, plains, and savanna, sometimes in open areas such as vacant lots near human habitation or airports; nests and roosts in abandoned burrows

Federal Status:	State Status:	SGCN: N
Endemic: N	Global Rank: G4T4	State Rank: S2

white-faced ibis *Plegadis chihi*

The county distribution for this species includes geographic areas that the species may use during migration. Time of year should be factored into evaluations to determine potential presence of this species in a specific county. Prefers freshwater marshes, sloughs, and irrigated rice fields, but will attend brackish and saltwater habitats; currently confined to near-coastal rookeries in so-called hog-wallow prairies. Nests in marshes, in low trees, on the ground in bulrushes or reeds, or on floating mats.

Federal Status:	State Status: T	SGCN: N
Endemic: N	Global Rank: G5	State Rank: S4B

Willet *Tringa semipalmata*

Marshes, tidal mudflats, beaches, lake margins, mangroves, tidal channels, river mouths, coastal lagoons, sandy or rocky shores, and, less frequently, open grassland (AOU 1983, Stiles and Skutch 1989).

Federal Status:	State Status:	SGCN: Y
Endemic: N	Global Rank: G5	State Rank: S5B

Wilson's Warbler *Cardellina pusilla*

Wilson’s warblers key in on forests and scrubby areas along streams to fatten up during migration. During the nonbreeding season they use many types of habitats from lowland thickets near streams to high-elevation cloud forests in Mexico and Central America.

Federal Status:	State Status:	SGCN: Y
Endemic: N	Global Rank: G5	State Rank: S4

yellow-billed cuckoo *Coccyzus americanus*

In Texas, the populations of concern are found breeding in riparian areas in the Trans Pecos (know as part of the Western Distinct Population Segment). It is the Western DPS that is on the U.S. ESA threatened list and includes the Texas counties Brewster, Culberson, El Paso, Hudspeth, Jeff Davis, and Presidio. Riparian woodlands below 6,000' in elevation consisting of cottonwoods and willows are prime habitat. This species is a long-distant migrant that summers in Texas, but winters mainly in South America. Breeding birds of the Trans Pecos populations typically arrive on their breeding grounds possibly in late April but the peak arrival time is in May. Threats to preferred habitat include hydrologic changes that don't promote the regeneration of cottonwoods and willows, plus livestock browsing and trampling of sapling trees in sensitive riparian areas.

Federal Status: T	State Status:	SGCN: Y
Endemic: N	Global Rank: G5	State Rank: S4S5B

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EL PASO COUNTY

FISH

longnose dace *Rhinichthys cataractae*

Can only be found in the Big Bend portion of the Rio Grande. Occasionally taken in lakes and clear pools of rivers but prefers clear, flowing water in gravelly riffles.

Federal Status:	State Status:	SGCN: Y
Endemic: N	Global Rank: G5	State Rank: S2

speckled chub *Macrhybopsis aestivalis*

Found throughout the Rio Grande and lower Pecos River but occurs most frequently between the Río Conchos confluence and the Pecos River. Flowing water over coarse sand and fine gravel substrates in streams; typically found in raceways and runs.

Federal Status:	State Status: T	SGCN: Y
Endemic: N	Global Rank: G3G4	State Rank: S1S2

INSECTS

American bumblebee *Bombus pensylvanicus*

Habitat description is not available at this time.

Federal Status:	State Status:	SGCN: Y
Endemic:	Global Rank: G3G4	State Rank: SNR

grande stripetail *Isoperla jewetti*

Originally described from El Paso Co., Texas from specimens collected in 1939.

Federal Status:	State Status:	SGCN: Y
Endemic:	Global Rank: G1	State Rank: S1

migratory monarch butterfly *Danaus plexippus plexippus*

Habitat description is not available at this time.

Federal Status: C	State Status:	SGCN: Y
Endemic:	Global Rank: G4T3	State Rank: SNR

Samalayuca Dune grasshopper *Cibolacris samalayucae*

Habitat description is not available at this time.

Federal Status:	State Status:	SGCN: Y
Endemic:	Global Rank: G2?	State Rank: S2?

MAMMALS

big free-tailed bat *Nyctinomops macrotis*

Habitat data sparse but records indicate that species prefers to roost in crevices and cracks in high canyon walls, but will use buildings, as well; reproduction data sparse, gives birth to single offspring late June-early July; females gather in nursery colonies; winter habits undetermined, but may hibernate in the Trans-Pecos; opportunistic insectivore

Federal Status:	State Status:	SGCN: Y
Endemic: N	Global Rank: G5	State Rank: S3

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EL PASO COUNTY

MAMMALS

black-tailed prairie dog *Cynomys ludovicianus*

Dry, flat, short grasslands with low, relatively sparse vegetation, including areas overgrazed by cattle; live in large family groups

Federal Status: State Status: SGCN: Y

Endemic: N Global Rank: G4 State Rank: S3

California myotis *Myotis californicus*

Often use buildings and mines as night roosts.

Federal Status: State Status: SGCN: Y

Endemic: N Global Rank: G5 State Rank: S3

cave myotis bat *Myotis velifer*

Colonial and cave-dwelling; also roosts in rock crevices, old buildings, carports, under bridges, and even in abandoned Cliff Swallow (Hirundo pyrrhonota) nests; roosts in clusters of up to thousands of individuals; hibernates in limestone caves of Edwards Plateau and gypsum cave of Panhandle during winter; opportunistic insectivore.

Federal Status: State Status: SGCN: Y

Endemic: N Global Rank: G4G5 State Rank: S2S3

desert pocket gopher *Geomys arenarius*

Cottonwood-willow association along the Rio Grande in El Paso and Hudspeth counties; does not tolerate clayey or gravelly soils characteristic of the other Geomys species; common along irrigation ditches in the sandy river bottom area.Lives underground, but build large and conspicuous mounds; life history not well documented, but presumed to eat mostly vegetation, be active year round, and bear more than one litter per year.

Federal Status: State Status: SGCN: Y

Endemic: N Global Rank: G3G4 State Rank: S2

fringed myotis *Myotis thysanodes*

Higher elevations of the Trans-Pecos, cliffs, rock crevices.

Federal Status: State Status: SGCN: Y

Endemic: N Global Rank: G4 State Rank: S3

hoary bat *Lasiurus cinereus*

Hoary bats are highly migratory, high-flying bats that have been noted throughout the state. Females are known to migrate to Mexico in the winter, males tend to remain further north and may stay in Texas year-round. Commonly associated with forests (foliage roosting species) but are found in unforested parts of the state and lowland deserts. Tend to be captured over water and large, open flyways.

Federal Status: State Status: SGCN: Y

Endemic: N Global Rank: G3G4 State Rank: S3

kit fox *Vulpes macrotis*

Open desert grassland; avoids rugged, rocky terrain and wooded areas.

Federal Status: State Status: SGCN: N

Endemic: N Global Rank: G4 State Rank: S1S2

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EL PASO COUNTY

MAMMALS

long-legged myotis bat *Myotis volans*

Found in pine-oak woodland to grassland ecotone, higher elevations of Trans-Pecos.High, open woods and mountainous terrain; nursery colonies (which may contain several hundred individuals) form in summer in buildings, crevices, and hollow trees; apparently does not use caves as day roosts, but may use such sites at night; single offspring born June-July.

Federal Status:	State Status:	SGCN: Y
Endemic: N	Global Rank: G4G5	State Rank: S1S2

mountain lion *Puma concolor*

Generalist; found in a wide range of habitats statewide. Found most frequently in rugged mountains & riparian zones.

Federal Status:	State Status:	SGCN: Y
Endemic: N	Global Rank: G5	State Rank: S2S3

pale Townsend's big-eared bat *Corynorhinus townsendii pallescens*

Habitat description is not available at this time.

Federal Status:	State Status:	SGCN: Y
Endemic: N	Global Rank: G4T3T4	State Rank: S3?

pronghorn *Antilocapra americana*

Prefers hilly and plateau areas of open grassland, desert-grassland, and desert-scrub, where it frequents south-facing slopes and other sheltered areas.

Federal Status:	State Status:	SGCN: Y
Endemic: N	Global Rank: G5	State Rank: S3

Townsend's big-eared bat *Corynorhinus townsendii*

In Texas, habitat ranges from desert scrub to pinyon-juniper woodland, consistently in areas with canyons or cliffs (Schmidly 1991). Roosts in caves, crevases, trees, and buildings in the Panhandle and Trans-Pecos.

Federal Status:	State Status:	SGCN: Y
Endemic: N	Global Rank: G4	State Rank: S3?

Western pipistrelle *Parastrellus hesperus*

Desert to pine-oak woodland. Cliffs and rock crevices provide roosts.

Federal Status:	State Status:	SGCN: Y
Endemic: N	Global Rank: G5	State Rank: S3S4

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EL PASO COUNTY

MAMMALS

western small-footed myotis bat *Myotis ciliolabrum*

Mountainous regions of the Trans-Pecos, usually in wooded areas, also found in grassland and desert scrub habitats; roosts beneath slabs of rock, behind loose tree bark, and in buildings; maternity colonies often small and located in abandoned houses, barns, and other similar structures; apparently occurs in Texas only during spring and summer months; insectivorous

Federal Status:	State Status:	SGCN: Y
Endemic: N	Global Rank: G5	State Rank: S3

western yellow bat *Lasiurus xanthinus*

Forages over water both perennial and intermittent sources, found at low elevations (< 6,000 feet), roosts in vegetation (yucca, hackberry, sycamore, cypress, and especially palm); also hibernates in palm; locally common in residential areas landscaped with palms in Tuscon and Phoenix, Arizona; young born in June; insectivore

Federal Status:	State Status:	SGCN: Y
Endemic: N	Global Rank: G4G5	State Rank: S1

Yuma myotis *Myotis yumanensis*

Caves, mines, tunnels and buildings in Trans-Pecos.

Federal Status:	State Status:	SGCN: Y
Endemic: N	Global Rank: G5	State Rank: S3?

MOLLUSKS

Franklin Mountain talus snail *Sonorella metcalfi*

Terrestrial; bare rock, talus, scree; inhabits igneous talus most commonly of rhyolitic origin

Federal Status:	State Status:	SGCN: Y
Endemic: N	Global Rank: G2	State Rank: S2

Franklin Mountain wood snail *Ashmunella pasonis*

Terrestrial; bare rock, talus, scree; talus slopes, usually of limestone, but also of rhyolite, sandstone, and siltstone, in arid mountain ranges

Federal Status:	State Status:	SGCN: Y
Endemic:	Global Rank: G2G3	State Rank: S2

Huecos Mountains talus snail *Sonorella huecoensis*

Habitat description is not available at this time.

Federal Status:	State Status:	SGCN: Y
Endemic: Y	Global Rank: G1G2	State Rank: S1

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EL PASO COUNTY

REPTILES

Big Bend slider *Trachemys gaigeae*

Aquatic: Rivers with permanent water; ponds, impoundments, and stock tanks along the Rio Grande; basks on shore, emergent rocks, logs, vegetation mats, or at water surface.

Federal Status:	State Status:	SGCN: Y
Endemic: N	Global Rank: G3	State Rank: S2

gray-checkered whiptail *Aspidoscelis dixoni*

Terrestrial: The habitat comprises rocky plains, dry washes, canyon bottoms, and desert scrub (ocotillo, creosotebush, opuntia) (Bartlett and Bartlett 1999); generally on rocky soils of desert shrublands and degraded grasslands on alluvial benches, canyon bottoms, and lower southwestern mountain slopes (Scudday 1973, Degenhardt et al. 1996).

Federal Status:	State Status:	SGCN: Y
Endemic: N	Global Rank: G5	State Rank: S2

mountain short-horned lizard *Phrynosoma hernandesi*

Terrestrial: Generally restricted to high elevation grasslands and forested areas with open ground; soil may vary from rocky to sandy; burrows into soil or occupies rodent burrow when inactive.

Federal Status:	State Status: T	SGCN: Y
Endemic: N	Global Rank: G5	State Rank: S2

Texas horned lizard *Phrynosoma cornutum*

Terrestrial: Open habitats with sparse vegetation, including grass, prairie, cactus, scattered brush or scrubby trees; soil may vary in texture from sandy to rocky; burrows into soil, enters rodent burrows, or hides under rock when inactive. Occurs to 6000 feet, but largely limited below the pinyon-juniper zone on mountains in the Big Bend area.

Federal Status:	State Status: T	SGCN: Y
Endemic: N	Global Rank: G4G5	State Rank: S3

western box turtle *Terrapene ornata*

Terrestrial: Ornate or western box trutles inhabit prairie grassland, pasture, fields, sandhills, and open woodland. They are essentially terrestrial but sometimes enter slow, shallow streams and creek pools. For shelter, they burrow into soil (e.g., under plants such as yucca) (Converse et al. 2002) or enter burrows made by other species.

Federal Status:	State Status:	SGCN: Y
Endemic: N	Global Rank: G4G5	State Rank: S3

western massasauga *Sistrurus tergeminus*

Terrestrial: Shortgrass or mixed grass prairie, with gravel or sandy soils. Often found associated with draws, floodplains, and more mesic habitats within the arid landscape. Frequently occurs in shrub encroached grasslands.

Federal Status:	State Status:	SGCN: Y
Endemic: N	Global Rank: G3	State Rank: S3

PLANTS

Alamo beardtongue *Penstemon alamosensis*

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EL PASO COUNTY

PLANTS

Rocky soils derived from limestone (in Texas), usually in sheltered sites, often on north facing slopes and in mesic canyon bottoms, occasionally in rock crevices or among unbrowsed shrubs; flowering late April-June

Federal Status:	State Status:	SGCN: Y
Endemic: N	Global Rank: G3	State Rank: S1

Bigelow's desert grass *Blepharidachne bigelovii*

Restricted to xeric limestone or various gypsum-influenced habitats; Perennial; Flowering March-Dec; Fruiting March-Dec

Federal Status:	State Status:	SGCN: Y
Endemic: N	Global Rank: G3	State Rank: S3

Comal snakewood *Colubrina stricta*

In El Paso County, found in a patch of thorny shrubs in colluvial deposits and sandy soils at the base of an igneous rock outcrop; the historic Comal County record does not describe the habitat; in Mexico ,found in shrublands on calcareous, gravelly, clay soils with woody associates; flowering late spring or early summer

Federal Status:	State Status:	SGCN: Y
Endemic: N	Global Rank: G2	State Rank: S1

dense cory cactus *Escobaria dasyacantha var. dasyacantha*

Lechuguilla-sotol or creosote bush shrublands, grasslands, and oak-juniper woodlands on gravelly, rocky, and/or loamy soils over igneous or limestone substrates at moderate elevations 750-1800 m (2450-5900 ft) in the Chihuahuan Desert; flowering March-May (-July), fruiting (May-) June-August

Federal Status:	State Status:	SGCN: Y
Endemic: N	Global Rank: G3T3	State Rank: S3

desert night-blooming cereus *Peniocereus greggii var. greggii*

Chihuahuan Desert shrublands or shrub invaded grasslands in alluvial or gravelly soils at lower elevations, 1200-1500 m (3900-4900 ft), on slopes, benches, arroyos, flats, and washes; flowering synchronized over a few nights in early May to late June when almost all mature plants bloom, flowers last only one day and open just after dark, may flower as early as April

Federal Status:	State Status:	SGCN: Y
Endemic: N	Global Rank: G3G4T3	State Rank: S2

fleshy tidestromia *Tidestromia carnosa*

Occurs in saline or gypseous soils in open situations; Annual; Flowering March-Nov; Fruiting April-Nov

Federal Status:	State Status:	SGCN: Y
Endemic: N	Global Rank: G3	State Rank: S2

great sage *Salvia summa*

Limestone cliffs and slopes in the Guadalupe and Franklin Mountains; Perennial; Flowering April-June; Fruiting May-Oct

Federal Status:	State Status:	SGCN: Y
Endemic: N	Global Rank: G3	State Rank: S2

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EL PASO COUNTY

PLANTS

Hueco rock-daisy *Perityle huecoensis*

North-facing or otherwise mostly shaded limestone cliff faces within relatively mesic canyon system; flowering spring-fall

Federal Status: State Status: SGCN: Y
Endemic: N Global Rank: G1 State Rank: S1

lyreleaf twistflower *Streptanthus carinatus ssp. carinatus*

Occurs on igneous and limestone slopes and alluvial fans (Carr 2015).

Federal Status: State Status: SGCN: Y
Endemic: N Global Rank: G4T3T4 State Rank: S3

Mt. Davis brickellbush *Brickellia parvula*

Occurs on rocky slopes and ridges in the mountains of the southwestern U.S. at elevations between 1200 and 2100 m; Perennial; Flowering Aug-Sept; Fruiting Sept-Oct

Federal Status: State Status: SGCN: Y
Endemic: N Global Rank: G3 State Rank: S1

Payson's hiddenflower *Cryptantha paysonii*

Rocky limestone slopes in mountains; Perennial; Flowering May; Fruiting May-June

Federal Status: State Status: SGCN: Y
Endemic: N Global Rank: G3 State Rank: S1

Plank's catchfly *Silene plankii*

Franklin Mountains of El Paso County, occurring in crevices on shaded igneous cliff faces above ca. 5000 ft.; Perennial; Flowering summer-early autumn

Federal Status: State Status: SGCN: Y
Endemic: N Global Rank: G2 State Rank: S1

resin-leaf brickellbush *Brickellia baccharidea*

Mixed desert shrublands on bajada slopes and in arroyos on sandy or gravelly soils derived from limestone, but also known from igneous substrates; flowering September-April

Federal Status: State Status: SGCN: Y
Endemic: N Global Rank: G3 State Rank: S1

Ripley's senna *Senna ripleyana*

Gravelly hilltops in arid grasslands and creosote flats in Chihuahuan Desert; elevation ranges 1,200-1,500 m (3,900-4,900 ft); flowering/fruiting July-October

Federal Status: State Status: SGCN: Y
Endemic: N Global Rank: G1 State Rank: SH

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EL PASO COUNTY

PLANTS

sand prickly-pear *Opuntia arenaria*

Deep, loose or semi-stabilized sands in sparsely vegetated dune or sandhill areas, or sandy floodplains in arroyos; flowering May-June

Federal Status:	State Status:	SGCN: Y
Endemic: N	Global Rank: G2	State Rank: S2

Scheer's cory cactus *Coryphantha scheeri var. uncinata*

Rocky hillsides (Carr 2015).

Federal Status:	State Status:	SGCN: Y
Endemic: N	Global Rank: G4TUQ	State Rank: S2

smooth bur-cucumber *Sicyos glaber*

Mesic canyons in the Chisos and Guadalupe Mountains (Carr 2015).

Federal Status:	State Status:	SGCN: Y
Endemic: N	Global Rank: G3	State Rank: S1

Sneed's pincushion cactus *Escobaria sneedii var. sneedii*

Xeric limestone outcrops on rocky, usually steep slopes in desert mountains, in the Chihuahuan Desert succulent shrublands or grasslands; flowering April-September (peak usually in April, sometimes opportunistically after summer rains; fruiting August - November

Federal Status: E	State Status: E	SGCN: Y
Endemic: N	Global Rank: G2G3QT2Q	State Rank: S2

stalked rhombopod *Cleomella longipes*

Locally common in sparingly vegetated sandy or alkaline soils and along margins of seasonal wetlands in the Trans-Pecos (Carr 2015).

Federal Status:	State Status:	SGCN: Y
Endemic: N	Global Rank: G3G4	State Rank: S3

Texas false saltgrass *Allolepis texana*

Sandy to silty soils of valley bottoms and river floodplains, not generally on alkaline or saline sites; Perennial; Flowering (May-) July-October depending on rainfall

Federal Status:	State Status:	SGCN: Y
Endemic: N	Global Rank: G2	State Rank: S1

Vasey's bitterweed *Hymenoxys vaseyi*

Occurs on xeric limestone cliffs and slopes at mid- to high elevations in desert shrublands.

Federal Status:	State Status:	SGCN: Y
Endemic: N	Global Rank: G2	State Rank: S1

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EL PASO COUNTY

PLANTS

Waterfall's milkvetch *Astragalus waterfallii*

Rocky limestone slopes; Perennial; Flowering Feb-May; Fruiting April- May

Federal Status:	State Status:	SGCN: Y
Endemic: N	Global Rank: G3?	State Rank: S3

Wheeler's spurge *Euphorbia geyeri var. wheeleriana*

Sparingly vegetated, loose eolian quartz sand on reddish sand dunes or coppice mounds; flowering and fruiting at least August-September, probably earlier and later, as well

Federal Status:	State Status:	SGCN: Y
Endemic: N	Global Rank: G5T2	State Rank: S1

Wright's fishhook cactus *Mammillaria wrightii var. wrightii*

Franklin Mountains (Carr 2015)

Federal Status:	State Status:	SGCN: Y
Endemic: N	Global Rank: G4T3	State Rank: SH

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TETRA TECH

July 15, 2026

WHAB@tpwd.texas.gov

Ms. Jessica Schmerler
Texas Parks and Wildlife Department
Environmental Review Biologist
Wildlife Habitat Assessment Program

RE: El Paso Natural Gas Company, LLC McCloud Lateral Project
El Paso County, Texas
Environmental Project Review Request

Dear Mrs. Schmerler:

Tetra Tech, Inc (Tetra Tech) has been contracted by El Paso Natural Gas Company, LLC (EPNG), a subsidiary of Kinder Morgan Inc (Kinder Morgan), to obtain information regarding the known presence of protected species within and in the vicinity of the McCloud Lateral Project (Project), which encompasses approximately 71.63 acres in El Paso County, Texas.

EPNG is proposing to construct the McCloud Lateral in El Paso County by constructing 5.8 miles miles of 16-inch diameter lateral natural gas pipeline (Project). All lands traversed by the Project are either private lands, owned by the City of El Paso, or its associated utility, and will utilize existing unpaved access roads for site access. The natural gas pipeline will be installed at a depth between 3 to 8 feet below ground surface. Ground disturbances will consist of general pipeline installation techniques (clearing, grading, trenching, backfilling, etc) and minor grading along access roads in rutted portions.

EPNG anticipates pursuing Project authorization through the Federal Energy Regulatory Commission (FERC) under the Natural Gas Act blanket certificate program, Part 157, Prior Notice of the FERC regulations for EPNG to modify their existing system. Subject to FERC approval of the Project and receipt of the necessary permits and authorizations, EPNG anticipates that construction of the Project will commence in October 2026 to meet a target in-service date of January 1, 2027.

For ease of review, a Google Earth file (.kmz) has been included with this letter via email.

Natural Resources

The Project area is in the Trans-Pecos region which is mountainous and arid (Texas Parks and Wildlife Department [TPWD] 2026a). The Project workspace and adjacent areas include herbaceous and shrub-scrub habitats with intermittent patches of bare ground. No National Wildlife Refuges, USFWS easements, National Wilderness Areas, designated special areas, sensitive state or local habitats, wildlife management areas, or other critical areas were identified within the Project Area (USGS 2024, TPWD 2026b). The Project area is in a rural setting surrounded predominantly by desert shrub-scrub and desert grassland. A review of USGS topographic maps revealed that elevation within the Project Area is approximately 4,040–4,060 feet above mean sea level, with topography that is moderately flat to gently rolling and the lowest points occurring along drainages and tributaries (USGS 2022).

A review of the NRCS soils data indicates most soils in the Project area are loams or fine sandy loams. The Project area does not contain any soils that are designated as Prime Farmland (USDA-NRCS 2026).

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www.tetratech.com

The potential for wetlands and waters subject to U.S. Army Corps of Engineers (USACE) jurisdiction within the Project Area was evaluated by reviewing National Wetlands Inventory (NWI) (USFWS 2026a) and National Hydrography Dataset (NHD) (USGS 2026) data. The NWI did not identify any features, and the NHD mapped one well point within the Project Area. Tetra Tech conducted field surveys on behalf of EPNG in April 2026 to confirm presence/absence of aquatic resources and to minimize impacts to delineated resources in accordance with USACE wetland-identification criteria (USACE 2008). Field surveys documented no freshwater emergent wetlands and identified two non-jurisdictional ephemeral washes within the Project Area. The Project Area contains no 303(d) or other impaired waterbodies (TCEQ 2026).

Protected Species

A list of federally protected species pursuant to the Endangered Species Act of 1973 (ESA) was obtained for the Project vicinity from the USFWS IPaC tool and the TPWD Rare, Threatened, and Endangered Species of Texas (RTEST) online database (TPWD 2026b and USFWS 2026b). It is noted that the IPaC tool allows the user to obtain results for a specific project area, while the TPWD RTEST data is provided at the county level, and therefore can return results not relevant to the direct Project area.

The IPaC identified one (1) federally listed endangered species, three (3) federally listed threatened species, and one (1) species proposed for federal listing as threatened (USFWS 2026b). According to the TPWD RTEST database, there are six (6) state listed species (two birds, two reptiles, one fish, and one plant) with potential to occur within El Paso County. No critical habitat was identified in the Project area by the IPaC tool (USFWS 2026b).

Table 1. Federally Listed Species with Potential to Occur in the Project Vicinity

Common Name	Scientific Name	Federal Status	Species Habitat	Likelihood of Occurrence
Birds				
Northern Aplomado falcon	*Falco femoralis septentrionalis*	Federally Endangered	Habitat is variable throughout the species range and includes palm and oak savannahs, various desert grassland associations, and open pine woodlands. Within these variations, the essential habitat elements appear to be open terrain with scattered trees, relatively low ground cover, an abundance of insects and small to medium-sized birds, and a supply of nest sites (USFWS 2026c).	Low

Common Name	Scientific Name	Federal Status	Species Habitat	Likelihood of Occurrence
Piping plover	*Charadrius melodus*	Federally Threatened	Migrant: Estuarine habitats include tidal flats/shore; Palustrine habitats include riparian wetlands; Terrestrial habitats include sand/dunes; Breeding occurs in sandy upper beaches. Found on the Great Plains on shorelines around small alkaline lakes; large reservoir beaches, river islands and adjacent sand pits, beaches on large lakes, and industrial pond shorelines (USFWS 2026d).	Unlikely
Rufa red knot	*Calidris canutus rufa*	Federally Threatened	Migrant: Estuarine habitats include tidal flats/shore and herbaceous wetlands; terrestrial habitats include sand/dunes and tundra. Primarily seacoasts on tidal flats and beaches, less frequently in marshes and flooded fields. On sandy or pebbly beaches, especially at river mouths; feeds on mudflats, loafs and sleeps in *Salinas* and salt-pond dikes. Nests on ground in barren or stony tundra and in well-vegetated moist tundra (USFWS 2026e).	Unlikely
Yellow-Billed Cuckoo	*Coccyzus americanus*	Federally Threatened	Yellow-billed Cuckoos use wooded habitat with dense cover and water nearby, including woodlands with low, scrubby, vegetation, overgrown orchards, abandoned farmland, and dense thickets along streams and marshes. In the Midwest, look for cuckoos in shrublands of mixed willow and dogwood, and in dense stands of small trees such as American elm. In the central and eastern U.S., Yellow-billed Cuckoos nest in oaks, beech, hawthorn, and ash. In the West, nests are often placed in willows along streams and rivers, with nearby cottonwoods serving as foraging sites (USFWS 2026f).	Unlikely

Common Name	Scientific Name	Federal Status	Species Habitat	Likelihood of Occurrence
Insects				
Monarch butterfly	*Danaus plexippus*	Federally Proposed Threatened	During the spring and summer months of their annual migration from central Mexico to their northern breeding grounds, Monarchs depend upon open fields and meadows that contain milkweeds (*Asclepias* spp.) and a variety of nectar-producing plant species. During the breeding season, Monarchs lay their eggs on their obligate milkweed host plant (primarily *Asclepias* spp.) – the sole food source of the Monarch caterpillar (UFSWS 2026g).	Unlikely

Table 2. State-Listed Species With Potential to Occur in the Project Vicinity

Common Name	Scientific Name	Protection Status	Species Habitat	Potential for Occurrence
Birds				
Southwestern willow flycatcher	*Empidonax traillii extimus*	State Endangered	Southwestern flycatchers require moist microclimatic and vegetative conditions. They breed strictly in dense riparian vegetation near water or saturated soil conditions (NPS 2016). They breed in much of the western and northern U.S., as well as in southern Canada. They winter along the east and west coasts of Central America in addition to the bottom half of Mexico's western coast. Nests are built low in a bush or small tree near water, on the outer edge of shrubs. Nests consists of open cups woven of weed stems, plant fibers, pine needles, shredded bark, and grass; lined with feathers, hair, rootlets, and fine materials (TPWD 2025a).	Unlikely
White-faced ibis	*Plegadis chihi*	State Threatened	Found in marshes, swamps, ponds, and rivers, mostly in freshwater habitats; nesting habitat is in marshes; in low trees, on the ground in bulrushes or reeds, or on floating mats (TPWD 2025a).	Unlikely

Common Name	Scientific Name	Protection Status	Species Habitat	Potential for Occurrence
Reptiles				
Mountain short-horned lizard	*Phrynosoma hernandesi*	State Threatened	Found only in higher elevations, in the forests of the Davis and Guadalupe mountains of West Texas (TPWD 2025g) Prefers high elevation grasslands and forested areas with open ground; soil may vary from rocky to sandy; burrows into soil or occupies rodent burrow when inactive. (TPWD 2025a).	Unlikely
Texas horned lizard	*Phrynosoma cornutum*	State Threatened	Found in open arid and semiarid plains to high mountains; usually in open, shrubby, or openly wooded areas with sparse vegetation at ground level with soils varying from rocky to sandy (TPWD 2025a).	Moderate to High
Fish				
Speckled chub	(*Macrhybopsis aestivalis*)	State Threatened	Found throughout the Rio Grande and lower Pecos River but occurs most frequently between the Río Conchos confluence and the Pecos River. Flowing water over coarse sand and fine gravel substrates in streams; typically found in raceways and runs (TPWD 2026b).	Unlikely
Plants				
Sneed's pincushion cactus	(*Escobaria sneedii var. sneedii*)	State Threatened	Xeric limestone outcrops on rocky, usually steep slopes in desert mountains, in the Chihuahuan Desert succulent shrublands or grasslands; flowering occurs April-September (peak usually in April, sometimes opportunistically after summer rains; fruiting occurs August - November (TPWD 2026b).	Unlikely

Recent TPWD WHAB Guidance

Tetra Tech, on behalf of EPNG, recently conferred with TPWD Wildlife Habitat Assessment Program (WHAB) regarding a similar Project (Permian West Expansion Project) in Texas with similar natural resources and protected species. EPGN intends to follow the same guidance, outlined below, for the McCloud Lateral Project:

General Construction Best Management Practices

- During construction of the proposed project, the developer will observe slow (25 miles per hour, or less) speed limits within the project site. Reduced speed limits will allow personnel to see wildlife in the vehicle path and avoid wildlife injury or death.

- Any open trenches or excavation areas will be covered overnight and inspected every morning to ensure no wildlife species have been trapped. Trenches left open for more than two daylight hours will be inspected for the presence of trapped wildlife prior to backfilling. If trenches and excavation areas cannot be backfilled the day of initial excavation, then escape ramps will be installed at least every 90 meters (approximately 295 feet). Escape ramps will be short lateral trenches or wooden planks sloping to the surface at an angle less than 45 degrees (1:1).
- Erosion and seed and mulch stabilization materials that avoid entanglement hazards to snakes and other wildlife species will be used. Because the mesh found in many erosion control blankets or mats pose an entanglement hazard to wildlife, the use of no-till drilling, hydromulching, or hydroseeding rather than erosion control blankets or mats will be used due to a reduced risk to wildlife. If erosion control blankets or mats will be used, the product will contain no netting or contain loosely woven, natural fiber netting in which the mesh design allows the threads to move, therefore allowing expansion of the mesh openings. Plastic mesh matting and hydromulch containing microplastics will be avoided.
- The developer will use sediment control fence to exclude wildlife from the construction area. The exclusion fence will be buried at least six inches and be at least 24 inches high. The exclusion fence will be maintained during active construction and only be removed after the construction is completed.

Rare and Protected Species

- Monarch butterfly (*Danaus plexippus*): To contribute to pollinator conservation efforts, EPNG may revegetate impacted areas with vegetation that provides habitat for monarch butterflies and other pollinator species. Species appropriate for the project area may be found by accessing the Lady Bird Johnson Wildflower Center Native Plants Database, working with TPWD biologists to develop an appropriate list of species, or utilizing resources found at the Monarch Watch website or the Xerces Society's Guidelines website.
- Texas horned lizard (*Phrynosoma cornutum*):
    - *Contractor Training for Protected Species* – The developer will provide training for project contractors prior to the construction of the proposed project. Wildlife training will consist of identification of Texas horned lizards and their primary food source (harvester ants), and the proper protocol to avoid impact if a Texas horned lizard or other rare or protected species is encountered. Contractors will avoid impacts to harvester ant mounds where feasible.
    - *Biological Monitor and Horned Lizard Encounters* – A biological monitor will be present during construction to identify and relocate Texas horned lizards or other state listed species if found. If the presence of a biological monitor during construction is not feasible, state listed species observed during construction will be allowed to safely leave the site on their own or be relocated to a nearby area with similar habitat that would not be disturbed during construction. Any translocations of reptiles will be the minimum distance possible no greater than one mile, preferably within 100 to 200 yards from the initial encounter location.
    - *Work During Cold Weather* – If construction activities take place during cold weather, construction personnel will stay observant of activities that may harm the Texas horned lizard, such as disruption of burrows. In cold weather, this species will use burrows or

pallets near the base of vegetation for shelter. Their slow metabolism in cold weather can reduce movements, restricting their ability to flee from danger.

Migratory Birds

- Native vegetation will be preserved as much as possible. Any vegetation clearing will be scheduled outside of the general bird nesting season of March 15th to September 15th. If clearing vegetation during the migratory bird nesting season is unavoidable, the area proposed for disturbance will be surveyed to ensure that no nests with eggs or young will be disturbed by construction. Nest surveys will be conducted no more than five days prior to clearing activities to maximize detection of active nests. A 100-foot radius buffer of vegetation will remain around active nests until the eggs have hatched and the young have fledged; however, the size of the buffer zone depends on various factors and can be coordinated with the local or regional USFWS office. Raptor nesting occurs in late winter through early spring; construction activities will be excluded from a minimum zone of 100 meters (approximately 328 feet) surrounding any raptor nest during the period of February 1st through July 15th.
- Western burrowing owl *(Athene cunicularia hypugaea*): Protected by the MBTA and may be present within the Project area (eBird 2026). The developer will avoid disturbance of mammal burrows or other suitable habitat during the construction of the proposed project. Project activities will be conducted outside the breeding season (March 15th to September 15th). Nesting areas and burrows will be protected from intensive disturbance during incubation. Excavation of an active nest burrow may destroy eggs, young owls, or even adults and would a violation of the MBTA. If nesting owls are found inhabiting the project area, disturbance will be avoided until the eggs have hatched and the young have fledged. TPWD also recommends advising contractors of the potential for this species to occur in the project area year-round, and to avoid harming this species and their nests/burrows if encountered.

Water Resources

- The proposed work will be scheduled when the ephemeral streams are dry. The developer will utilize grading techniques that preserve the existing topography of the site(s), to not disrupt natural drainage patterns. If preserving the existing topography is not feasible, these area(s) will be restored to the original contours once construction is complete in order to maintain hydrology.

As part of the environmental review and planning process, Tetra Tech respectfully requests the TPWD –WHAB's input in identifying known protected species within and in-the-vicinity-of the Project site. Tetra Tech also requests initial input regarding specific protected species concerns, species survey methodologies, or the need (and methodology) for species-specific surveys.

We appreciate your assistance and look forward to working with you regarding the Project. If you have any questions or require additional information, please contact me by e-mail at molly.french@tetratech.com or by phone at (817) 975-5273.

Sincerely,

Tetra Tech Inc.
Molly French
Environmental Scientist

Enclosures: KMZ Files (submitted as a separate file)

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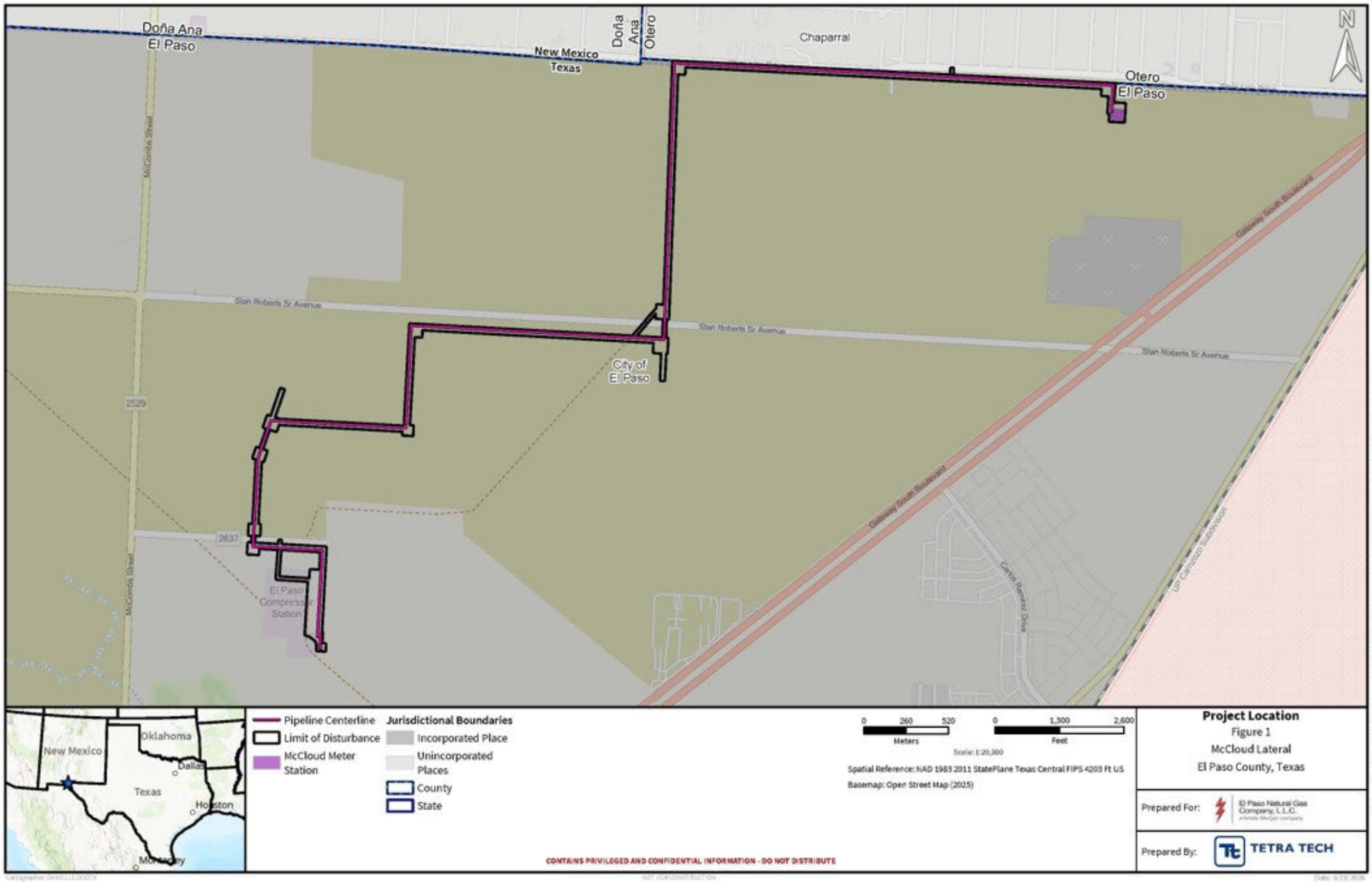
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Doña Ana
El Paso
New Mexico
Texas
Doña Ana
Otero
Chaparral
Otero
El Paso
N
McCombs Street
Stan Roberts Sr Avenue
Stan Roberts Sr Avenue
Stan Roberts Sr Avenue
City of
El Paso
Galloway South Boulevard
2529
2837
McCombs Street
El Paso
Compressor
Station
Galloway South Boulevard
Carlos Ramirez Drive
UP Carrizozo Subdivision
New Mexico
Oklahoma
Texas
Dallas
Houston
Monterrey
Pipeline Centerline
Limit of Disturbance
McCloud Meter
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Jurisdictional Boundaries
Incorporated Place
Unincorporated
Places
County
State
0 260 520
Meters
0 1,300 2,600
Feet
Scale: 1:20,000
Spatial Reference: NAD 1983 2011 StatePlane Texas Central FIPS 4203 Ft US
Basemap: Open Street Map (2025)
CONTAINS PRIVILEGED AND CONFIDENTIAL INFORMATION - DO NOT DISTRIBUTE
Project Location
Figure 1
McCloud Lateral
El Paso County, Texas
Prepared For:
El Paso Natural Gas
Company, L.L.C.
Prepared By:
TETRA TECH

From:	French, Molly
To:	Guthrie, Arbour - FPAC-NRCS, TX
Cc:	Donnelly, Mike
Subject:	RE: Request for Suitable Post-Construction Seed Mix
Date:	Friday, June 26, 2026 2:25:01 PM
Attachments:	image001.png image002.png image003.png image004.png image005.png image006.png image007.png image008.png

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Thank you very much, Arbour! I appreciate your assistance.

Molly French | Environmental Scientist | Tetra Tech
Pronouns: she/her/hers
Mobile **+1 (817) 975-5273** | molly.french@tetratech.com
Time Zone: Mountain Standard Time (UTC-7.00)
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From: Guthrie, Arbour - FPAC-NRCS, TX <arbour.guthrie@usda.gov>
Sent: Friday, June 26, 2026 9:45 AM
To: French, Molly <MOLLY.SEGGELINK@tetratech.com>
Cc: Donnelly, Mike <Mike.Donnelly@tetratech.com>
Subject: RE: Request for Suitable Post-Construction Seed Mix

⚠ **CAUTION:** This email originated from an external sender. Verify the source before opening links or attachments. ⚠

Hi Molly,

Thank you for the location of the construction site! It is all on Turney-Berino association soil and that is considered a gravelly soil type.

Below is a mix recommendation for gravelly soils with the amount required for the approximately 22.2 acres of disturbed land:

Gravelly Desert Grassland

Sideoats Grama – 20%

Sand Dropseed 20%

Green Sprangletop -20%

Plains Bristlegrass -15%

Whiplash Pappusgrass -15%

Sorghum Alum – 10%

Plant Species Used	Full Rate (lbs/Ac)	% of Full Rate Planned	Amount Required (lbs) (FullRate * % of Rate *	Total Amount Used (lbs)	% of Required Amount Used
Grama: Sideoats, El Reno & Haskell	4.5	20.0%	20.0		0.0%
Dropseed: Sand	1.0	20.0%	4.4		0.0%
Green sprangletop	1.7	20.0%	7.5		0.0%
Bristlegrass, plains	3.0	15.0%	10.0		0.0%
Pappasgrass: whiplash - Webb	8.0	15.0%	26.6		0.0%
Sorghum almum	12.0	10.0%	26.6		0.0%
	0.0				0.0%
	0.0				0.0%
	0.0				0.0%
	0.0				0.0%
	0.0				0.0%
	0.0				0.0%
	0.0				0.0%
	0.0				0.0%
	0.0				0.0%
		100.0%	95	TOTAL	0.0%

Measurements Acres : 22.2 (b) How : _____ Where : _____

And in case you need more here is the recommendation for the general El Paso County mix:

El Paso County

Grass Species	Pounds Pure Live Seed / Acre (PLS)
Sideoats Grama "El Reno"	0.68
Blue Grama	0.23
Plains Bristlegrass	0.45
Sand Dropseed	0.20
Green Sprangletop "Van Horn"	0.34
Millet Pearl "Hybrid"	1.00
Maximillian Sunflower	0.09
Engelmann Daisy "Eldorado"	0.60
Purple Prairie Clover "Kaneb"	0.12
Mexican Hat "VNS"	0.08
Total:	**3.79**

Hope this helps and if you have any other questions, please let me know.

Best,

Arbour Guthrie
District Conservationist
NRCS | Texas
El Paso Field Office

U.S. DEPARTMENT OF AGRICULTURE
Natural Resources Conservation Service
11940 Don Haskins Dr, Suite E-3, El Paso, TX 79936
p: (915) 261-1452 | c: (915) 312-1522

From: French, Molly <MOLLY.SEGGELINK@tetratech.com>

Sent: Friday, June 26, 2026 8:42 AM
To: Guthrie, Arbour - FPAC-NRCS, TX <arbour.guthrie@usda.gov>
Cc: Donnelly, Mike <Mike.Donnelly@tetratech.com>
Subject: RE: Request for Suitable Post-Construction Seed Mix

Thank you, Arbour.

Please find attached the general right-of-way for the project and please let me know if I can provide anything else.

Thank you,

Molly French | Environmental Scientist | Tetra Tech
Pronouns: she/her/hers
Mobile **+1 (817) 975-5273** | molly.french@tetratech.com
Time Zone: Mountain Standard Time (UTC-7.00)
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From: Guthrie, Arbour - FPAC-NRCS, TX <arbour.guthrie@usda.gov>
Sent: Thursday, June 25, 2026 11:35 AM
To: French, Molly <MOLLY.SEGGELINK@tetratech.com>
Cc: Donnelly, Mike <Mike.Donnelly@tetratech.com>
Subject: RE: Request for Suitable Post-Construction Seed Mix

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Hi Molly,

I am happy to help. Could you send me the location of the construction site so I can find the soil type? Or you can send me the soil map so I can cross reference the eco-site for grass recommendations.

Best,

Arbour Guthrie
District Conservationist
NRCS | Texas
El Paso Field Office

USDA U.S. DEPARTMENT OF AGRICULTURE
Natural Resources Conservation Service
11940 Don Haskins Dr, Suite E-3, El Paso, TX 79936
p: (915) 261-1452 | c: (915) 312-1522

From: French, Molly <MOLLY.SEGGELINK@tetratech.com>
Sent: Thursday, June 25, 2026 11:21 AM
To: Guthrie, Arbour - FPAC-NRCS, TX <arbour.guthrie@usda.gov>
Cc: Donnelly, Mike <Mike.Donnelly@tetratech.com>
Subject: Request for Suitable Post-Construction Seed Mix

Hello,

I am assisting with a pipeline project in El Paso County, northeast of Mesquite Hills. As part of the project, we are requesting a suitable seed mix to use for revegetation after ground disturbance. Let me know if you need other information to provide the seed mix. As we are on a tight schedule for this project, a timely response is most appreciated. Thank you very much!

Sincerely,

Molly French | Environmental Scientist | Tetra Tech
Pronouns: she/her/hers
Mobile **+1 (817) 975-5273** | molly.french@tetratech.com
Time Zone: Mountain Standard Time (UTC-7.00)
Tetra Tech | Leading with Science® | 301 Ellicott Street | Buffalo, NY 14203 | tetratech.com
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Texas Historical Commission

Correspondence

This Correspondence sent to Jason.Espino@tetratech.com on 06-04-2026

TEXAS HISTORICAL COMMISSION
real places telling real stories

Re: Project Review under Section 106 of the National Historic Preservation Act
THC Tracking #202609757
Date: 06/04/2026
McCloud Lateral Pipeline Project
State Line Dr., Stan Roberts Sr Ave., McCombs St.
El Paso,TX 79934

Description: El Paso Natural Gas Company, LLC, proposes construction of the McCloud Lateral Pipeline from EPNGâ€™s existing El Paso Compressor Station heading NE terminating near McCloud Generation facility.

Dear Jason Espino:
Thank you for your submittal regarding the above-referenced project. This response represents the comments of the State Historic Preservation Officer, the Executive Director of the Texas Historical Commission (THC), pursuant to review under Section 106 of the National Historic Preservation Act.

The review staff, led by Caitlin Brashear and Drew Sitters, reviewed your submission and has the following comments:

Above-Ground Resources

- No historic properties are present or affected by the project as proposed. However, if historic properties are discovered or unanticipated effects on historic properties are found, work should cease in the immediate area; work can continue where no historic properties are present. Please contact the THC's History Programs Division at 512-463-5853 to consult on further actions that may be necessary to protect historic properties.

Archeological Resources

- No historic properties affected. However, if cultural materials are encountered during construction or disturbance activities, work should cease in the immediate area; work can continue where no cultural materials are present. Please contact the THC's Archeology Division at 512-463-6096 to consult on further actions that may be necessary to protect the cultural remains.
- THC/SHPO concurs with information provided.
- This draft report is acceptable. To facilitate review and make project information and final reports available through the Texas Archeological Sites Atlas, we appreciate submission of tagged pdf copies of the final report including one restricted version with all site location information (if applicable), and one public version with all site location information redacted; an online abstract form submitted via the abstract tab on eTRAC; and survey area shapefiles submitted via the shapefile tab on eTRAC. For questions on how to submit these please visit our video training series at: https://www.youtube.com/playlist?list=PLONbbv2pt4cog5t6mCqZVaEAx3d0MkgQC Please note that these steps are required for projects conducted under a Texas Antiquities Permit.

We look forward to further consultation with your office and hope to maintain a partnership that will foster effective historic preservation. Thank you for your cooperation in this review process, and for your efforts to preserve the irreplaceable heritage of Texas. If the project changes, or if new historic properties are found, please

contact the review staff. If you have any questions concerning our review or if we can be of further assistance, please email the following reviewers: caitlin.brashear@thc.texas.gov, drew.sitters@thc.texas.gov.

This response has been sent through the electronic THC review and compliance system (eTRAC). Submitting your project via eTRAC eliminates mailing delays and allows you to check the status of the review, receive an electronic response, and generate reports on your submissions. For more information, visit http://thc.texas.gov/etrac-system.

Sincerely,



for Joseph Bell, State Historic Preservation Officer
Executive Director, Texas Historical Commission

Please do not respond to this email.

New Mexico SHPO

Correspondence

HPD Log #128073
RECEIVED: May 8, 2026

TETRA TECH

May 08, 2026

Michelle Ensey
SHPO & Executive Director
New Mexico Department of Cultural Affairs
Historic Preservation Division
407 Galisteo Street, Suite 236
Santa Fe, NM 87501

Subject: McCloud Lateral Pipeline Project
Otero County, New Mexico

Dear Ms. Ensey,

El Paso Natural Gas Company, LLC (EPNG), a Kinder Morgan Company, proposes the construction of the McCloud Lateral Pipeline in El Paso County, Texas along the Texas and New Mexico border. EPNG also proposes the use and continued maintenance of three existing access roads at various points of the Project area, the northernmost of which is located in Township 26S Range 6E, Section 32, Otero County, New Mexico (Project) (Attachment I). All facilities fall under the jurisdiction of the Federal Energy Regulatory Commission (FERC). EPNG anticipates pursuing Project authorization through FERC under the Natural Gas Act blanket certificate program, Part 157, Prior Notice of the FERC regulations for EPNG to modify their existing system. As the Project requires federal authorization from the FERC, the Project must also comply with Section 106 of the National Historic Preservation Act (NHPA) (54 U.S. Code 4300101 *et seq.*) and its implementing regulations (36 Code of Federal Regulations 800).

The limit of disturbance (LOD) within the state of New Mexico is approximately 0.07 hectares (ha; 0.17 acres [ac]) and consists of an existing graded and graveled access road approximately 30 feet (ft) wide that extends 120 feet into New Mexico. Most of that access road, the other two access roads, and an associated substation are in Texas. The Project is located within the Tularosa Valley Watershed, and the nearest permanent water source is the Rio Grande, approximately 16.5 miles (mi) west of the LOD. Currently, the Project consists primarily of an existing access road from State Line Drive just south of a large residential area (Attachment II).

The Project intersects the New Mexico and Texas border, with the northern terminus situated approximately 2 mi southwest of the community of Newman, Otero County, NM before heading south into El Paso County, TX. USGS topographic maps indicate that the Project area is primarily located within historically ranched pasturelands and areas disturbed by roadway installation. (USGS, 1940, 1943, 1955, 1958) A review of New Mexico Cultural Resource Information System maintained by the Archaeological Records Management Bureau indicated that there are no previously conducted surveys, archaeological resources, or above-ground structures within the Project or 1,000 m of the Project.

EPNG and Kinder-Morgan are requesting a review of the Project under Section 106 of the National Historic Preservation Act and the *Kinder Morgan Inc. and Its Operating Companies 2023 New Mexico Cultural Review Procedures for Projects with Federal Actions* (Log #118518) under Section 2 part C, which states "Construction within existing facilities, where land-disturbing activities will be limited to previously disturbed

areas or to areas which have been previously archaeologically surveyed, with no archaeological resources found near the construction site." The Project is within existing previously disturbed areas and has little likelihood of affecting significant cultural resources. On behalf of EPNG, Tetra Tech is requesting a letter approving use of the access road to document consultation for with your office.

To assist in your review, project location map and representative photographs have been attached to this document.

If you have any questions or require further information, please do not hesitate to contact me at 602.363.7451 or chris.north2@tetratech.com.

Sincerely,

Chris North
Principal Investigator
Tetra Tech, Inc.

Attachments:

I Project Location Maps
II Representative Photographs

NMSHPO concurs with finding of No Effect for the undertaking.

for the NM State Historic Preservation Officer

Tribal

Correspondence

TETRA TECH

June 23, 2026

VIA Email

Durrell Cooper
Chairman
Apache Tribe of Oklahoma
511 East Colorado Street
Anadarko, OK 73005

RE: **El Paso Natural Gas Company, LLC**
Phase I Archeological Survey of the McCloud Lateral Pipeline Project
El Paso County, Texas

Dear Mr. Cooper,

El Paso Natural Gas Company, LLC (EPNG) invites the Apache Tribe of Oklahoma to review and comment on EPNG's McCloud Lateral Pipeline Project (Project) in El Paso County, Texas. Construction will consist of installing approximately 9.1 kilometers (km; 5.7 miles[mi]), 40.6 centimeter (cm; 16-inch [in]), diameter lateral natural gas pipeline encompassing an area of 85.3 hectares (ha; 210.7 acres [ac]) that will originate from EPNG's existing El Paso Compressor Station on its South Mainline system and head north-east terminating at a new delivery meter station near the McCloud Generation facility. At the time of field survey, EPNG was evaluating both a preferred alternative alignment between the existing compressor station and Stan Roberts Avenue. Both alignments were included in the Area of Potential Effect (APE). EPNG also proposes the use and continued maintenance of four existing access roads at various points of the Project area. All facilities fall under the jurisdiction of the Federal Environmental Regulatory Commission (FERC). EPNG anticipates pursuing Project authorization through FERC under the Natural Gas Act blanket certificate program, Part 157, Prior Notice of the FERC regulations for EPNG to modify their existing system. As the Project requires federal authorization from the FERC, the Project must also comply with Section 106 of the National Historic Preservation Act (NHPA) (54 U.S. Code 4300101 et seq.) and its implementing regulations (36 Code of Federal Regulations 800).

Cultural Resources Survey. Under Contract to EPNG, Tetra Tech, Inc. (Tetra Tech) has conducted a Phase I Archaeological Investigation to determine the presence or absence of potentially significant cultural resources prior to possible impacts. Tetra Tech's investigation included background research and review and site files search using the Texas Archeological Sites Atlas of the Texas Historical Commission (THC) and field investigation to identify new cultural resources and previously recorded historic properties, archaeological sites, and previously surveyed areas within the proposed Project area described above. Geological Survey (USGS) TopoView collection, and Historical Aerial photographs from the Nationwide Environmental Title Research (NETR) online were examined to identify historical structures or features mapped within or near the Project area. Tetra Tech's background research identified no previously recorded archaeological sites within the Project's Area of Potential Effect (APE). According to the THC Atlas (2025), no cemeteries, NRHP properties, RTHL properties, or SALs are recorded within 1.0 km (0.6 mi) of the Project area. Eight previously recorded archaeological sites are located within 1.0 km (0.6 mi) of the Project

area, including an NRHP eligible early 20th century farmstead (41EP5741) associated with Price's Dairy. The Project area was also overlaid on the Texas Department of Transportation's (TxDOT) Hybrid Potential Archeological Liability (HPALM) map data for El Paso County, Texas. The HPALM results indicated that the Project area is in an area of moderate potential for preservation of archeological sites with reasonable integrity in shallow contexts and moderate to high potential within deep contexts throughout the Project area. Background research conducted on March 25, 2026, for an initial alignment identified that the Project would intersect a National Register of Historic Places (NRHP)-eligible historic property (41EP5741). To avoid adverse effects, relocation of the north–south alignment was recommended, shifting the alignment farther west, outside the site boundary, and near the western edge of the existing compressor station. Consequently, EPNG developed alternative alignments on April 6, 2026, designed to avoid impacts to site 41EP5741. No previously recorded cultural resources were identified within the revised Project alignments.

The archeological survey of the 85.3 ha (210.7 ac) Project area was conducted between April 13 and April 16, 2026, by Tetra Tech cultural staff. All proposed Project impacts were thoroughly assessed to document any potential cultural resources prior to Project authorization and construction. A total of 121 shovel test pits (STPs) were conducted within the Project area. Ongoing, unrelated construction projects in the Project area such as Project Seafox in the northeast and the El Paso Northeast Highway in the south have disturbed approximately 18.5 ha (45.8 ac), accounting for 14 percent of the Project. The southern 1.0 km (0.6 mi) of the route is located with the boundary of the existing El Paso Compressor Station.

One pre-contact isolated find (IF) (IF-JE-001) was newly identified during survey but given the absence of temporally diagnostic artifacts and lack of artifact diversity, the site is unlikely to contribute any new or unique data. Given the absence of temporally diagnostic artifacts and lack of artifact diversity, the IF is unlikely to contribute any new or unique data. The IF was located within a gravel wash concentration likely caused by channeling in the area and denotes a secondary depositional environment. Due to ongoing construction projects in the area, there is no known relic collecting in the area and it has a low likelihood of vandalism. Therefore, IF-JE-001 is recommended not eligible for listing in the NRHP or SAL. No additional cultural material was identified in the Project area. The overall results indicate that the Project area has limited potential for the presence of archeological resources. Based on these findings, Tetra Tech recommends a finding of no historic properties affected (per 36 CFR 800.4(d)(1)) for the McCloud Lateral Pipeline Project, and no further work was recommended. On June 4, 2026, Joseph Bell of the THC issued a letter to Jason Espino of Tetra Tech in concurrence with the recommendation that no archaeological or above-ground historic properties will be affected by the Project.

Using the Office of Environment and Energy (OEE) online Tribal Directory Assessment Tool (TDAT), Tetra Tech Identified that the Project is within the Apache Tribe of Oklahoma's area of interest. TDAT provides tribal contact information to assist users with initiating Section 106 consultation under the National Historic Preservation Act (54 U.S.C. § 300101 et seq.). We respectfully request your assistance with the identification of any known traditional cultural properties that may be affected by the proposed Project. Although we respectfully request the Apache Tribe of Oklahoma to provide comments to EPNG regarding potential impacts on traditional cultural properties or the survey content, please note that the FERC is responsible for government-to-government consultations with Native American tribes.

We greatly appreciate your assistance with this request. If you have any further questions or require additional information, please contact me by email at bob.hanley@tetratech.com or by phone at 716-308-2560.

Respectfully submitted,



Robert Hanley Tetra Tech, Inc.
Senior Archaeologist

cc: Megan Mater, EPNG
Mike Donnelly, Tetra Tech

TETRA TECH

June 23, 2026

VIA Email

Martina Minthorn
THPO
Commanche Nation of Oklahoma
6 SW
Lawton, OK 73502

RE: **El Paso Natural Gas Company, LLC**
Phase I Archeological Survey of the McCloud Lateral Pipeline Project
El Paso County, Texas

Dear Ms. Minthorn,

El Paso Natural Gas Company, LLC (EPNG) invites the Commanche Nation of Oklahoma to review and comment on EPNG's McCloud Lateral Pipeline Project (Project) in El Paso County, Texas. Construction will consist of installing approximately 9.1 kilometers (km; 5.7 miles[mi]), 40.6 centimeter (cm; 16-inch [in]), diameter lateral natural gas pipeline encompassing an area of 85.3 hectares (ha; 210.7 acres [ac]) that will originate from EPNG's existing El Paso Compressor Station on its South Mainline system and head north-east terminating at a new delivery meter station near the McCloud Generation facility. At the time of field survey, EPNG was evaluating both a preferred alternative alignment between the existing compressor station and Stan Roberts Avenue. Both alignments were included in the Area of Potential Effect (APE). EPNG also proposes the use and continued maintenance of four existing access roads at various points of the Project area. All facilities fall under the jurisdiction of the Federal Environmental Regulatory Commission (FERC). EPNG anticipates pursuing Project authorization through FERC under the Natural Gas Act blanket certificate program, Part 157, Prior Notice of the FERC regulations for EPNG to modify their existing system. As the Project requires federal authorization from the FERC, the Project must also comply with Section 106 of the National Historic Preservation Act (NHPA) (54 U.S. Code 4300101 et seq.) and its implementing regulations (36 Code of Federal Regulations 800).

Cultural Resources Survey. Under Contract to EPNG, Tetra Tech, Inc. (Tetra Tech) has conducted a Phase I Archaeological Investigation to determine the presence or absence of potentially significant cultural resources prior to possible impacts. Tetra Tech's investigation included background research and review and site files search using the Texas Archeological Sites Atlas of the Texas Historical Commission (THC) and field investigation to identify new cultural resources and previously recorded historic properties, archaeological sites, and previously surveyed areas within the proposed Project area described above. Geological Survey (USGS) TopoView collection, and Historical Aerial photographs from the Nationwide Environmental Title Research (NETR) online were examined to identify historical structures or features mapped within or near the Project area. Tetra Tech's background research identified no previously recorded archaeological sites within the Project's Area of Potential Effect (APE). According to the THC Atlas (2025), no cemeteries, NRHP properties, RTHL properties, or SALs are recorded within 1.0 km (0.6 mi) of the Project area. Eight previously recorded archaeological sites are located within 1.0 km (0.6 mi) of the Project

area, including an NRHP eligible early 20th century farmstead (41EP5741) associated with Price's Dairy. The Project area was also overlaid on the Texas Department of Transportation's (TxDOT) Hybrid Potential Archeological Liability (HPALM) map data for El Paso County, Texas. The HPALM results indicated that the Project area is in an area of moderate potential for preservation of archeological sites with reasonable integrity in shallow contexts and moderate to high potential within deep contexts throughout the Project area. Background research conducted on March 25, 2026, for an initial alignment identified that the Project would intersect a National Register of Historic Places (NRHP)-eligible historic property (41EP5741). To avoid adverse effects, relocation of the north–south alignment was recommended, shifting the alignment farther west, outside the site boundary, and near the western edge of the existing compressor station. Consequently, EPNG developed alternative alignments on April 6, 2026, designed to avoid impacts to site 41EP5741. No previously recorded cultural resources were identified within the revised Project alignments.

The archeological survey of the 85.3 ha (210.7 ac) Project area was conducted between April 13 and April 16, 2026, by Tetra Tech cultural staff. All proposed Project impacts were thoroughly assessed to document any potential cultural resources prior to Project authorization and construction. A total of 121 shovel test pits (STPs) were conducted within the Project area. Ongoing, unrelated construction projects in the Project area such as Project Seafox in the northeast and the El Paso Northeast Highway in the south have disturbed approximately 18.5 ha (45.8 ac), accounting for 14 percent of the Project. The southern 1.0 km (0.6 mi) of the route is located with the boundary of the existing El Paso Compressor Station.

One pre-contact isolated find (IF) (IF-JE-001) was newly identified during survey but given the absence of temporally diagnostic artifacts and lack of artifact diversity, the site is unlikely to contribute any new or unique data. Given the absence of temporally diagnostic artifacts and lack of artifact diversity, the IF is unlikely to contribute any new or unique data. The IF was located within a gravel wash concentration likely caused by channeling in the area and denotes a secondary depositional environment. Due to ongoing construction projects in the area, there is no known relic collecting in the area and it has a low likelihood of vandalism. Therefore, IF-JE-001 is recommended not eligible for listing in the NRHP or SAL. No additional cultural material was identified in the Project area. The overall results indicate that the Project area has limited potential for the presence of archeological resources. Based on these findings, Tetra Tech recommends a finding of no historic properties affected (per 36 CFR 800.4(d)(1)) for the McCloud Lateral Pipeline Project, and no further work was recommended. On June 4, 2026, Joseph Bell of the THC issued a letter to Jason Espino of Tetra Tech in concurrence with the recommendation that no archaeological or above-ground historic properties will be affected by the Project.

Using the Office of Environment and Energy (OEE) online Tribal Directory Assessment Tool (TDAT), Tetra Tech Identified that the Project is within the Commanche Nation of Oklahoma's area of interest. TDAT provides tribal contact information to assist users with initiating Section 106 consultation under the National Historic Preservation Act (54 U.S.C. § 300101 et seq.). We respectfully request your assistance with the identification of any known traditional cultural properties that may be affected by the proposed Project. Although we respectfully request the Commanche Nation of Oklahoma to provide comments to EPNG regarding potential impacts on traditional cultural properties or the survey content, please note that the FERC is responsible for government-to-government consultations with Native American tribes.

We greatly appreciate your assistance with this request. If you have any further questions or require additional information, please contact me by email at bob.hanley@tetratech.com or by phone at 716-308-2560.

Respectfully submitted,



Robert Hanley Tetra Tech, Inc.
Senior Archaeologist

cc: Megan Mater, EPNG
Mike Donnelly, Tetra Tech

TETRA TECH

June 23, 2026

VIA Email

Jennifer Heminokeky
Chairwoman
Fort Sill Apache Tribe of Oklahoma
43187 Us Highway 281
Apache, OK 73006

RE: **El Paso Natural Gas Company, LLC**
Phase I Archeological Survey of the McCloud Lateral Pipeline Project
El Paso County, Texas

Dear Ms. Heminokeky,

El Paso Natural Gas Company, LLC (EPNG) invites the Fort Sill Apache Tribe of Oklahoma to review and comment on EPNG's McCloud Lateral Pipeline Project (Project) in El Paso County, Texas. Construction will consist of installing approximately 9.1 kilometers (km; 5.7 miles[mi]), 40.6 centimeter (cm; 16-inch [in]), diameter lateral natural gas pipeline encompassing an area of 85.3 hectares (ha; 210.7 acres [ac]) that will originate from EPNG's existing El Paso Compressor Station on its South Mainline system and head north-east terminating at a new delivery meter station near the McCloud Generation facility. At the time of field survey, EPNG was evaluating both a preferred alternative alignment between the existing compressor station and Stan Roberts Avenue. Both alignments were included in the Area of Potential Effect (APE). EPNG also proposes the use and continued maintenance of four existing access roads at various points of the Project area. All facilities fall under the jurisdiction of the Federal Environmental Regulatory Commission (FERC). EPNG anticipates pursuing Project authorization through FERC under the Natural Gas Act blanket certificate program, Part 157, Prior Notice of the FERC regulations for EPNG to modify their existing system. As the Project requires federal authorization from the FERC, the Project must also comply with Section 106 of the National Historic Preservation Act (NHPA) (54 U.S. Code 4300101 et seq.) and its implementing regulations (36 Code of Federal Regulations 800).

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area, including an NRHP eligible early 20th century farmstead (41EP5741) associated with Price's Dairy. The Project area was also overlaid on the Texas Department of Transportation's (TxDOT) Hybrid Potential Archeological Liability (HPALM) map data for El Paso County, Texas. The HPALM results indicated that the Project area is in an area of moderate potential for preservation of archeological sites with reasonable integrity in shallow contexts and moderate to high potential within deep contexts throughout the Project area. Background research conducted on March 25, 2026, for an initial alignment identified that the Project would intersect a National Register of Historic Places (NRHP)-eligible historic property (41EP5741). To avoid adverse effects, relocation of the north–south alignment was recommended, shifting the alignment farther west, outside the site boundary, and near the western edge of the existing compressor station. Consequently, EPNG developed alternative alignments on April 6, 2026, designed to avoid impacts to site 41EP5741. No previously recorded cultural resources were identified within the revised Project alignments.

The archeological survey of the 85.3 ha (210.7 ac) Project area was conducted between April 13 and April 16, 2026, by Tetra Tech cultural staff. All proposed Project impacts were thoroughly assessed to document any potential cultural resources prior to Project authorization and construction. A total of 121 shovel test pits (STPs) were conducted within the Project area. Ongoing, unrelated construction projects in the Project area such as Project Seafox in the northeast and the El Paso Northeast Highway in the south have disturbed approximately 18.5 ha (45.8 ac), accounting for 14 percent of the Project. The southern 1.0 km (0.6 mi) of the route is located with the boundary of the existing El Paso Compressor Station.

One pre-contact isolated find (IF) (IF-JE-001) was newly identified during survey but given the absence of temporally diagnostic artifacts and lack of artifact diversity, the site is unlikely to contribute any new or unique data. Given the absence of temporally diagnostic artifacts and lack of artifact diversity, the IF is unlikely to contribute any new or unique data. The IF was located within a gravel wash concentration likely caused by channeling in the area and denotes a secondary depositional environment. Due to ongoing construction projects in the area, there is no known relic collecting in the area and it has a low likelihood of vandalism. Therefore, IF-JE-001 is recommended not eligible for listing in the NRHP or SAL. No additional cultural material was identified in the Project area. The overall results indicate that the Project area has limited potential for the presence of archeological resources. Based on these findings, Tetra Tech recommends a finding of no historic properties affected (per 36 CFR 800.4(d)(1)) for the McCloud Lateral Pipeline Project, and no further work was recommended. On June 4, 2026, Joseph Bell of the THC issued a letter to Jason Espino of Tetra Tech in concurrence with the recommendation that no archaeological or above-ground historic properties will be affected by the Project.

Using the Office of Environment and Energy (OEE) online Tribal Directory Assessment Tool (TDAT), Tetra Tech Identified that the Project is within the Fort Sill Apache Tribe of Oklahoma's area of interest. TDAT provides tribal contact information to assist users with initiating Section 106 consultation under the National Historic Preservation Act (54 U.S.C. § 300101 et seq.). We respectfully request your assistance with the identification of any known traditional cultural properties that may be affected by the proposed Project. Although we respectfully request the Fort Sill Apache Tribe of Oklahoma to provide comments to EPNG regarding potential impacts on traditional cultural properties or the survey content, please note that the FERC is responsible for government-to-government consultations with Native American tribes.

We greatly appreciate your assistance with this request. If you have any further questions or require additional information, please contact me by email at bob.hanley@tetratech.com or by phone at 716-308-2560.

Respectfully submitted,



Robert Hanley Tetra Tech, Inc.
Senior Archaeologist

cc: Megan Mater, EPNG
Mike Donnelly, Tetra Tech

TETRA TECH

June 23, 2026

VIA Email

Holly Houghten
THPO
Mescalero Apache Tribe of the Mescalero Reservation, New Mexico
P.O. Box 227
Mescalero, NM 88340

RE: **El Paso Natural Gas Company, LLC**
Phase I Archeological Survey of the McCloud Lateral Pipeline Project
El Paso County, Texas

Dear Ms. Houghton,

El Paso Natural Gas Company, LLC (EPNG) invites the Mescalero Apache Tribe of the Mescalero Reservation, New Mexico to review and comment on EPNG's McCloud Lateral Pipeline Project (Project) in El Paso County, Texas. Construction will consist of installing approximately 9.1 kilometers (km; 5.7 miles[mi]), 40.6 centimeter (cm; 16-inch [in]), diameter lateral natural gas pipeline encompassing an area of 85.3 hectares (ha; 210.7 acres [ac]) that will originate from EPNG's existing El Paso Compressor Station on its South Mainline system and head north-east terminating at a new delivery meter station near the McCloud Generation facility. At the time of field survey, EPNG was evaluating both a preferred alternative alignment between the existing compressor station and Stan Roberts Avenue. Both alignments were included in the Area of Potential Effect (APE). EPNG also proposes the use and continued maintenance of four existing access roads at various points of the Project area. All facilities fall under the jurisdiction of the Federal Environmental Regulatory Commission (FERC). EPNG anticipates pursuing Project authorization through FERC under the Natural Gas Act blanket certificate program, Part 157, Prior Notice of the FERC regulations for EPNG to modify their existing system. As the Project requires federal authorization from the FERC, the Project must also comply with Section 106 of the National Historic Preservation Act (NHPA) (54 U.S. Code 4300101 et seq.) and its implementing regulations (36 Code of Federal Regulations 800).

Cultural Resources Survey. Under Contract to EPNG, Tetra Tech, Inc. (Tetra Tech) has conducted a Phase I Archaeological Investigation to determine the presence or absence of potentially significant cultural resources prior to possible impacts. Tetra Tech's investigation included background research and review and site files search using the Texas Archeological Sites Atlas of the Texas Historical Commission (THC) and field investigation to identify new cultural resources and previously recorded historic properties, archaeological sites, and previously surveyed areas within the proposed Project area described above. Geological Survey (USGS) TopoView collection, and Historical Aerial photographs from the Nationwide Environmental Title Research (NETR) online were examined to identify historical structures or features mapped within or near the Project area. Tetra Tech's background research identified no previously recorded archaeological sites within the Project's Area of Potential Effect (APE). According to the THC Atlas (2025), no cemeteries, NRHP properties, RTHL properties, or SALs are recorded within 1.0 km (0.6 mi) of the Project area. Eight previously recorded archaeological sites are located within 1.0 km (0.6 mi) of the Project

area, including an NRHP eligible early 20th century farmstead (41EP5741) associated with Price's Dairy. The Project area was also overlaid on the Texas Department of Transportation's (TxDOT) Hybrid Potential Archeological Liability (HPALM) map data for El Paso County, Texas. The HPALM results indicated that the Project area is in an area of moderate potential for preservation of archeological sites with reasonable integrity in shallow contexts and moderate to high potential within deep contexts throughout the Project area. Background research conducted on March 25, 2026, for an initial alignment identified that the Project would intersect a National Register of Historic Places (NRHP)-eligible historic property (41EP5741). To avoid adverse effects, relocation of the north–south alignment was recommended, shifting the alignment farther west, outside the site boundary, and near the western edge of the existing compressor station. Consequently, EPNG developed alternative alignments on April 6, 2026, designed to avoid impacts to site 41EP5741. No previously recorded cultural resources were identified within the revised Project alignments.

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One pre-contact isolated find (IF) (IF-JE-001) was newly identified during survey but given the absence of temporally diagnostic artifacts and lack of artifact diversity, the site is unlikely to contribute any new or unique data. Given the absence of temporally diagnostic artifacts and lack of artifact diversity, the IF is unlikely to contribute any new or unique data. The IF was located within a gravel wash concentration likely caused by channeling in the area and denotes a secondary depositional environment. Due to ongoing construction projects in the area, there is no known relic collecting in the area and it has a low likelihood of vandalism. Therefore, IF-JE-001 is recommended not eligible for listing in the NRHP or SAL. No additional cultural material was identified in the Project area. The overall results indicate that the Project area has limited potential for the presence of archeological resources. Based on these findings, Tetra Tech recommends a finding of no historic properties affected (per 36 CFR 800.4(d)(1)) for the McCloud Lateral Pipeline Project, and no further work was recommended. On June 4, 2026, Joseph Bell of the THC issued a letter to Jason Espino of Tetra Tech in concurrence with the recommendation that no archaeological or above-ground historic properties will be affected by the Project.

Using the Office of Environment and Energy (OEE) online Tribal Directory Assessment Tool (TDAT), Tetra Tech Identified that the Project is within the Mescalero Apache Tribe of the Mescalero Reservation, New Mexico's area of interest. TDAT provides tribal contact information to assist users with initiating Section 106 consultation under the National Historic Preservation Act (54 U.S.C. § 300101 et seq.). We respectfully request your assistance with the identification of any known traditional cultural properties that may be affected by the proposed Project. Although we respectfully request the Mescalero Apache Tribe of the Mescalero Reservation, New Mexico to provide comments to EPNG regarding potential impacts on traditional cultural properties or the survey content, please note that the FERC is responsible for government-to-government consultations with Native American tribes.

We greatly appreciate your assistance with this request. If you have any further questions or require additional information, please contact me by email at bob.hanley@tetratech.com or by phone at 716-308-2560.

Respectfully submitted,



Robert Hanley Tetra Tech, Inc.
Senior Archaeologist

cc: Megan Mater, EPNG
Mike Donnelly, Tetra Tech

TETRA TECH

June 23, 2026

VIA Email

Lauren Norman-Brown
THPO
Tonkawa Tribe of Indians of Oklahoma
1 Rush Buffalo Road
Tonkawa, OK 74653

RE: **El Paso Natural Gas Company, LLC**
Phase I Archeological Survey of the McCloud Lateral Pipeline Project
El Paso County, Texas

Dear Ms. Norman Brown,

El Paso Natural Gas Company, LLC (EPNG) invites the Tonkawa Tribe of Indians of Oklahoma to review and comment on EPNG's McCloud Lateral Pipeline Project (Project) in El Paso County, Texas. Construction will consist of installing approximately 9.1 kilometers (km; 5.7 miles[mi]), 40.6 centimeter (cm; 16-inch [in]), diameter lateral natural gas pipeline encompassing an area of 85.3 hectares (ha; 210.7 acres [ac]) that will originate from EPNG's existing El Paso Compressor Station on its South Mainline system and head north-east terminating at a new delivery meter station near the McCloud Generation facility. At the time of field survey, EPNG was evaluating both a preferred alternative alignment between the existing compressor station and Stan Roberts Avenue. Both alignments were included in the Area of Potential Effect (APE). EPNG also proposes the use and continued maintenance of four existing access roads at various points of the Project area. All facilities fall under the jurisdiction of the Federal Environmental Regulatory Commission (FERC). EPNG anticipates pursuing Project authorization through FERC under the Natural Gas Act blanket certificate program, Part 157, Prior Notice of the FERC regulations for EPNG to modify their existing system. As the Project requires federal authorization from the FERC, the Project must also comply with Section 106 of the National Historic Preservation Act (NHPA) (54 U.S. Code 4300101 et seq.) and its implementing regulations (36 Code of Federal Regulations 800).

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Using the Office of Environment and Energy (OEE) online Tribal Directory Assessment Tool (TDAT), Tetra Tech Identified that the Project is within the Tonkawa Tribe of Indians of Oklahoma's area of interest. TDAT provides tribal contact information to assist users with initiating Section 106 consultation under the National Historic Preservation Act (54 U.S.C. § 300101 et seq.). We respectfully request your assistance with the identification of any known traditional cultural properties that may be affected by the proposed Project. Although we respectfully request the Tonkawa Tribe of Indians of Oklahoma to provide comments to EPNG regarding potential impacts on traditional cultural properties or the survey content, please note that the FERC is responsible for government-to-government consultations with Native American tribes.

We greatly appreciate your assistance with this request. If you have any further questions or require additional information, please contact me by email at bob.hanley@tetratech.com or by phone at 716-308-2560.

Respectfully submitted,



Robert Hanley Tetra Tech, Inc.
Senior Archaeologist

cc: Megan Mater, EPNG
Mike Donnelly, Tetra Tech

TETRA TECH

June 23, 2026

VIA Email

Mark Altaha
THPO
White Mountain Apache Tribe of the Fort Apache Reservation, Arizona
P.O. Box 507
Fort Apache, AZ 85926

RE: **El Paso Natural Gas Company, LLC**
Phase I Archeological Survey of the McCloud Lateral Pipeline Project
El Paso County, Texas

Dear Mr. Altaha,

El Paso Natural Gas Company, LLC (EPNG) invites the White Mountain Apache Tribe of the Fort Apache Reservation, Arizona to review and comment on EPNG's McCloud Lateral Pipeline Project (Project) in El Paso County, Texas. Construction will consist of installing approximately 9.1 kilometers (km; 5.7 miles[mi]), 40.6 centimeter (cm; 16-inch [in]), diameter lateral natural gas pipeline encompassing an area of 85.3 hectares (ha; 210.7 acres [ac]) that will originate from EPNG's existing El Paso Compressor Station on its South Mainline system and head north-east terminating at a new delivery meter station near the McCloud Generation facility. At the time of field survey, EPNG was evaluating both a preferred alternative alignment between the existing compressor station and Stan Roberts Avenue. Both alignments were included in the Area of Potential Effect (APE). EPNG also proposes the use and continued maintenance of four existing access roads at various points of the Project area. All facilities fall under the jurisdiction of the Federal Environmental Regulatory Commission (FERC). EPNG anticipates pursuing Project authorization through FERC under the Natural Gas Act blanket certificate program, Part 157, Prior Notice of the FERC regulations for EPNG to modify their existing system. As the Project requires federal authorization from the FERC, the Project must also comply with Section 106 of the National Historic Preservation Act (NHPA) (54 U.S. Code 4300101 et seq.) and its implementing regulations (36 Code of Federal Regulations 800).

Cultural Resources Survey. Under Contract to EPNG, Tetra Tech, Inc. (Tetra Tech) has conducted a Phase I Archaeological Investigation to determine the presence or absence of potentially significant cultural resources prior to possible impacts. Tetra Tech's investigation included background research and review and site files search using the Texas Archeological Sites Atlas of the Texas Historical Commission (THC) and field investigation to identify new cultural resources and previously recorded historic properties, archaeological sites, and previously surveyed areas within the proposed Project area described above. Geological Survey (USGS) TopoView collection, and Historical Aerial photographs from the Nationwide Environmental Title Research (NETR) online were examined to identify historical structures or features mapped within or near the Project area. Tetra Tech's background research identified no previously recorded archaeological sites within the Project's Area of Potential Effect (APE). According to the THC Atlas (2025), no cemeteries, NRHP properties, RTHL properties, or SALs are recorded within 1.0 km (0.6 mi) of the Project area. Eight previously recorded archaeological sites are located within 1.0 km (0.6 mi) of the Project

area, including an NRHP eligible early 20th century farmstead (41EP5741) associated with Price's Dairy. The Project area was also overlaid on the Texas Department of Transportation's (TxDOT) Hybrid Potential Archeological Liability (HPALM) map data for El Paso County, Texas. The HPALM results indicated that the Project area is in an area of moderate potential for preservation of archeological sites with reasonable integrity in shallow contexts and moderate to high potential within deep contexts throughout the Project area. Background research conducted on March 25, 2026, for an initial alignment identified that the Project would intersect a National Register of Historic Places (NRHP)-eligible historic property (41EP5741). To avoid adverse effects, relocation of the north–south alignment was recommended, shifting the alignment farther west, outside the site boundary, and near the western edge of the existing compressor station. Consequently, EPNG developed alternative alignments on April 6, 2026, designed to avoid impacts to site 41EP5741. No previously recorded cultural resources were identified within the revised Project alignments.

The archeological survey of the 85.3 ha (210.7 ac) Project area was conducted between April 13 and April 16, 2026, by Tetra Tech cultural staff. All proposed Project impacts were thoroughly assessed to document any potential cultural resources prior to Project authorization and construction. A total of 121 shovel test pits (STPs) were conducted within the Project area. Ongoing, unrelated construction projects in the Project area such as Project Seafox in the northeast and the El Paso Northeast Highway in the south have disturbed approximately 18.5 ha (45.8 ac), accounting for 14 percent of the Project. The southern 1.0 km (0.6 mi) of the route is located with the boundary of the existing El Paso Compressor Station.

One pre-contact isolated find (IF) (IF-JE-001) was newly identified during survey but given the absence of temporally diagnostic artifacts and lack of artifact diversity, the site is unlikely to contribute any new or unique data. Given the absence of temporally diagnostic artifacts and lack of artifact diversity, the IF is unlikely to contribute any new or unique data. The IF was located within a gravel wash concentration likely caused by channeling in the area and denotes a secondary depositional environment. Due to ongoing construction projects in the area, there is no known relic collecting in the area and it has a low likelihood of vandalism. Therefore, IF-JE-001 is recommended not eligible for listing in the NRHP or SAL. No additional cultural material was identified in the Project area. The overall results indicate that the Project area has limited potential for the presence of archeological resources. Based on these findings, Tetra Tech recommends a finding of no historic properties affected (per 36 CFR 800.4(d)(1)) for the McCloud Lateral Pipeline Project, and no further work was recommended. On June 4, 2026, Joseph Bell of the THC issued a letter to Jason Espino of Tetra Tech in concurrence with the recommendation that no archaeological or above-ground historic properties will be affected by the Project.

Using the Office of Environment and Energy (OEE) online Tribal Directory Assessment Tool (TDAT), Tetra Tech Identified that the Project is within the White Mountain Apache Tribe of the Fort Apache Reservation, Arizona's area of interest. TDAT provides tribal contact information to assist users with initiating Section 106 consultation under the National Historic Preservation Act (54 U.S.C. § 300101 et seq.). We respectfully request your assistance with the identification of any known traditional cultural properties that may be affected by the proposed Project. Although we respectfully request the White Mountain Apache Tribe of the Fort Apache Reservation, Arizona to provide comments to EPNG regarding potential impacts on traditional cultural properties or the survey content, please note that the FERC is responsible for government-to-government consultations with Native American tribes.

We greatly appreciate your assistance with this request. If you have any further questions or require additional information, please contact me by email at bob.hanley@tetratech.com or by phone at 716-308-2560.

Respectfully submitted,



Robert Hanley Tetra Tech, Inc.
Senior Archaeologist

cc: Megan Mater, EPNG
Mike Donnelly, Tetra Tech

TETRA TECH

June 23, 2026

VIA Email

Gary McAdams
THPO
Wichita and Affiliated Tribes (Wichita, Keechi, Waco & Tawakonie), Oklahoma
P.O. Box 729
Anadarko, OK 73005

RE: **El Paso Natural Gas Company, LLC**
Phase I Archeological Survey of the McCloud Lateral Pipeline Project
El Paso County, Texas

Dear Mr. McAdams,

El Paso Natural Gas Company, LLC (EPNG) invites the Wichita and Affiliated Tribes (Wichita, Keechi, Waco & Tawakonie), Oklahoma to review and comment on EPNG's McCloud Lateral Pipeline Project (Project) in El Paso County, Texas. Construction will consist of installing approximately 9.1 kilometers (km; 5.7 miles[mi]), 40.6 centimeter (cm; 16-inch [in]), diameter lateral natural gas pipeline encompassing an area of 85.3 hectares (ha; 210.7 acres [ac]) that will originate from EPNG's existing El Paso Compressor Station on its South Mainline system and head north-east terminating at a new delivery meter station near the McCloud Generation facility. At the time of field survey, EPNG was evaluating both a preferred alternative alignment between the existing compressor station and Stan Roberts Avenue. Both alignments were included in the Area of Potential Effect (APE). EPNG also proposes the use and continued maintenance of four existing access roads at various points of the Project area. All facilities fall under the jurisdiction of the Federal Environmental Regulatory Commission (FERC). EPNG anticipates pursuing Project authorization through FERC under the Natural Gas Act blanket certificate program, Part 157, Prior Notice of the FERC regulations for EPNG to modify their existing system. As the Project requires federal authorization from the FERC, the Project must also comply with Section 106 of the National Historic Preservation Act (NHPA) (54 U.S. Code 4300101 et seq.) and its implementing regulations (36 Code of Federal Regulations 800).

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Respectfully submitted,



Robert Hanley Tetra Tech, Inc.
Senior Archaeologist

cc: Megan Mater, EPNG
Mike Donnelly, Tetra Tech

TETRA TECH

June 23, 2026

VIA Email

Omar Villanueva
THPO
Ysleta del Sur Pueblo
119 South Old Pueblo Road
El Paso, TX 79907

RE: **El Paso Natural Gas Company, LLC**
Phase I Archeological Survey of the McCloud Lateral Pipeline Project
El Paso County, Texas

Dear Mr. Villanueva,

El Paso Natural Gas Company, LLC (EPNG) invites the Ysleta del Sur Pueblo to review and comment on EPNG's McCloud Lateral Pipeline Project (Project) in El Paso County, Texas. Construction will consist of installing approximately 9.1 kilometers (km; 5.7 miles[mi]), 40.6 centimeter (cm; 16-inch [in]), diameter lateral natural gas pipeline encompassing an area of 85.3 hectares (ha; 210.7 acres [ac]) that will originate from EPNG's existing El Paso Compressor Station on its South Mainline system and head north-east terminating at a new delivery meter station near the McCloud Generation facility. At the time of field survey, EPNG was evaluating both a preferred alternative alignment between the existing compressor station and Stan Roberts Avenue. Both alignments were included in the Area of Potential Effect (APE). EPNG also proposes the use and continued maintenance of four existing access roads at various points of the Project area. All facilities fall under the jurisdiction of the Federal Environmental Regulatory Commission (FERC). EPNG anticipates pursuing Project authorization through FERC under the Natural Gas Act blanket certificate program, Part 157, Prior Notice of the FERC regulations for EPNG to modify their existing system. As the Project requires federal authorization from the FERC, the Project must also comply with Section 106 of the National Historic Preservation Act (NHPA) (54 U.S. Code 4300101 et seq.) and its implementing regulations (36 Code of Federal Regulations 800).

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Respectfully submitted,



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